

The Manual of Departmental Orders

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The Manual of Departmental Orders

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The Manual of Departmental Orders

Department of Irrigation & Drainage

Chapter I

Establishment

Section I

Organisation:-

1.

- The establishment of the Irrigation Branch comprises the following:-

(a)

Administrative, Executive, Revenue etc.

(i)

The Rajasthan Service of Engineers.

(ii)

The Rajasthan Subordinate Engineering Service.

(iii)

The Rajasthan Deputy Collector's Service.

(iv)

The Rajasthan Ziladar's Service.

(v)

The Subordinate Revenue Establishment (Amins, Patwaris, Girdawars, Muhafizes etc.)

(vi)

The Ministerial Establishment (Clerks, Munshis, signallers, Draftsmen etc.)

(vii)

The water Regulation Establishments.

(viii)

The Class IV Establishment (Peons, Dafadars, Barkandazes and Sawars, etc.)

The rules regarding recruitment, organisation, pay and promotion in of these services will be issued separately by Government.

Section II

Duties of the Engineer Officers of the public works Department, Irrigation Branch

2.

- (i) The duties of the officers of the Irrigation Branch, in regard to financial and accounts matters are specified in the Financial Handbook concerned. Their duties in administrative and executive matters are defined below.

(ii)

(a)

It is incumbent on all officers to see that their assistants and subordinates thoroughly understand and strictly adhere to the details of the estimates for works on which they are employed. It is not sufficient to hand over estimates and plans to them and to assume that the work will be carried out, but detailed instructions should be freely and patiently given on all points regarding which they have any doubts, and they should be encouraged to ask for information on such points.

(b)

It must be remembered that it is part of the duty of officers to train young assistants and subordinates, and the manner in which they perform their duties is generally a good test of the usefulness of the officer under whom they are employed.

Chief Engineer

3.

- The Irrigation Branch is administered by one or more Chief Engineers who are responsible to Government for the efficient working of the Branch and are the responsible professional advisers of Government in all matters relating to the Branch. The Chief Engineer will recommend to Government postings, transfers and leave of all Engineer Officers and (Deputy Collectors), as well as the punishment of all officers appointed by Government, provided that the power to punish has not been delegated to him.

Superintending Engineers

4.

- (i) The administrative unit of the Department is the circle in charge of a Superintending Engineer, who is responsible to the Chief Engineer for the administration and general professional control of Public Works in the charge of Officers of the Department within his circle.

(ii)

The Superintending Engineer is required to ascertain and report on the efficiency of the Engineer, subordinate, revenue and office establishment of the circle, and to see that the staff employed in each division is actually necessary and adequate for its management.

Executive Engineers

5.

- (i) The Executive Unit of the Department is the division in charge of a divisional Officer, who is usually of the rank of Executive Engineer.

(ii)

A divisional officer may receive orders only from Government, the Chief Engineer, his Superintending Engineer or other duly authorized officer.

(iii)

The divisional officer is responsible for taking proper measures to maintain in good order all works in his division and for seeing that Government land is not encroached upon. He is further required to explore ways and means of improving the efficiency of works in his charge, and also to encourage his staff to submit proposals for improvements.

(iv)

The Divisional Officer is required to ascertain and report on the efficiency of the Engineers subordinate, revenue and office staff of his Division.

(v)

He is required to report immediately to the Superintending Engineer any important accident or unusual occurrence within his division, stating what action, if any, he has taken thereon.

(vi)

He is responsible that the surveying and mathematical instruments in his division are properly maintained.

(vii)

Divisional Officers, in addition to their other duties, will be Ex-Officio professional advisers of all departments of the Administration within the territorial limits of their charges. They will transact such business with the Chief Military or Civil authorities within their divisions, and it will be incumbent on them to see that no undue formalities are allowed to interfere with the performance of those duties which are essential or pressing.

(viii)

divisional Officers will address Military Officers commanding divisions, brigades or stations through their staff officers.

Sub-Divisional Officers

6.

- The Division is divided into sub-divisions, in-charge of sub-divisional officers, who are responsible to the divisional officer for the management and execution of works within their sub-divisions.

Section Holder

7.

- (i) The Sub-division is divided into a number of sections, usually three or four, each of which is under the charge of a sub ordinate, known as the section-holder. He works under the orders of the Sub-divisional Officer and is responsible that all works in his section are carried out properly, and that Government property in his charge is maintained in good order. He is also required to check every item of stock in his charge every six months and tools and plant every year and to keep accounts concerning them in forms and registers prescribed for the purpose.

(ii)

Cash payments for petty works carried out by him under the order of the Sub-divisional Officer are made by the Section-holder from his imprest account. He is responsible for entering measurements of works in progress in his section and on their completion in measurement books and for the proper upkeep of the letter. It is his duty on the occurrence of a breach immediately to arrange for its closure, and at the same time report the matter to the sub-divisional officer by wire or special messenger.

(iii)

He is also required to take discharges of all Irrigation Channels in his section once a month and all rivers, streams and drains during high floods, and report the result to the Sub- Divisional Officer.

Section III

First Appointment to Subordinate Posts-General Rules

8.

- Rules have been separately framed and action should be taken according to these rules.

Temporary Establishment

9.

- (i) In order to meet the demand for extra supervision that may arise from time to time, as well as to ensure that the Irrigation Branch Establishment shall be capable of contraction as well as expansion as the Expenditure on works diminishes or increases, the permanent establishments may be supplemented by temporary Establishments to such

extent as may be necessary. Temporary Establishment will include all non-permanent Establishment entertained for a Division or for general supervision, as distinct from the execution of works.

(ii)

No proposal for the creation of a temporary post will be considered by Government unless supported by full reason showing the necessity therefor.

(iii)

The pay proposed for a temporary post should be based on the principles laid down in the relevant rules.

(iv)

All persons, except those on the petty establishment, appointed to temporary posts should be required to sign a declaration in prescribed form.

(v)

When a temporary post is abolished, the services of the temporary man who, in the opinion of the Superintending or Executive Engineer is least qualified, whether by reason of short service or inferior qualifications or other causes, should be dispensed with.

(vi)

A register will be maintained in the Chief engineer's office by circles and in the Superintending Engineer's office showing all the sanctions given for temporary establishments by classes distributed by divisions.

These registers will give Superintending Engineers information as regards men available for promotion or for being made permanent, and assist them in deciding on the men to be discharged on reduction of Establishment.

Section IV

Reports, Recommendation Rolls, Character Records and Service Books, Reports

10.

- (i) In order to ensure that promotion shall be made with the utmost fairness to officers on the one hand and with due regard to the interest of the Public Service on the other, it is essential that close and continuous attention should be paid to the work, character and capacity of all officers. Therefore, a continuous record of the services of all officers should be maintained. Every officer who has been on duty during the year should be reported on even though he is on leave or otherwise absent from the division or circle at the time of report. One report only on each officer is required. The record should be written up in a concise and descriptive manner indicating clearly and with sufficient completeness the manner in which an officer has performed his duties during the year under report, his qualifications, abilities and anything also that may be of help to the authority with whom the power of making promotions rests informing an opinion of the usefulness and capacity of the officer. Each report should be complete in itself without reference to previous rolls or reports and, in particular, should contain a definite expression of opinion whether or not an officer is considered to it for advancement to the next higher rank.

(ii)

Extracts from documents in which an officer has been praised, censured or adversely commented upon should be filed with his annual reports. When an officer is permanently transferred to another province, these reports having been brought up to date should be forwarded to the local Government concerned. When an officer is only temporarily transferred his name remaining on his own provincial list for promotion, the local Government to which he is transferred should forward duplicate of the report recorded on him to the local Government of the province to which he is permanently attached.

(iii)

(a)

A complete report for the year on each officer is required. Office copies are not to be retained. Every officer who is transferred or proceeds on leave shall, prior to his departure hand over to his successor sealed covers containing his reports on all officers subordinate to him. The report on each officer shall be placed in a separate sealed cover on which is recorded the name of the officer and the period to which the report refers. If the period is less than three months, no report need be made unless the officer is employed on work of an exceptionally arduous nature on his conduct deserves censure.

(b)

When an officer, after serving three or more in a division, is transferred to another division in the same circle, a report up to the date of his transfer, in a sealed cover on which is recorded the name of the officer and the period to which the

report refers, shall be forwarded to the Executive engineer of the Division to which the Officer is transferred.

(c)

When an officer after serving three months or more in a division, is transferred to a division in another circle, a report up to the date of his transfer shall be submitted to the Superintending Engineer concerned who will add his remarks in the report and forward it in a sealed cover on which is recorded the name of the officer and the period to which the report refers, to the Executive Engineer of the division to which the officer is transferred.

(d)

The Executive Engineer of the division in which the officer is serving at the time the submission of the report for the year is due, shall be personally responsible for the collection of the sealed covers containing previous reports in the manner stated above and shall submit them along with his own report, if any, to the Superintending Engineer concerned on the prescribed date. The Executive Engineer shall at the same time submit a statement showing the periods during which the officer has served in each division and the periods, if any, spent by him on leave during the year under report.

(e)

The Superintending Engineer shall submit the complete report, after adding his own remarks, if any, to the Chief Engineer.

(iv)

Communication to officer of unfavourable remarks that may be made in regard to them in the annual reports or on other occasions should be regulated according to the principles detailed below:-

(a)

When a report is built up on the individual opinions of different departmental superiors in gradation, it is only, the opinion as accepted by the highest authority that need be considered from the point of view of communication to the officer reported on.

(b)

As a general rule an officer should never be kept in total ignorance for any length of time of the fact that his superiors, after sufficient experience of his work, are dissatisfied with him. In cases where a warning might eradicate or help to eradicate a particular fault, the advantages of a prompt communication of their dissatisfaction are obvious; where criticism is to be withheld the final authority to consider the report should record his orders with reasons according to the nature of the defect discussed, as to the period for which communication to the officer is to be kept back.

(c)

Only those defects need be pointed out that can be remedied.

(d)

The reporting officer should specially state whether the defects reported have already been brought in any other connection to the notice of the officer concerned.

(e)

Remarks in cases in which the State Government or the head of the department or other officer suspends judgment should not be communicated.

(f)

The substance of any adverse remarks should be communicated and not necessarily the actual wording used by the reporting officer.

(g)

The communication of adverse comments to an Engineer Officer should be made by means of a personal letter marked "Confidential" and addressed direct to him, a copy of each such letter being attached to the annual report in question. Reporting officers will be at liberty, however, to call up any official in whom they have reported adversely and to inform him of the adverse remarks, if they consider that he is likely to benefit thereby.

The personal letters should be drafted by the Personal Assistant to the Chief Engineer, and should be seen and approved by the Chief Engineer before issue.

(h)

Great attention should be paid to the manner and method of communication in order to ensure that the advice given and the warning or censure administered, whether orally or in writing, shall having regard to the temperament of the officer concerned, be most beneficial to him.

(i)

Strict attention should also be paid to the wording of the communication, the primary intention being:- to endeavor in the most considerate and practical manner to correct defects which are capable of corrections; and to give timely warning to officers whose defects are likely to deprive them of promotion.

(j)

Any reply or representation which the officer communicated with has to make should be sent by him direct to the Chief Engineer in a cover marked "Confidential". No discussion or controversy can be permitted, however, and no officer can claim a reply to any comment he may be thus permitted to make. The Chief Engineer, if he considers it desirable, will communicate with the reporting officer. In any case, the whole correspondence including the Chief Engineer's letter conveying the adverse remarks and subsequent correspondence, if any, the representation of the officer concerned and any final comments or orders of the Chief Engineer concerned and any final comments or order, of the Chief engineer or Government should be placed along with the annual report in question in order to form a complete record for future reference.

(k)

In no circumstances can an officer be permitted to address the reporting officer on the subject of an unfavourable report.

Special Reports

11.

- Special reports may take any of the following forms:-

(i)

Reports of particular incidents or acts which call for a special inquiry.

(ii)

Reports in reply to inquiries as to whether an officer who has not been well reported on in the past has improved and is fit for promotion; or

(iii)

Reports in answer to requests for opinion as to the fitness of an officer for a particular appointment, etc.

No special instructions are necessary in respect of the first class. Remarks contained in reports of the other classes should not be communicated unless they disclose facts or allegations which in the opinion of Government, it is necessary to convey to the concerned.

Recommendations Rolls of Engineer Officers

12.

- (i) Annual recommendations rolls of Assistant Engineers will be submitted to Superintending Engineer on prescribed form by divisional officers on January 1. Superintending Engineers will transmit these recommendation rolls, as well as rolls of Executive Engineers on the above mentioned form to the Chief Engineer not later than January following.

(ii)

The reports on Assistant Engineers who have entered their ninth year of service should state whether they are fully qualified for divisional charge or not; whilst in the case of Executive Engineers who have entered their fifteenth or later year of service the reporting officer should state definitely whether they are qualified for promotion to superintending Engineer rank or not. In the latter case the reasons should be stated.

(iii)

In the case of an Assistant Engineer whose pay is below the "efficiency bar" a special report should also be submitted three months before the increment that would place him above the efficiency bar is due.

Recommendation Rolls For Establishment Other Than Engineer Officers

13.

- (i) Separate and distinct rolls should be submitted in the prescribed forms for the following classes of establishment on the dates prescribed for each:-

(a)

Deputy collectors.

(b)

Ziladars.

(c)

Members of the Subordinate service.

(d)

Clerks, munshis, signallers and drafts men.

(e)

amins and Girdawars.

(f)

Patwaris and Muhafizes.

(g)

Men recommended for the post of Dy. Collector.

(h)

Men recommended for Ziliadarship.

(i)

Members of the Subordinate service recommended for sub-divisional charge.

(j)

Clerks recommended for post of divisional head clerk.

(k)

Munshis recommended for the post of head Munshi.

(ii)

When submitting rolls each reporting officer should state whether the man reported on is "strongly recommended", "recommended", or "not recommended", as the case may be, giving brief but clear reasons for the entry.

(iii)

Recommendations of subordinates considered fit for sub-divisional charge should be submitted every year as laid down in (i) (i) above irrespective of whether or not their names already exist on the approved list, or they are holding sub-divisional charge; and if it is considered that a subordinate whose name is borne on the list has proved himself unfit for sub-divisional charge, the fact should be reported and the removal of his name from the list recommended, the precise reasons for this recommendation being stated.

Character Records

14.

- (i) Character records shall be maintained in prescribed forms according to this instructions issued by the Government in this behalf (Ref. Order No. 8(b) appts (c)/51 dated 28-1-52 and even No. dated 7.7.54.

(a)

in each divisional office for all clerks, draftsman, signallers and other establishments below the rank of subordinate and above that of petty establishment, and who remain, at a rule throughout their service in one division.

(b)

In each divisional office in personal registers for deputy collectors, Ziladars, amins, Girdawars and subordinates.

Each sheet will represent a year of service: on the left page are printed set questions, to which replies will be given by reporting officers. The right page will be blank and will be used for special entries or general remarks on points not covered by the replies to the prescribed questions.

(ii)

Heads of offices will be at liberty to make a record of the characters of Class IV like sawars, chaprasis, chaukidars, dafadars, barkandazes or beldars in cases of highly marked good conduct meriting such a distinction, and shall at the same time record the extent of the man's education.

(iii)

The character record should be kept with the service book and transferred with it whenever the officer to whom it refers is transferred.

(iv)

While the head of the officer may at any time make entries in the record either of favourable or adverse character, he must do so on the occasion of his own transfer, if he has been more than six months in charge, and whenever the official to whom it relates is transferred. Regular entries should be made in all records at the end of each calendar year concerning the work and conduct, during the year, of the officials concerned.

(v)

In all cases of compulsory entries the head of the office need not enter more than his signature, with date of entry, if he has nothing to add to an opinion recorded within the previous six months.

(vi)

Character records should always be sent in registered covers when transmitted by post.

(vii)

Character records should be treated as confidential, but all adverse entries, which affect promotion, will be communicated to the officials concerned.

(viii)

a copy of any remarks recorded in an annual administration or other report relating to the conduct and work of an official may, under the authority of the head of the office, be entered in his character record.

(ix)

In the case of a temporary employee a character record should be opened when the temporary service has lasted two years.

(x)

Every entry in a character record which may adversely affect the promotion of the official concerned must be communicated to him.

(xi)

The character record of an official is the property of Government and should on his retirement or dismissal, be kept in the office where he was last employed. The practice of issuing commendatory certificates of good character in the case of officials during the course of their service is strictly prohibited, heads of departments and offices may, however, grant to their subordinates on retirement such special certificates of good work and conduct as they may deem fit.

Service Books

15.

- (i) Rules framed by Government prescribe the procedure to be followed in the maintenance of service books.

(ii)

The following further rules are hereby prescribed.-

(a)

Thumb and finger impressions of the left hand should be made in the space provided for the purpose.

(b)

Promotions, reversions, leave of every description (except casual leave), transfers, suspensions and every other interruption in service should be noted with full details of their duration. It is the duty of the accountant in the divisional office, and of the Superintendent in the Chief and Superintending Engineer's Offices to see that this is done at the time the event takes place.

(c)

Every entry should bear the signature of the head of the office, and books which have been received from other offices incomplete in this respect should be returned to be completed.

(d)

The entries in the first page should be reviewed, revised if necessary and re-attested at least every five years and the signatures of the official concerned and the head of the office should be dated. A register should be kept of the dates of such attestations.

(e)

The dates of birth should invariably be taken from the service books and from no other source.

(f)

As regards alterations in dates of birth, attention should be paid to the following instructions as well as to those contained in paragraph 4.

Dates of birth in service books should be recorded both in figures and words.

Any alteration necessitated by a clerical error at the time of opening a service book should be carried out immediately the error is discovered and attested by the dated initials of the head of the office, and

Any other alteration must be formally sanctioned by the Superintending Engineer. The correction sanctioned should be made in red ink, and initiated and dated by the head of the office, the number and date of the sanctioning order being given as the authority.

Section V

Transfers, Suspensions, Dismissals, Removals, Reductions, Deaths and Resignations

Transfers

16.

- Transfers of members of the Engineering services and of subordinates from one province to another may be affected with the mutual consent of the Governments concerned. All such transfers of Engineers will be notified by the Government of Rajasthan.

The following rules are laid down relating to the transfer of the services of Government Officials from one Government office or Department to another.

(i)

It is the duty of a Government Official who wishes to have his services transferred to a different Government office or Department to obtain the consent of the authority which makes appointment to his existing post before he takes up the new employment. If he does so without such consent, he commits a breach of discipline, and is liable to be punished, in the last report by dismissal from his, former post, and consequent loss of pensionable service. Resignation of his former appointment will not protect him from his penalty.

(ii)

In granting or withholding consent to the acceptance by a subordinate of other Government employment, the head of an office or Department must consider whether the transfer will be consistent with the interests of the public service. Permission should not be refused, without strong reasons, which should be recorded in writing.

(iii)

The head of an office of department should not employ, either temporarily or permanently, an official whom he knows or has reason to believe to belong to another establishment without the previous consent of the head of the office or Department in which he is employed. In the rare cases in which, for reasons which appear satisfactory to the new employer, an official cannot obtain the required consent before taking up the new appointment the employment may be made conditional consent being obtained at the earliest opportunity.

The foregoing instructions apply equally to officials on leave whether with or without allowance. All leave allowances must ipso facto cease on taking up new employment other than work of a purely casual nature.

Suspensions

17.

- Any person whose conduct is undergoing investigation on a serious charge should be placed under suspension until his case has been decided. If the officer conducting the investigation is not himself empowered by any rule or delegator order to suspend the person whose conduct is being investigated he should obtain immediately the orders of the officer so empowered. The rules regarding the subsistence allowance of the person suspended and the treatment of the period spent under suspension are contained in the Rajasthan Service Rules.

18.

In serious cases of misconduct on the part of officers or subordinates, which may result in their reduction, removal or dismissal, the procedure outlined in rule 15, 16, 17 of the Civil Service (Classification, Control and appeal) Rules should be strictly observed.

Deaths

19.

- In the event of the death of any officers of subordinate of the Department, if there is no one at hand entitled to administer his estate, the senior member of the Department on the spot will at once take measures to ensure the safety of all property the deceased may have possessed, excepting only the personal necessities of his family (if any) and will take an inventory of the same, forwarding a certified copy through his immediate superior to the head of the Department, with an estimate of the value of the property. A police guard should (when there is any risk of misappropriation), be applied for and put over the effects immediately after the death until there is time to take an inventory. The local Government will communicate immediately with his relatives or friends, if none was present on the spot.

Casualties of any persons holding appointments in the Department must be reported immediately through the regular channels to the authorities by whom the appointments were made.

Conditional Resignation

20.

- When a subordinate official couples with a request for leave or for redress of some sort, an offer to resign his appointment if the leave or redress asked for is not granted, such resignation should ordinarily not be accepted, but

orders should be passed only in regard to the application for leave or redress. If the official is dissatisfied with the orders passed, it is open to him to appeal to higher authority or to render an unconditional resignation.

Section VI

Leave

Application for Leave

- 21.
- All applications for leave must be made to or through the departmental superiors of the applicant.

22.

To enable Government to plan leave vacancy arrangements, Superintending Engineers will submit to Government on December 15 and June 15 statements giving the intentions of gazetted officers of their circles to apply for leave during the half year commencing January 1 and July 1 following, respectively.

23.

Formal applications for leave by gazetted officers of the Department should be submitted to Government through the Accountant General six weeks before the date from which the leave is required.

24.

When forwarding an application for leave to the Accountant General or verification and submission to Government the submitting officer should at the same time intimate the fact to Government, stating the date from which the officer requires the leave, and the nature and period of leave applied for.

Casual Leave Rules

- 25.
- The grant of casual leave will be governed by rules as laid down in Rajasthan Service Rules.

Section VII

Travelling Allowance etc.

- 26.
- General rules for travelling allowance.
- Officers of the Irrigation Branch are subject to the travelling allowance rules laid down by Government.

Conveyance Hire

- 27.
- The following charges in connection with conveyance hire are chargeable to contingencies;
- (i)
- Conveyance hire in the case of the despatch of a messenger or for the sudden journey of non-gazetted officials or menials outside the ordinary course of their duty. In both cases it is necessary that the journey should be to some place in the neighbourhood of the office and that the head of the office should certify that the charge was unavoidable.

(ii)

Cost of season tickets for runners who have constantly to perform the same journey.

(iii)

Charges incurred by peons, barkandazes or other messengers for the carriage by road of dak or treasure to an officer's camp.

Note.- Expenditure incurred in sending dak or treasure by rail consists mainly of railway fare for the person who accompanies the dak or treasure. The articles are allowed to be carried free of charge as baggage up to a certain limit and the expenditure is debit able to "Travelling Allowance" but when an extra amount is required to be paid for. The carriage of the articles themselves, the extra cost should be debited to Office contingencies".

Limits of jurisdiction

- 28.
- The limits of jurisdiction of the various Irrigation Branch officials are given below:
- (I)
- Superintending Engineers:
- The boundaries of revenue divisions which are wholly or in part including in their circles.
- (II)

Executive Engineers, sub-divisional Officers and Deputy Revenue Officers.

The boundaries or districts in which Irrigation is practiced from, or land has been acquired for canal works in their

charge.

(III)

Ziladars, subordinates and the lower revenue staff. The extent of their charges or beats.

Officers Visiting works beyond their jurisdiction

29.

- Superintending Engineers are authorised to order any officer subordinate to them to proceed on duty to any part of the territories of the State Government and to draw travelling allowance permissible under the rules.

30.

When officers receive permission to visit works out of their Divisions or circles, flying visits only should be made, and camps should not be taken. Actual travelling expenses only, subject to the limit of travelling allowance ordinarily admissible should be drawn for journeys to and from the works visited.

Carriage of Means of Conveyance and Camp equipage by R.L.

31.

- Applications for sanction to rail motor cars, motor cycles, horses, carriage or other means for conveyance or camp equipment at Government expenses should be submitted in advance, and the specific grounds upon which the concession is asked for should be stated; it must be shown that the public interest would suffer if they were sent by road.

Section VIII

Miscellaneous

Promotions

32.

- Permanent promotions may be given to officers borne on the rolls of a State whether they are present or absent.

33.

The selection officers for temporary promotions will be regulated as far as possible by the same principles that for permanent promotion, but, in as much as this can not be acted on in every instance, the fact of an officer having been selected for temporary promotion should not be held to constitute a claim to permanent promotion.

Reporting, appointments, Leave and Transfers

34.

- Excepting subordinates in sub-divisional charge, the dates of appointment, departure, and return from leave, and, in the case of transfers, the dates of relief and joining, of zilladars and subordinates should be reported to the Chief Engineer by the Superintending and Executive Engineers concerned in the prescribed form.

35.

Executive Engineers should send similar reports to Superintending Engineers in respect of members of their Establishment whose appointment or promotion rests with Superintending Engineers.

36.

In the case of all gazetted officers and of all subordinates in charge of subdivisions the changes due to leave or transfer should be reported direct to the Chief Engineer only by the relieving officers and subordinates, who should mention the dates of their joining if these differ from the dates of their assumption of charge. The relieved Officers or subordinates should submit separate reports to the Chief Engineer only if they proceed on leave on their relief. Gazetted Officers, whose charges are abolished on relinquishment by them, or who are merely attached to divisions, and who are not relieved by other officers before transfer, also should submit separate reports to the Chief Engineer of the time and date on which they proceed on transfer.

37.

In the case of Engineer students, the dates of their joining and relief, and of their departure and return from leave should be reported to the Chief Engineer by the Executive Engineers concerned.

Supplying copies of Official Documents

38.

- Superintending Engineer and Executive Engineers should use their discretion in the matter, subject to rules issued by Government.

39.

Copies of orders connected with the dismissal of a Government servant should be supplied on application by him free of charge. When, however, anything beyond a copy of the final order is supplied, a charge should be made for copying

according to the rates laid down by the Government.

Criminal Prosecution of Official

40.

- The rules regarding criminal prosecution of officials in cases of alleged misconduct in connection with the public duties have been issued separately by Government. The prosecution should be entrusted to the magistrate of the district in which the offence was committed.

Memorials

41.

- An officer is forbidden to correspond direct with an authority superior to the officer under whom he is immediately serving, except in a case of extreme emergency, when he must send a copy of his communication to his immediate superior. Non-compliance with this rule is a breach of discipline.

Government Servants Conduct rule

42.

- Persons, employed in the Department shall have no pecuniary interest, directly or indirectly, in the construction of any public works or in the manufacture, supply or sale of building materials. They are further subject to the rules laid down in the "Government Servants Conduct Rules".

43.

As regards the possession of land, a declaration shall be made on first appointment. The head, of the office in which an official is serving or appointed is responsible for obtaining it, and official must invariably be informed that in the event of any landed property coming into their possession after the date of their declaration, they are bound to notify the fact within one month to the heads of their offices.

44.

The declarations in the case of Engineer Officers should be forwarded in original to the Secretary to be filled with the officer's personal files. Those in the case of deputy collectors, subordinates, Ziladars, Girdawars and amins should be pasted on page of the personal registers. The declarations of all other officials in superior service should be pasted on the inner side of the opening cover of the service book. No other record should be kept.

Government Residences

45.

- The general rent rules shall apply in all cases except those of rent free buildings. Free accommodation will be provided by Government in accordance with the orders for the time being in force. At present instructions for provision of Rent free accommodation have been issued vide GAD Circular No. F. 8(31)GA/A/54, dated 1st December, 1954.

Warm Clothing for Class IV Employees

47.

- A Superintending Engineer may be required to exercise, in addition to his ordinary duties, supervision over local fund expenditure in communication with the Civil Officers, under such orders and rules as Government may lay down, similarly, members of the Engineering and subordinate Establishment of the Department may be employed on local fund works in addition to their regular duties when such employment is not detrimental to the public service.

Employment Under Government of Persons in Private Service

48.

- When a person in private service seeks employment under Government without producing the written permission of his employer, the officer with whom the appointment rests should always communicate with the latter before appointing the applicant. The appointment of persons brought out from Europe by private firms and societies should be avoided as far as is consistent with the interests of the public service, and when such an appointment is contemplated the employer should be consulted before an offer is made.

Exemption from Ferry Tools

49.

- The following shall be exempted from the payment of tools;

All persons, animals and vehicles crossing any river by a public ferry when employed or transmitted on the public or district board service.

Note 1. - Persons in charge of animals and vehicles and other articles for which free passage is claimed at public ferries, on the ground that they are being transmitted on the public or district board service, shall be provided by the local

officers of the departments concerned with pass in the vernacular specifying distinctly the articles for which passes are claimed. In the event of their not being so provided, or of the articles not corresponding to the description given in the passes, toll may be demanded, and when demanded shall be paid.

Note 2. - Articles which are not actually the property of the Government or the district board at the time they pass the ferry, but which are transmitted with a view to the fulfillment of a Government or district board contract, or otherwise intended for the use of the Government or district board, shall on passing the ferry, be declared in writing as intended for the use of the Government or district board, e.g. in fulfillment of a certain specified contract. The toll on them shall then be paid, and subsequently if they actually do become the property of the Government or the district board, the toll shall be refunded on a certificate to the effect, signed by the Departmental officer concerned, provided that the application be made within fourteen days of the date of the certificate.

Chapter II

Rules Regarding Recruitment to Services in the Irrigation Department

Rides sanctioned by Government for various cadres of the Irrigation Department will apply.

Chapter III

Powers of Engineer Officers

As per Schedule of Powers sanctioned by Government.

Chapter IV

Accounts

Section I

Budget Rules, appropriations, Re-appropriations and Assignment of Funds

Classification of Revenue and Expenditure

1. - Receipts and expenditure will be classed as laid down in P.W.D. Financial Hand Book, appendix I, and explanatory notes and statement attached thereto. See also rules in chapter XIV of the same Hand Book.

2. "Ordinary" and "Special" tools and Plant are differentiated in Chapter VIII of the P.W.D. Financial Hand Book and instructions regarding the classification of expenditure on them are also given in the same chapter. The detailed subordinate heads of tools and Plant charges are given in explanatory note (16) of appendix I of P.W.D. Financial Hand Book. Details of the various articles, the expenditure whereon is classified under these subordinate heads, are given below.

Scientific instruments and drawing materials.- Includes mathematical and surveying instruments of all kinds, e.g., theodolites levels, etc.

Plant and Machinery.- Includes all permanent or temporary way, rolling stock, and boats purchased for the transport of materials for construction: also all workshops and other machinery, millstones, and all mill work purchased for water mills.

Tools.- Includes all miscellaneous instruments or tools used in the construction or maintenance of irrigation works.

Note.- Spirit levels, measuring tapes, boxes, measuring rods leather bags for carriage of dak. padlocks not required for office use, and other articles of a similar nature are classed as "Tools".

Navigation Plant.- Includes steamers, boats and all plant and gear purchased for navigation.

Camp Equipage.- Includes tents, camp furniture and equipment.

Live Stock.- Includes the purchase or hire and maintenance of draught, pack or saddle-animals required for other construction purposes.

Office Furniture.- Includes articles (except stationery and perishable articles) required for use in Executive Office which can be brought on numerical lists like tools and plant.

Repairs and Carriage.- Includes the cost of maintaining, repairing or transporting any article of tools and plant that may not actually be in use on, or required for any work in hand at the time.

Preparation of the Budget Estimate

3. - The Rajasthan Budget Manual should be consulted for rules about the preparation of Budget Estimates, and P.W.D. 1, Financial Hand Book, appendix 1. for information regarding the major and minor heads of the Budget. The following rules are in amplification of those given in the above mentioned Book. In all Budget Estimates, variations from normal estimates or sanctioned scales and from estimates for the previous year should be fully explained.

Revenue

4. - Each divisional office should maintain normal estimates of (a) Revenue from Irrigation Water-rates and (b)

miscellaneous Revenue. These will form the basis of the annual Budget Estimates, and should be revised from time to time as found necessary.

(i)

Revenue from Irrigation Water Rates.- For the purpose of this Estimate the year should be divided into the following two seasons, sugarcane being included under Kharif;

Rabi

October to March.

Kharif

April to September.

(ii)

Miscellaneous Revenue.- The normal estimate of this should be maintained under the following heads, separately for KHARIF and RABI:

(a)

Sales of water and water-supply.

(b)

Other Canal Produce.

(c)

Plantations.

(d)

Water power (mills, etc.)

(e)

Navigation.

(f)

Rent of buildings.

(g)

Fines & miscellaneous.

(iii)

The annual Budget Estimates of Revenue should be submitted on the following dates:

ESTIMATE

SUBMITTED BY

DATE

Budget Estimate of Revenue for the ensuing year

and Revised (final) estimate of Revenue for the current year

UNDER the heads XVII-A (1) and (2) and XVIII for Rabi and Kharif

separately-

Executive Engineer to Suptg

Engineer.

September, 1

Suptg Engineer to Chief Engineer.

October, 1

Chief Eng. to A.G. Administration

Department and the finance Department.

October, 15

(iv)

The Budget Estimate of Revenue will be based on the normal Estimates, which should be modified suitably to accord with the nature of the seasons, and remissions, likely to be granted and, in the case of RABI, will depend on the rainfall in August and September. Each class of crop should be estimated separately.

(v)

The revised (final) Estimate will include actual figures in the case of RABI. For Kharif it is essential that Irrigation should be written up promptly so that figures as accurate as possible are available at the time of the submission of the estimate. Officers will be held responsible for large differences between the estimates and the actuals.

(vi)

In both estimates, miscellaneous revenue should be included as a lumpsum with due allowance for refunds. Details by heads are not required.

Expenditure

5. - Budget Estimates of expenditure should be prepared carefully, and only sums that can actually be spent during the year should be included, as both an excess of expenditure and a deficit in relation to Budget grants constitute financial irregularities. The following estimates and returns should be submitted.

Estimate or return

Submitted by

Date

1.

Schedule of new expenditure under all Heads.

Executive Engineer to Suptg. Eng. Suptg. Eng. to Chief Engineer, chief Eng. to Finance Dept. Administration Department and A.G.

July, 15August, 15September, 15

2.

Detailed budget estimate of establishment charges.

Ex. Eng. to Suptg. Engineer, Suptg. Eng. to Chief engineer. Chief Eng. to A.G. Administration Department and Finance Department.

September, 15October, 1October, 25

3.

Famine Relief Budget

Ex. Engineer to Suptg. Eng. Suptg. Engineer to Chief Engineer, Chief Eng. to A.G. Administrative Department and Finance Department

September, 15October, 1October, 25

4.

Budget Estimate of Expenditure under the heads XVH-A(I) and (2), 18-A(1) & (2) 80A & 81A.

Ex. Engineer to Suptg. Eng. Suptg Engineer to Chief Eng. Chief Eng. to Finance Department, Administrative Department and Accountant General.

September, 15October, 1October, 25October, 31.

5.

Statement showing by works lapses of grants under different heads for the current year.

Executive Engineer to Superintending Engineer. Superintending Engineer to Chief Engineer.

October, 1October, 15

6.

Final Review of Expenditure and final re-appropriations & lapses.

Ex. Eng. to Suptg. Engineer Suptg. to Chief Engineer chief Eng. to Administrative Department.

December, 15January, 15March, 10

of New Expenditure

6. - (i) The Executive Engineer shall not enter any project in the schedule of new expenditure until he has been informed that the project has received the approval of the Finance Department. Only those projects on which no expenditure has been made shall be included in the Schedule.

(ii)

The Schedule will be in two parts, for recurring and nonrecurring expenditure respectively. Part I will contain all recurring new expenditure such as an increase in the permanent establishment, annual maintenance charges, etc. and will be on the following form:

Serial number of item

Name of Division

Nature of item

Cost in Budget year

Ultimate recurring cost

Remarks

1

2

3

4

5

6

Rs.

Rs.

(iii)

Part II pertaining not non-recurring expenditure will contain separately by each major head of account all new works costing more than Rs. 20,000 each proposed to be started during the ensuring year, and should be submitted on the following form:-

Serial No. in order of urgency

Name of Division

Name of work

Amount of estimate excluding establishment and tools and Plant charges

1

2

3

4

Rs.

Cost in Budget year

Cost in each separate succeeding year upto

completion of the work

Remarks showing 1. Nature of and justification for the work. 2. Number and date of sanction to the estimate. 3.

Estimated annual maintenance charges on completion. 4.

Estimated annual revenue from the work when completed if the work is of character.

5

6

7

Rs.

Rs.

Work already in progress need not be entered in this Schedule, but should go direct into the Budget Estimate of expenditure.

(iv)

If the Schedule contains any work for which store, are to be obtained from outside India, the cost of such stores should be given separately as a foot note together with the amount of customs duty leviable.

Budget Estimate of Establishment

7. - The Establishment Budget will contain provision for the following items,

- (i)
Salaries-
 - (a)
Permanent Establishment
 - (b)
Temporary Establishment
 - (c)
Leave Allowance
- (ii)
Travelling allowance. Conveyance allowance. Dearness allowance and House Rent allowance.
- (iii)
Contingencies-
 - (a)
Ordinary, including shajras and Khasras.
 - (b)
Office Expenses.
 - (b)
Other Expenses.
- (iv)
Lambardars, and Patwaris fees.
- (v)
Collection charges to be incurred by the Civil Department other than those in 4 above.

Provision for salaries for permanent Establishment shall not exceed the sanctioned scale, and all differences therefrom shall be fully explained. The budget shall be framed on the actual number and rates of pay of each class of Establishment and not on the average pay of each class. Provision for allowances, increments, etc. shall also be made, but shown separately.

Provision for temporary Establishment should be made according to actual requirements. Establishment not provided for in the Budget will not be sanctioned unless its cost can be met from savings. It is, therefore, essential that the Budget should be carefully prepared, and the necessity for any extra establishment, not previously sanctioned, should be explained.

Provision for leave allowances in India should be based on the average expenditure for the past three years under each class of Establishment.

Provision for travelling allowances and ordinary contingencies should be on the basis of the average for the past three years, and for the pay of menials according to actual requirements and at the actual rates of pay of the classes of Establishment.

Lambardar's and patwari's fees will be based on the Revenue anticipated.

Estimates of collection charges other than those mentioned in (f) above will be furnished by divisional commissioners to the Chief Engineer for inclusion in the Budget.

Superintending Engineers should submit an abstract showing, by divisions, the total cost of Establishment under salaries, permanent and temporary, allowances and Honoraria and contingencies.

Famine Relief Budget

8. - The famine Relief Budget should contain requirements under the head "43-Famine relief and insurance-A-Famine Relief". The outlay on such work is not classed as irrigation expenditure and is governed by the rules in the Famine Code. Unless there is a famine, the requirements under this head should be restricted to expenditure on the upkeep of the famine reserve of tools and plant, etc.

Budget Estimate of Works Expenditure

9. - (i) This will be divided into the following parts:

- (a)
Works.
- (b)
Maintenance and repairs.

(c)

Tools and Plant.

(d)

Suspense.

(ii)

The Budget Estimate for works should show, under which major head, the outlay proposed on all works, including the expenditure to be incurred on special tools and Plant. Works costing over Rs. 20,000 each should be shown apart from those costing Rs. 20,000 and less. The estimate should be prepared in the following forms:-

Sl. No. in order of urgency

Name of Division

Name of work

Amount of Estimate (Excluding share of establishment and Tools and Plant charges)

Direct outlay (works only)

Proposed expenditure for ensuing year

Actual at end of previous year

Revised Budget Estimate for current year.

1

2

3

4

5

6

7

Rs.

Rs.

Rs.

(iii)

Maintenance and Repairs.- The estimate shall be divided into two parts, (a) ordinary repairs and (b) special repairs. As in the case of Revenue, each divisional office shall maintain normal estimates of these, to form the basis of the annual Budget Estimate sanction, for the revision of normal estimates should be sought from time to time as new channels are built or number of works increased. The special repairs estimate will provide for-

(a)

Closure repairs, repairs to torrent and river works, after floods, special repairs the necessity for which is dependent on unforeseen circumstances and repairs which can only be carried out in special seasonal conditions and for which estimates can not be prepared beforehand. The normal estimates of special repairs will be based on the average cost incurred in a preceding period of years.

(b)

Special repairs to embankments, protection works, special bermeutting, repairs to buildings, etc. the necessity for which has been accepted by competent authority on definite estimates.

The Budget Estimates for maintenance and repairs should be submitted on the form given below and should include amounts required for compensation but not for refunds. The latter are treated as "minus revenue" and deducted from the estimate of revenue. As such expenditure must be passed by a vote of the Assembly, a separate statement should be submitted showing the expenditure (voted and not voted separately) proposed on refunds.

Particulars of works

Estimate

Previous Years grant

Normal estimate

Difference

Remarks

1

2
3
4
5
6

(iv)

Tools and Plant.- The estimate under this head should provide only for ordinary tools and plant. Recoveries of expenditure should not be included in this estimates (vide statement E, appendix I, P.W.D. Financial Hand-book). The Superintending Engineer shall submit an abstract showing the distribution of the total cost of tools and plant by divisions, and another by heads of accounts and canal projects, in accordance with the rules in appendix V of the P.W.D. Financial Hand Book.

Statement Showing by Works, Lapses of Grants Under Different Heads

10. - On this statement depends the accuracy of the revised Budget estimate. It should be very carefully prepared on the form given below. The demands in column 5 should represent the sums that can actually be spent during the year.

Name of Division

Name of work

Original Budget grant

Existing grant

Amount as finally required

Amount lapsed (column 4-5)

Remarks

1
2
3
4
5
6
7

Appropriation and re-appropriations See Budget Manual and P.W.D. Financial Hand Book

11. - From the grants at his disposal, Chief Engineer at the beginning of the year, shall allot sums to each division and circle office under all major minor and detailed heads reserving such proportion of the total grant for emergent works or repairs as he thinks proper.

Registers of Sanctioned Estimates and Appropriations

12. - (i) Two registers should be kept up in each divisional office in the prescribed forms, one for sanctioned estimates and other for appropriations.

(ii)

The register of sanctioned estimates is a permanent record, and should be continuous for a period of years. Appropriations hold good only for the year in which they are made and need not be permanently recorded.

(iii)

The register of sanctions should be divided into separate parts for original works and repairs. In the former, reference should invariably be given column 7 to the completion certificate or report. In the latter, column 7 need not be filled in.

Excess Over Estimates and Appropriations See P.W.D. financial Hand Book, Chapters III, XII & XIV

13. - (i) The Executive Engineer shall not continue to incur expenditure on an Estimate which has been exceeded, until he has submitted a revised estimate for sanction or, in the case of repairs, has applied for further appropriations. The responsibility for allowing him to do so shall rest with the Superintending Engineer.

(ii)

Whenever an appropriation is exceeded, and it is not in his power to regularize the excess by sanctioning re-appropriations, the Superintending Engineer shall immediately report to the Chief Engineer, and stop further expenditure on the work concerned unless authorised to do so.

Section II

Classification of Works by Account Heads See P.W.D. Financial Hand Book, Chapter XIII & appendix I

14. - Works and canal systems administered by the Irrigation Branch are classified, for purposes of accounting, as below:

PRODUCTIVE

UNPRODUCTIVE

1.

Gang Canal.

1.

Jawai River Project.

2.

Kotah Barrage and Irrigation Project.

2.

Ghaggar Canals.

3.

Bhupal Power Project.

3.

Irrigation Tank in Jaipur, Udaipur and Ganganagar Circles.

4.

Bhakra Project.

5.

Lift Irrigation Schemes.

Classification of Drainage Works

15. - (i) If the drainage work is necessary to remedy damage solely due to a canal, its cost should be charged wholly to the capital account of the canal 68-A Irrigation Works.

(ii)

If the drainage work is required for purposes of agricultural improvement, and, if the land to be benefited has not been injured by the canal, the cost of the work should be charged wholly to 18A.

(iii)

If the drainage work comes partly under I and partly under II, i.e., if, in addition to remedying damage done by the canal, it improves the land as compared with its former condition before the canal was made, half the cost of construction should be charged to the capital cost of the canal 68-A half to 18-A. The cost of the subsequent maintenance and repairs should be charged in the same manner as above.

Section III

Initial Accounts Measurements and Bills

16. - (i) The measurement book is the basis of all accounts, and it is the duty of the Executive Engineer to see that the instructions printed on the fry-leaf. and those given below and in the P.W.D. Financial Hand Book Chapter XIV, are strictly observed. He should himself make a few check measurements and otherwise satisfy that the rules are observed by his staff. A note regarding all checks made by him should be recorded in the measurement books concerned, and even in cases where he does not actually check with a tape, he would make a note of his acceptance of measurements of works inspected by him.

(ii)

The entire responsibility for the correctness of measurements and calculations will rest with the sub-divisional officer who should satisfy himself by inspection, and, where necessary, by measurements, of the correctness of all bills before signing pay orders.

(iii)

Before the bill is paid the arithmetical calculations must be checked by the sub-divisional clerk, who shall certify at the foot of the measurements "Calculations checked by me". When signing the bill, the sub-divisional officer (whether as officer passing the bill, or as officer preparing it, when he is not the paying officer) should also sign at the foot of the measurements.

(iv)

If the work has been carried out in accordance with detailed sanctioned plans and estimates or standards repairs estimates, it will suffice if the officer making or ordering payment inspects the work done, and compares it with the

entries in the estimate, making measurements only of additions to or deviations from the approval estimates. Foundations should always be carefully checked before they are covered up.

(v)

In the case of works for which, owing to their nature, accurate detailed estimates cannot be prepared before they are undertaken, measurements should, as a rule, be made by the sub-divisional officer himself, before paying the bills. In very special cases where the sub-divisional officer cannot make measurements before payments he shall state the reasons on the bill certificates, and shall satisfy himself by rough check-measurements or otherwise that the work done is approximately, if not exactly, in accordance with the details entered in the measurement book. He shall himself make final measurements as soon as possible thereafter, and shall attach a certificate of final measurements to the original bill.

(vi)

When it is desirable to make payments for works actually executed before detailed measurements have been taken, such payments may be made on the certificate of a responsible officer (not below the rank of divisional officer) to the effect that not less than the quantity of work paid for has actually been done. The officer granting such a certificate will be held personally responsible for any resultant over payment. Final payments must not be made without detailed measurements.

Upkeep Custody and Recording of Measurement Books

17. - (i) As soon as he receives new measurement books, the accountant shall give each a consecutive serial number according to the register of measurement books and shall print this number on the cover in bold figures. When issuing a measurement book he shall enter in the register the name of the person to whom it is issued and the date of issue. Whenever an officer or subordinate is transferred the name of the person to whom he makes over his measurement book shall also be entered in the register. The sub-divisional officer shall supply this information as soon as a measurement book is transferred to a new holder. The Accountant shall leave space between the entries in the register of measurement books to allow of a record of transfers being kept.

(ii)

When indenting for a measurement book, the sub-divisional officer shall report the name and designation of the person for whom it is required, and the divisional accountant shall enter these in the measurement book before issuing it. He shall under no circumstances issue blank space measurement books to sub-divisional officers. The number of measurement books in use in a sub-division should not be excessive. Without the special orders of the Executive Engineer no action-holder may have more than two measurement books in use at one time.

(iii)

In order to keep a check on the measurement books in the sub-division, a certificate in the following form shall be submitted monthly with the sub-divisional accounts:

Sub-Division

Division

Canal

Return of measurement books for the month of:-

Balance at the beginning of the month

Received from divisional office during the month

Total

Returned to divisional office for final record

Balance at the end of the month

Remarks

5(Numbers 104, 105, 110, 149 and 100)

*2(Numbers 165 and 166)

7

1Number 105

6(Numbers 104, 110, 149, 160, 165 & 166)

*Received with Executive Engineer's No. Dt.

Returned with sub-divisional Officer No. Date

Certified that all completed measurement books with the exception of those required for reference, have been returned

for record.

Sub-Divisional

Officer

Dated

The sub-divisional officer shall receive a similar certificate from the holder of measurement books under him, along with the monthly stock papers.

(iv)

The divisional officer shall supply each sub-divisional officer with a roster showing which measurement books will be checked in the divisional office in each month and the sub-divisional officer shall submit books for check every month on prescribed dates in accordance with this roster. The Accountant shall check a number of each measurement book, recording his dated initials on each page checked. He shall then submit the books to the divisional officer with a note of any infringement of rules noticed by him, and, when the latter has passed orders, shall promptly return the books to the sub-divisional officer together with his observations and the divisional officers for compliance.

(v)

The Accountant shall give a receipt for each measurement book received in head office and shall demand a receipt for each measurement book received in head office and shall demand a receipt for each measurement book issued.

(vi)

On the occasion of change in a sub-divisional charge, it is the special duty of the relieved officer to see that all measurement books in the sub-division are recorded in the transfer papers and of the relieving officer to see that the entries paper correspond with those in the sub-divisional register. It is the duty of the sub-divisional officer to see that measurement books in possession of a relieved subordinate are handed over to and acknowledged by the relieving subordinate, who shall submit a receipt to the sub-divisional officer stating the number of the measurement books received by him.

The receipt shall be checked by the sub-divisional clerk, and both he and the sub-divisional officer shall date and initial it. The sub-divisional clerk is responsible for immediately bringing to the notice of the sub-divisional officer all discrepancies in the receipt. The relieved officer shall also obtain a receipt for the books he makes over to his successor. He shall note its transfer immediately after the last entry in each measurement book and shall sign his name. The relieving officer shall sign his name in each book below that predecessor, and shall date his signature. When the transfer papers are being checked in the divisional office, the accountant shall certify that the number of the measurement books are correctly noted in the divisional register and the name of the officer to whom the books have been transferred.

(vii)

If a measurement book is lost, the holder shall at once report the loss to the sub-divisional officer and the latter shall at once make an investigation and send a detailed report to the divisional officer. The divisional officer shall make a further investigation, if necessary, and shall report the case to the Superintending Engineer. The Superintending Engineer shall personally investigate the case and report to the Chief Engineer that the loss is or is not due to the negligence of a particular person. Even if the loss is proved to have been beyond the control of the holder, a note of the fact the measurement book has been lost shall be recorded in his personal registers and if more than one such entry has been made, the fact shall be specially brought to notice in his annual report.

(viii)

All completed measurement books shall be returned to the divisional office for record. It is the duty of the divisional officer to see that a measurement book is returned for record within a reasonable time of its first issue, and to ensure this he shall periodically examine the register. The recorded books shall be tied in bundles by years. A slip shall be placed at the top of each bundle showing the number of books in each bundle, and the year of return as recorded in the register. The return of any completed book issued for reference must be carefully arranged for.

(ix)

The Superintending Engineer, either when he inspects the divisional office, or otherwise, shall examine the divisional register of measurement books at least once a year, and sign it in token of having done so, recording therein any remarks he considers necessary. He shall see that sufficient check measurements are made by divisional and sub-divisional officers.

Imprest Accounts

See P.W.D. Financial Hand Book, Chapter VII.

18. - (i) An imprest account shall be recouped or closed at intervals not exceeding one month's duration. As far as possible, an imprest should be recouped during or immediately after inspection of the imprest holder's charge by the recouping officer. In March, the account should be as complete as possible for that month:-

(ii)

A detail of the cash balance should be shown in each imprest account thus:

Rs.

Rs.

(1) Cash in hand.....

(2) Minor imprest with-

A

B

C

Balance

(iii)

Minor imprest, of small amounts, with the approval of the sub-divisional officer, may be given by the Section-Holder to CHAUKIDARS and others, and will be dealt with in his cash account in the same way as the main imprests are dealt with in the sub-divisional cash book.

Measurements-Percentage of Check by Assistant Engineers and Executive Engineers

CLASS OF WORK

PERCENTAGE OF CHECK BY

Executive Engineer

Assistant Engineers

(a) Works carried out by Contractors

5 p.c. of measurements

10 to 15 p.c. of each subdivision.

(b) Work done by Departmental labour

1 to 2 p.c. of measurements

5 to 7 ½ percent of each sub-division.

(ii)

All cases of over measurements exceeding 10% should be reported at once to the Superintending Engineer, but, this does not mean that over-measurements below this percentage may be condoned. The Executive Engineers are enjoined to take action against the offenders in every case of over-measurement brought to their notice when in their opinion the over-measurement has been made deliberately. Habitual offenders should be reported to the Superintending Engineer even when the over-measurements are less than 10%.

(iii)

The entire responsibility for the correctness of measurement and calculations will rest with the Sub-divisional Officer who should satisfy himself by inspection, and where necessary, by measurements, of the correctness of all bills before signing pay orders.

(iv)

In the case of works for which owing to their nature accurate detailed estimates cannot be prepared before they are undertaken, measurements should, as a rule, be made by the sub-divisional officer himself before paying the bills. In very special cases where the sub-divisional officer can not make measurements before payments, he shall state the reasons on the bill certificates and shall satisfy himself by rough check- measurements or otherwise that the work done is approximately, is not exactly, in accordance with the details entered in the measurement book. He shall himself make final measurements as soon as possible, thereafter and shall attach a certificate of final measurements to the original bill.

(v)

The check measurements should be made in the measurement book in which the original measurements are recorded. The office checking the measurements will verify the length, breadth and height of each set of measurements recorded by the subordinate and verify each measurement found correct by a 'tick' mark and correct over his own dated initials

wherever the measurements are wrong. Except for un-avoidable reasons which should be stated, the measurements must be checked in the presence of the subordinate who made them original as well as of the contractor, whose dated signature should be taken in the measurement book in token of acceptance. The officer checking the measurements will record a certificate to this effect in the measurement book under his dated signature indicating clearly the items checked by him.

Section IV

Miscellaneous

Exemption from Establishment and Tool and Plant Charges

20. - When it is desired to encourage the construction of water courses by Government agency at the cost of the cultivators, in order to secure efficiency of distribution, economy in the use of water or rapid development of irrigation, the charges for establishment and tools and plant should ordinarily be waived. In other cases where the above reasons do not apply, but which may be special as regards cost of circumstances, the desirability of the concession may or may not be so pronounced. In all cases, however, orders of Government should be obtained for remitting or levying the charges in question. See appendix X of the P.W.D. Financial Hand Book.

The following works are exempt from the levy of establishment and Tools and Plant charges:-

(i)

Gul culverts costing less than Rs. 1,000 constructed by the Department.

(ii)

All repairs to water courses undertaken as contribution works costing less than Rs. 1,000.

(iii)

Any repairs to canal banks and roads necessitated by the carting of work from Canal plantations by authorised forest contractors, and undertaken as a contribution work, the cost of which is less than Rs. 1,000.

(iv)

BONAFIDE private work costing not more than Rs. 100 in each case, done in a canal workshop, for employee of the Irrigation Department.

Exemption From Supervision Charges

21. - The following will be exempt from the levy of supervision charges:

(i)

Materials supplied by the Irrigation Branch for works, the entire cost of which is debitable to the Irrigation Branch.

(ii)

Stock issued for the construction of Gul culverts or for contribution work

Depreciation of Tools and Plant

(a)

Plant and Machinery.

(b)

Navigation Plant.

(c)

Camp equip page.

22. a register should be maintained in each sub-division and division in the form given below for calculating the value of each article on the 1st of October every year. The register should be submitted by the sub-Divisional Officer along with the tools and plant return.

23. Depreciation should be calculated at the following rates:-

When in use percent

When standing idle percent

(i)

Prime Movers, dynamos, electrical motors.

12

6

(ii)

Mortar mills, trucks, pump, workshop machinery, and all ordinary tools and Plant.

10

5

(iii)

Railway track, Cranes, and lifting gear

5

5

(iv)

Camp equipage

20

10

An article will be considered to have been in use if used for more than two months in the year.

24. Before a Machinery is lodged in a canal workshop or godown it should be thoroughly overhauled, and should then be valued at a fair price by the divisional officer in charge of the workshop or godown in consultation with the Superintending Engineer. Thereafter no depreciation need be debited so long as the machine remains in through working order. The price so fixed should be reviewed every second year.

Transfer of tools and Plant from One Division to Another

25. - (i) Article which are not in good condition must not be transferred till the receiving officer has been informed of their condition and has agreed to take them.

(ii)

Every article must be properly examined by a responsible officer or subordinate before despatch and. in all cases of large consignments, the examination must be made by the sub-divisional officer himself. All parts or articles which are fragile or small should be carefully packed in cases. The condition of the articles, together with complete details, must be entered on a list and certified by the examining officer. In the case of engines and similar items, the number, description and condition of loose parts such as brasses, etc. should be carefully checked, and a note made of any parts missing. The list should be forwarded in good time to enable the receiving division to check the consignment on arrival before taking delivery. If the above instructions are not attended to. the despatching division will be held responsible for all items not received, or received in a damaged condition.

(iii)

If a machine part is missing, the book value of the machine must be reduced by the market cost of the missing part. Allowance for wear and tear of working parts, such as brasses, which, though worn, are still serviceable, is included under the depreciation percentage fixed in paragraph (2) above. All railway materials should be measured in miles of complete tracks and the price of sleepers, fish plates, bolts and nuts missing at the time of transfer should be deducted from the total value at current market rates.

(iv)

In the case of a difference of opinion between two Executive Engineers with regard to the working condition of a machine transferred from one division to the other, the matter should be reported to the Superintending Engineer for orders. If two circles are involved and the two Superintending Engineers concerned do not agree, the case should be referred to the Chief Engineer.

(v)

The rules given above govern transfers of tools and plant in all ordinary cases. In special cases, orders of higher authority should be obtained. The guiding principle should invariably be that a work receiving material from another work should pay a reasonable price for it. at the market rates prevailing at the time of the transfer.

(vi)

Articles of tools and plant may be transferred from one division to another free of cost unless the capital and Revenue account of the receiving division is classified separately from that of the issuing division, in which case the latter division, shall issue a transfer debit to the former.

Loan Tools and Plant to Contractors

26. - (i) Contractors ordinarily will provide all the tools and plant required for the execution of works contracted for by them.

(ii)

If any tools and plant are to be supplied by Government, the contract agreement shall specify them, and unless they are

to be supplied free of cost, shall state the charge that will be levied for hire and depreciation.

(iii)

During the progress of a work it may be found necessary or advisable to supply the contractor with tools and plant not provided for in the contract. Should the rates have been based on the assumption that material will be carted by the contractor at his own expense, and if, subsequently, he is supplied by Government with railway lines and tip trucks on loan, in order to facilitate his work, he should be required to pay for their hire and depreciation at the following rates:

(a)

Prime movers, dynamos and electric motors.

12 p.c. per year or part of a year.

(b)

Mortar mills, trucks, pumps, workshop machinery and all ordinary tools and plant.

10

-do-

(c)

Railway track, cranes lifting gear.

5

-do-

(d)

Camp equipage

20

-do-

(iv)

The contractor will be responsible for the carriage to site of the tools and plant supplied, the laying and maintenance of all railway tracks, the erection and working of all machinery and for the dismantling and carnage back at the conclusion of the work.

(v)

The contractor must return, at the site fixed by the Executive engineer, a tools and plant supplied to him, in good condition, due allowance being made for fair wear and tear, and must replace, at his own expense, all broken and missing parts, such as fish plates, axle boxes, etc.

Capital and Revenue Account of Government Buildings

27. - (i) To enable the Accountant General's office to check the revenue charges in the capital and revenue accounts of Government buildings, each rentable building should be treated as a separate sub-work in the abstracts and Schedule of expenditure submitted to that office.

(ii)

When the building is occupied partly as a residence and partly as an office, the expenditure on annual repairs to each portion of the building need not be shown separately in the Schedule of expenditure: but the total outlay on the whole building should be distributed to the capital and revenue accounts proportionately to the capital costs of the office and residential portions.

(iii)

The following certificate should be signed by the Executive Engineer at the foot of the annual capital and revenue accounts of residential buildings which he submits to the Accountant General on July 21 for checks:

"Certified that with the exception of buildings referred to in appendix II of the Account Code Volume IV all buildings, which are used as residences, wholly or in part, rent-free or on payment of rent, have been shown in this return whether they are the property of Government or have been hired by Government".

Section V

Contract

See General Financial and Account Rules and P.W.D. Financial Hand Book for instructions to Officers entering into contracts or agreements on behalf of Government, or issuing "work orders".

Correspondence with Contractors

28. - In order of safeguard the interests of Government, and to avoid troublesome law suits officers should have a

general acquaintance with the provisions of the law affecting contracts and with such laws as the Indian Evidence Act and India Limitation Act, a general knowledge of which is required in most cases of disputes over contracts. Officers are advised to read the Contract Manual published by the Government of India. It would of course, be out of place for Executive Officers to attempt an elaborate study of the law, but most disputes can be avoided if officers take elementary precautions.

In the Selection of Contractors

29. - (i) The contractor should

(a)

be of good character,

(b)

possess adequate funds and command of labour,

(c)

be competent as regards knowledge of the work.

(d)

have the necessary health and leisure to attend properly to the work,

(e)

preferably tender in his individual capacity. The labour expended by an officer in verifying these particulars is labour well bestowed and to ignore them is to court disputes and disaster.

A Manual for the guidance of officer of the Public Works Department in their relations with contractors by E.P. Henderson Esq., I.C.S., Part I published by the supdt. Government Printing, India, Calcutta, 1910.

(ii)

If a person tenders as an agent for an absent Principal, or for a firm, it is still more necessary to verify the above particulars. The officer must satisfy himself that the person has legal authority to bind those whom he purports to represent. It is a good plan to insist on an interview with the principals or absent partners before deciding if they are suitable parties to the proposed contract. Speaking generally, it is not desirable to give contracts to petty "Firms".

In the Issuing of Contracts

30. - (i) Officers are forbidden to issue contracts except on the prescribed form suitable to the class and value of the contract.

(ii)

Some of these forms contain a great deal of legal phraseology, and if the contractor does not English, the purport of each clause should be explained to him, and a note should be made that the contractor apparently understood the provisions.

(iii)

In the case of contracts which refer to samples e.g., supply of kankar to a sample, or supply of building stone to sample the custody and identity of the samples demand careful attention, especially, when officers are transferred. The issue of such contracts is deprecated. Contracts should be by specification as fair as possible.

During the Performance of Contracts

31. - (i) In their relations with contractors officers must always bear in mind the danger of possible chicanery on the part of the contractor. If it is necessary to give an order to contractor in connection with his work, the officer must fully consider whether or not the order is a modification of the contract. For example, if according to the original contract the whole work has to be completed by a certain date under heavy penalties and a modification is introduced which increases the amount of work to be done without doubt the serious question will subsequently arise whether the modification did not tacitly amount to an abandonment of the time condition. Accordingly, it must be agreed and recorded in explicit terms by what period, if any, the time clause is to be extended.

(ii)

it is important that contractors should be promptly called to account if they are seen to be deviating from the contract. In-action is likely to be interpreted as acquiescence. Forbearance is not to be confused with acquiescence, but if it is desired to make a concession to a contractor, no room should be left to twist it into a waiver of legal rights. Whatever concession of any sort is made should be categorically limited in clear written terms to its true extent and be clearly specified as without prejudice to the right to enforce the contract in its other elements: and the contractor must be made to understand that, unless the concession is accepted on these terms, it must be deemed to be withdrawn altogether.

(iii)

The greatest, practicable warning of enforcement of a penalty should always be allowed. A contractor may be honestly desirous to do well, but may himself be deceived by his agents. Timely warning may enable him to set matters straight. It is never expedient to threaten vainly. If the contractor has been fairly warned that in a certain event he will lose his contract, the threat should be enforced if the event occurs.

(iv)

It is important that all orders and communications to contractors should, as far as possible, be in writing or recorded. It is advisable to make a brief note in a note book at the time of every fact which materially bears on the contractors present and future legal position. It is not suggested that every common place remark to every contractor at site of works should be noted down or that, a detailed record of every interview should be kept. In laws suits over contracts Government are often in a very weak position owing to the lapse of time and transfer of officers. All sorts of issues may be raised and statements made by the contractor which may be false, but which cannot be rebutted by officers relying on memory alone. The importance of having contemporary record of some kind of every material fact cannot be too strongly emphasized.

(v)

The above notes must not be taken to mean that officers should not be accessible to contractors. They are simply meant to safeguard the interest of Government in the event of disputes. Divisional Officers should make themselves accessible to their contractors at their offices, and make their sub-divisional officer do likewise. At the same time the divisional officer should be most careful at such interviews not to weaken unduly the sub-divisional officer's authority.

On Completion or Abandonment of Contracts

32. - (i) If the contractor has any claims, he should be asked to put them in writing, specifying the amount and the grounds of each item. It is often desirable, for the sake of peace, to make propositions of settlement to the other side. An offer of compromise, however, not expressly protected from disclosure in court, would be regarded as some evidence of liability. The same construction might be put on other acts never really intended by the doer to imply any admission. All offers of compromise and all correspondence in connection therewith must be headed "WITHOUT PREJUDICE" or one of the former of letter in the Contract Manual, appropriate to the case, should be used.

(ii)

Before definitely admitting or partially admitting one item of a claim, the officer should consider if the action will have any indirect effect on other items of the claim, or lead to new claims being put forward.

(iii)

Progress of work liable to be washed away should be noted in the note book of the officer incharge, so that claims afterwards made can be checked, e.g., collection of materials in a river bed, or river training works.

(iv)

When a contractor does not accept his final bill within a reasonable time a memorandum of the case should be drawn up, and this together with all documentary and other evidence should be carefully preserved and locked up.

(v)

It is a well known device of dishonest contractors to wait until an officer is transferred or until the period prescribed in the Indian Limitation Act has nearly expired in the hope of obtaining some admission from an officer unfamiliar with the case and thereby extending the period of limitation in the hope that towards the end of that time Government will not be in a position to produce evidence to rebut extravagant claims. It is most important, therefore, that all communications should be headed "WITHOUT PREJUDICE".

(vi)

All correspondence between Government officers in connection with dispute is confidential particularly the opinions given by the legal advisers of Government and must not be divulged to contractors or other persons.

(vii)

For the conduct of suits to which Government is a party, please see instructions issued by the Government.

Claims by Contractors

33. - In order to avoid the accumulation of claims by a contractor and their production at a time when check is impossible the following directions should be observed:

(i)

In all cases on the occasion of the transfer of a sub- divisional officer all contractors who have not been settled up finally

should be asked to put in a statement of their claims. The relieved officer will report on the claims, and the divisional officer should pass order stating if the claim is established or not, and the amount due to the contractor on each item.

(ii)

In the case of construction work such statements should also be taken at the conclusion of each working season, and the divisional officer should pass orders before the opening or the next working season.

Claims Against Companies or Administrations

34. - (i) In case of shortage or loss of goods in transit a complaint should first be addressed to the traffic manager or divisional Superintendent of the railway station, and correspondence with, the railway in connection with the case should normally be addressed to this officer.

(ii)

Although railway companies do sometimes meet claims made on their traffic Superintendents. Officers must, to meet a possible defence of invalid notice, serve a formal notice of claim on the General Manager within six months of the delivery of the goods to the railway company i.e. within six months of the date in the railway receipt. In the case of goods passing over more than one railway system, a separate notice of claim should be served on the General Manager of each system.

(iii)

Officers who have to deal with the receipt and despatch of railway consignments should take special care that claims are preferred without any avoidable loss of time. Any delay resulting in a claim becoming time barred will render the officer liable to make good any loss that may occur.

(iv)

If the claim is not met, and it seems desirable to institute a suit, the procedure given in chapter VII should then be followed.

(v)

Subordinates taking delivery of goods should be warned against giving up railway receipts and signing the station master's delivery book without previous examination of the goods. If any packages are broken or missing or if the goods do not otherwise appear in order they should be weighed in the presence of a responsible railway and an appropriate remark should be made both on the railway receipt and the station master's delivery book. Neglect to observe this elementary precaution means that the railway company will plead that the goods were delivered under clear receipt, and any case against them will fail.

Section VI

Stores and Tools and Plant Supply of Stores and Preparation of Indents

35. - For rules regarding the supply of stores and instructions for the preparation of indents, see chapter VIII of the P.W.D. Financial Hand Book.

Surveying and Mathematical Instruments

36. - (i) The scale of surveying and mathematical instruments for divisional officers shall be as given on the succeeding pages. If necessary, shortages of instruments in any division shall be made up temporarily from the excesses in other divisions with the mutual consent of the divisional officer concerned. The sanction of the Chief Engineer should be obtained before purchasing articles in excess of the scale.

(ii)

All repairs and adjustments of instruments shall be entrusted to the National Instrument Factory, Calcutta. In urgent case's the divisional officers may entrust repairs and adjustments to local firms if he is satisfied that they can execute the work efficiently.

Inspection House Furniture

37. - (i) The scale of furniture for I and II class inspection house, shall be as below. This shall not be exceeded unless with the special sanction of the Chief Engineer. The full scale of furniture need not be purchased for inspection houses, which are seldom used or do not require so much furniture.

Name of Articles

No.

Remarks

Beds

2

Chairs (Ordinary)

6

Chairs (Easy)

2 One without long arms.

Tables (large)

3

Tables (small)

2

Durries

3 One for each main room and bed room.

Commodes

2

Chamber utensils (enamelled)

2

Tubes

2

Wash-hand basins (enamelled)

2

Hat racks

6 sets

Enamel jug

1 per bathroom.

Teapots

2

Mirrors

2

Door Pardahs

5

Charpoys (for use of camp establishment)

Average of 10 per I.H.

The Executive Engineer shall allot charpoys to inspection houses in accordance with their importance. The total number of charpoys in any division shall not exceed the number permissible at the rate of 10 per inspection house.

Wooden box with Padlock

1

The box shall be large enough to accommodate the inspection house curries when folded up.

Pictures

Reasonable number

To be provided from annual repairs grant.

(ii)

The scale of electric table fans and table lights in electrified inspection houses shall as below:-

Table fans

Table lights

Ordinary inspection house

2

1

Special inspection house

2

2

(iii)

Divisional officers shall sanction, subject to the above scale, estimates for furniture to the extent of the powers vested in them as regards original works and repairs. The estimate shall be debit able to the head XIII A-the cost of a first furnishing being charged to Extensions and Improvements, K. Buildings, and all subsequent expenditure to Maintenance and Repairs, K Building. The estimate shall not include the cost of GHARAS AND CHICKS, which are chargeable to establishment contingencies.

(iv)

Estimates, for furniture required for temporary buildings, shall be submitted to the Chief Engineer for sanction.

(v)

All inspection house furniture shall be treated as "special" tools and plant, vide chapter VIII of the financial Hand Book, volume VI. A correct list of the furniture shall hung up in each inspection house. All transactions affecting receipt and issue of such furniture shall be shown in P.W.A. forms 13 and 14 grouped under the head of account to which its cost was originally debited. The tools and plant register shall show furniture at each inspection house separately to facilitate check by the Accountant General with the sanctioned scale.

Office Furniture

38. - All furniture in the divisional, sub-divisional and zilladari offices, telegraph, and telephone offices and the office of the deputy Collector shall be classed as office furniture, and charged to tools and plant. Office furniture shall be used only in the offices for which it is purchased. An officer may use part of it in his residence if it is necessary for him to do office work at home. The scales for the various offices shall be as below:

(i)

Furniture for vernacular offices divisional, sub-divisional and deputy Collectors.

NUMBER

Name of articles

Divisional Office

Sub-divisional Office

Collector's Office

Desks

4

-

-

Wooden Chaukis (O 'x' 4'x' ½)

4

-

-

Durries

4

1

1

*Qualeens 3'x2 ½'

4

1

1

Wooden boxes (3' x ½' x ½')

1

1

1

Office box (18' x 12' x 9')

-

-

-

Petrol boxes (23' x 15' x 13')

2

1

2

Diet lanterns

2

1

2

Swords

-

-

3

Gong with tripod

-

-

1

Time-piece

-

-

1

Paper tray

-

-

1

Folding book case (2 ½' x 2 ½' x 12")

-

-

1

Stamp punch

-

-

1

Padlocks of various sizes

1

1

1

Folding Table

-

-

1

Folding Chairs

-

-

2

*Cost not to exceed Rs. 7/8/each.

(ii)

Furniture for telegraph, telephone and zilladari offices.

Name of articles

Telegraph office

Telephone office

Zilladari Office

Large table

1

-

1

Small table

-

1

1

Desk

-

-

1 for muharrir.

Ordinary Chairs

2

-

2

Durries

-

-

2 One for centre room & one for muharrir's
room

Patrol boxes

-

-

2

Cash chest

-

-

1

Almirah

1 for battery

-

1 for records

Padlocks

2

1

4

Box for records

1

-

-

Clock

1

1

-

Small box

1

1

-

Stool

-

1

-

Newar Bed

-

-

1

Hat rack

-

-

1

Charpoys

-

-

6 Zilladars, signallers & telephone munshres

shall be responsible

Lanterns

1

1

2 that these articles last a reasonable time.

Camp Furniture

39. - The purchase of camp furniture out of Government funds should be strictly confined to the articles enumerated in the list given below. Officers incurring expenditure on this account should in no case buy the articles specified in the list in greater number than is necessary. Officers purchasing for camp use articles not included in the list given below are liable to make good the cost to Government.

List of Articles Purchase of which from Government Funds is Permissible

(1)

Tables for office use.

(2)

Small tables or teapoys.

(3)

Bookshelves or racks.

(4)

Travelling cases for books.

(5)

Chairs (office).

(6)

Stationery cases.

(7)

Boxes for files, stationery and miscellaneous items.

(8)

Baize table covers.

(9)

Kajawas, salitahs and camel trunks where camels are used (or conveyance of Government property).

(10)

Dak Sacks.

(11)

Despatch boxes.

(12)

Waterproof sheets (in the hills only for the use of coolies or ponies employed on Government work).

(13)

Hand lanterns (hand lanterns do not include special makes of lanterns but refer to ordinary lanterns such as popular Diets hurricane lanterns).

(14)

Petromax lantern for officers who have specially been permitted by Government, to use them.

(15)

Angethis (in the bill districts only).

(16)

Iron water-vessels (gagras or baltis).

Government Tents

40. - (i) Divisional officers shall be responsible taking proper care of all Government tents in their divisions. They shall periodically inspect the tents to see that they are kept in thorough repairs, are provided with 'gunny' packing covers and are carefully looked after whether in use or not and that the date of issue is already marked on each tent. Superintending Engineers, when inspecting officers and divisions, shall note the state of Government tents and whether proper care appears to have been taken of them.

(ii)

Tents and shouldaries should last about ten years. When submitting estimates for tents, divisional officers shall report the dates of purchase of the tents which they wish to replace. No estimates for replacing a tent that has been in use for less than seven years shall be sanctioned unless the divisional officer gives special reasons for doing so.

(iii)

The following shall be maximum scale of tents allowed for touring officers. Superintending Engineers may cut down the allowance at their discretion whenever necessary. Executive Engineers may reduce the number and size of tents allowed to camp establishment. as required.

I.

(a) Personal use of Superintending Engineers.

Two Swiss Cottage tents 14' x 14'

Two Swiss Cottage tents 12' x 12'

The light shikar tent 12' x 12'

Four shouldaries 15' squares.

(b) Camp office Establishment

One shouldary 16' square.

Two shouldary 12' square.

II.

Personal use of divisional officers on survey of construction where tents are necessary.

One Swiss Cottage tent, 14' square, with square ends and double fly to both verandah and bathroom.

One Swiss Cottage tent, 12' square, as above.

One Swiss Cottage or 'shikar' pattern double fly sleeping tent, about 10' square.

III.

(a) Personal use of divisional officers in revenue divisions when specially sanctioned by the Chief Engineer.

One Swiss Cottage tent, 14' square as for II.

One Swiss Cottage or 'shikar' Pattern, double fly sleeping tent, about 10' square.

One necessary tent, 4' square.

Two shouldaries 12' square.

(b) Camp office establishment for II.

One shouldari 16' x 15' and 12' square.

IV.

Sub-divisional officer in construction divisions if required to four in tents.

Same as III.

V.

Camp office establishment of sub-divisional officers in revenue sub-divisions.

One shouldari 16' x 15' and one 12' square.

(iv)

One division may lend tents temporarily to another division when required but such tents shall continue to remain on the books of the former.

Disposal of Old Tools and Plant

41. - (i) When petty articles of tools and plant, such as Phaorahs, Kudals, pick-axes, ramers, axes, lanterns measuring tapes etc. become unfit for further use, the Executive Engineer shall not sell them by auction, but shall have them thoroughly broken up in his presence and dispose of them in such manner as to make it impossible for any one to substitute for serviceable articles of tools and plant.

(ii)

Office furniture and tenants which have become unfit for further use shall be sold by auction.

(iii)

Old arms shall be returned to the district magistrate.

Statement Showing, Sanctioned Normal Scale of Surveying and Mathematical Instruments Allowed for Divisional Office

1.

Chain, measuring 100 ft.

One per Section

2.

Chronograph stop watch.

One for each Section, and one for each S.D.O. and due for each Executive Engineer.

3.

Compass prismatic (with stand).

One per division.

4.

Curves. French (in box containing 12 curves).

One

5.

Drawing instrument box large, full set.

2

6.

Drawing instrument box small, half set

One per sub-division.

7.

Drawing boards.

3 per division

8.

Ferro-type apparatus

1 per division

9.

Levels with stand

One per Section

10.

Levelling staves (Pairs)

One per Section

11.

Parallel ruler brass or Metal, 24", 8" and 12"

Three

12.
Plan tables of kinds
One for each sub-division
13.
Planimeter
One
14.
Pantograph
One
15.
Set squares] Full set
Two
in boxes] Half set.
One per Sub-division.
16.
Set squares, Single set.
One per Section.
17.
'T' Squares
Two per Division
18.
Stencil plates, plain block with figures and miscellaneous
sets.
5
19.
Straight edges, brass or metal 36".
1
20.
Theodolite with stand
1
21.
Technometric plane table
X
22.
Road pen
X
23.
Magnifying glass
1
24.
Beam Compass
1
2.
Current meter
X
26.
Drawing pens
X
27.
Protractor, circular (brass or metal)
X

28.
Scales architectural and other sets

X

29.
Scales, boxes, six scales in each (Box wood)

2

30.
Scales, card
One per each section.

3.
Scale, miscellaneous single

5

3.
Area comb

X

33.
Slide rule

1

34.
Binoculars

X

35.
Curves railway in bok

X

36.
Spirit levels, 12"
One for each section

37.
2' Rulers
One for each section

Chapter V
Office and Other Procedure
Section I

Project Estimates, Plans and Completion Reports Preliminary Procedure in Regard to Projects

1. - When submitting an irrigation or drainage project, or proposals for alterations to existing systems of irrigation or drainage, the divisional officer shall also communicate the opinion of the district officers concerned on the desirability of, or the necessity for the projected scheme. He shall request the district officer to report in so me detail on the nature of the land, the crops to be irrigated, the willingness or otherwise of cultivators to avail themselves of the projected facilities for irrigation and the adequacy of the bridges which it is proposed to construct. The district officer will also examine the forecast of revenue in the light of all the information at his command. His countersignature on the estimate of the growth of irrigation project) will be held to mean that he has done so.

2. When projecting drainage works that come under class II or III, the opinion of the commissioner and the collector should be invited on the following point:

(i)
To what extent the canal is responsible for the necessity of the drainage work.

(ii)
Are the owners of the land to be benefited willing to pay a lumpsum towards the cost of the drain, and, if so, what amount, and are they willing to give the land for the drain free of cost?

3. in the case of small drainage works embankments for holding up water, or other similar work of agricultural improvement, which a district officer may propose to carry out for the benefit of a village or group of villages, he should consult freely the divisional Officer, who should assist him in selecting suitable sites, and preparing plans, designs and

estimates of cost.

4. It is desirable that canal and revenue officer should meet periodically to discuss projects for extending irrigation provision grain age, and other matters of local canal administration. Superintending Engineer should, during their tours, arrange meetings for the purpose with the Executive Engineers and Collectors of the districts in their circles.

5. If the construction of a proposed work is likely to affect adversely the interest of any other province, the fact shall invariably be brought to notice in submitting the estimate for the work.

Responsibility of canal Officers for projecting Drainage schemes

6. - (i) Officers of the Irrigation Branch are responsible for proposing schemes for the proper drainage of the country to which their irrigation operations extend, irrespective of whether the necessity for drainage arises from canal works or other causes, and should give assistance to the civil authorities in connection with any drainage which the latter may propose.

(ii)

When a district officer considers that a tract of land (outside municipal limits) requires drainage, he should communicate his views to the canal Divisional Officer and requests him to examine the proposal. The Divisional Officer shall examine the proposal, discuss it with the district officer, and, if required, shall draw up a report on the causes of flooding means by which relief can be afforded, the expediency of the scheme and approximate estimated cost. Detailed estimates need not be prepared at this stage. The divisional officer's report should be forwarded to the district officer who shall, if he considers the scheme should be proceeded with his opinion to the commissioner shall send on the report with his opinion to the Superintending Engineer. If the Commissioner and the Superintending Engineer agree that the execution of the project is inadvisable, the scheme should be returned to the Commissioner for necessary orders. If the Commr. and the Superintending Engineer agree that the Scheme is advisable, the latter will return it to the divisional officer for preparing a detailed estimate, if the probable cost is within the Superintending Engineer's powers of sanction. In all other cases the Superintending Engineer shall submit the scheme for the orders of Government in the Irrigation Branch.

Preparation of Estimates

7. - (i) The submission of a number of small estimates should be avoided as far as possible.

(ii)

Important irrigation projects debitable to capital should include financial statements, in the form standardized by Government of India.

(iii)

No provision should be made for Establishment and tools and plant in Estimates chargeable to Revenue.

(iv)

Estimates for protective works should be accompanied by calculations of the projective value of an irrigated acre, and the permissible outlay per acre.

(v)

Quantities should be given in detail and abstracted in the prescribed form.

(vi)

For all works not directly covered by the Schedule of rates, detailed analyses of rates should accompany every estimate, showing how the proposed rates have been arrived at from considerations of the cost of materials, carriage, labour, etc.

Preparation of Specifications

8. - (i) Standard specifications are laid down in the hand book of "Detailed specifications". If in any particular case alterations or additional specifications are necessary, these should accompany the estimate.

(ii)

In addition to the above, in the case of all important works, the specifications should state the tests to be employed to determine the quality of the various materials to be used on the work.

(iii)

A copy of the Specifications should invariably be sent to the officer in charge of the work.

Estimates for Land

9. - (i) When any work entails the acquisition of land, the divisional officer shall submit with the estimate for the work on land plan a schedule of the approximate areas to be acquired in each village, and an estimate based on the collector's valuation of the probable cost per acre. A certificate signed by the head draftsman, who shall verify the areas and the spelling, must accompany the plan and the schedule.

(ii)

In order to expedite acquisition of land, the competent authority may sanction a separate estimate for the land required, if the project has received previous administrative sanction. He will subsequently incorporate the cost of the land in the final project estimate.

(iii)

Nothing in this paragraph shall be held to prevent the submission of any project to the Chief Engineer for preliminary opinion or provisional without the land plan and Schedule and before completion of the final estimate.

Estimates for Railway and Road Crossings

10. - The procedure for constructing and maintaining works necessary for the passage of canal or drainage water across railway or a road will be as follows:-

Construction of New Works

(i)

In the case of railway crossing, the Executive Engineer shall request the railway authorities to design and estimate the cost of the work, and to enable them to do so, shall supply the following information:-

(a)

General scope of the proposed scheme.

(b)

Waterway.

(c)

Bed level (allowance being generally made for deepening the channel at any future time)

(d)

Maximum discharge likely to pass through the work.

For-Road Crossings

(ii)

The cost of a new work will be chargeable to the source providing the funds for the scheme, and should be included in the general estimate.

Maintenance of New Works

11. - The Irrigation Branch will bear the cost of works specially constructed under I above, but the railway authorities will carry out the necessary repairs in the case of railway crossings and the Irrigation Branch in that of road crossings. Divisional officers will be responsible for bringing to the notice of the railway authorities and damage that may have occurred or be likely to occur to a work by the passage of an excessive discharge through it.

Adaptation of Existing Works

12. - When it is necessary to make use of an existing work for the passage of canal water the officer preparing the project shall:-

(i)

In the case of a railway, supply the railway authorities with the same information as required for a new work, and obtain their consent to the work being utilized as proposed, and their estimate of the cost of any alteration or protective measures that may be necessary.

(ii)

In the case of a road crossing, consult the authorities concerned and obtain their approval after explaining what measures he proposes to adopt to protect the work from the action of the water to be passed through it.

The cost of all necessary alterations and protective measures shall, as in the case of new works, form part of the general estimate of the Project.

Maintenance of Existing Works

13. - The cost of the maintenance of existing works will continue to be born by the Department to which they belong. The irrigation Department will pay for any extra expenditure necessary to protect the works from scour, the actual repairs being carried out in the case of railway authorities and in that of road bridges by the Irrigation Branch Officers.

Maps and Plans to be Submitted with Estimates

14. - (i) Irrigation and drainage projects submitted to the Chief Engineer shall include the following:-

(a)

A contoured map of the country on a scale of 4" to 1 mile, giving all the levels which exist on the shajra sheet;

(b)

The shajra sheet if it is not possible to submit a 4" map;

(c)

An index map on a scale of 1" to mile;

(d)

a longitudinal section on a scale of 4" to 1 mile horizontal, and 1" to 10 feet vertical;

(e)

Designs of works.

(ii)

The index map shall show all the important features of the country as well as those referred to in the executive Engineer's report and the Superintending Engineer's not without unnecessary details. In the case of a distributary, minor escape project, the map shall show a sufficient portion of the parent channel and other works in the neighbourhood to indicate the scope and utility of the project.

(iii)

The shajra sheet shall be submitted to the Superintending Engineer together with a longitudinal section to a scale of 16 inches to a mile horizontal, and one inch to two feet vertical, to enable him to examine the proposals in detail. This longitudinal section may be kept rolled up in a tin for use later in the field as a working plan. The shajra sheet shall show the water sheds of guls, and shall be prepared in accordance with the instructions laid down in paragraph for record plans with the following exceptions:

(a)

Canal and gul alignments shall be shown in blue pencil until the channel has been constructed.

(b)

Drain alignments shall be shown in ordinary pencil until the channel has been constructed.

(c)

Outlets shall be shown by means of red arrows in pencil and details shown in ink on a piece of cloth stitched to the shajra.

(d)

Flow and lift fields shall not be shown.

(e)

Telegraph offices can be omitted.

(iv)

In the case of drainage projects, all maps should have catchment areas distinctly marked on them, and the 4" maps should give ground levels, one furlong apart, along all existing channels in the neighbourhood of the projected drains.

(v)

All plans and drawings as well as abstracts of estimates shall bear the dated signature of every officer through whose hands they pass.

(vi)

On all plans and sections the bench marks utilized for levelling shall be given.

(vii)

Tracings of all designs or proposed works shall be made and only blue prints shall be sent with the project. As far as possible standard type designs of falls and bridges shall be used. In most cases these designs can be adapted to suit requirements by slight alterations of dimensions on the blue prints. This will considerably reduce the labour in preparing fresh designs and tracings.

(viii)

When large number of maps or drawings have to be prepared the book of instructions issued by the Survey of India shall be consulted. The Superintending Engineer shall decide which particular method of reproduction will be adopted.

(ix)

Drawings in foolscap size shall be folded as follows:-

Backwards and forwards in 8" wide folds and then downwards in length equal to that of a sheet of foolscap. Drawings shall not be stitched to the estimate. They shall be placed in a separate envelope.

Record Plans

15. - The following rules define the procedure to be adopted in regard to the preparation and submission of record plans:

(i)

Record plans required for record in the various offices are;

(a)

For record in C.E.I.S. Office.

I. Land plans of all land permanently acquired.

II. Plans of works as noted below:-

Name of work

Plans required

Head works

(1)

Index map.

(2)

General Plan.

(3)

Longitudinal and cross sections of main and subsidiary weirs, bunds, spurs and groynes.

(4)

Detail drawing of canal and river sluices wing walls fish ladder, guide walls, steel gates, bridge, etc.

Main canals, branches and escapes carrying over 500 cusecs.

(1)

Index map

(2)

Longitudinal sections and type cross Section

(3)

All masonry works (one plan will suffice for those works which have been built according to the same type design, the change of each work and ruling R.L.S. being engrossed on this plans).

Branches and escapes carrying under 500 cusecs and all distributaries minors & Drains.

(1)

Index map.

(2)

Longitudinal section.

Storage works

(1)

Index map.

(2)

Longitudinal and cross sections of bunds.

(3)

Sluice (if pakka)

(4)

Escape (if pakka)

(5)

Site plan showing area submerged at F.S.L.

Offices, residence officers an inspection houses not constructed in accordance with a standard type design.

(1)

Lay out plan.

(2)

Plans of main building only.

Note. - In the case of a large canal system separate index maps for each channel are not required, one index map for the whole system will suffice.

(b)

For record in divisional offices. In addition to the plans mentioned above record plans of the following works shall be maintained in the Divisional Office;

Name of work

Plans required

Branches and escapes carrying less than 500 cusecs.

(1)

Masonry works (one plan will suffice for those works which have been built according to the same type design, the chainage of such work and rulling R.L.S. being grossed on this plan).

Distributaries, minors, with their escapes and drains.

(1)

Masonry work; one set of plans in each division will suffice for those works which have been built according to the same type design. Each type is to be numbered and quoted in the schedule of masonry works engraved or all L. Sections. Petty modifications can be ignored.

Buildings, plans of which are not required for Chief Engineer's office.

(1)

Lay-out plan. Plan of building. In each division one plan will suffice for all buildings which have been built according to the same type design. A schedule should be engraved on each record plan showing the sites at which the type design has been adopted.

General map

A general map of the country, preferably a contoured map.

Detailed surveys

Shajra sheets by channels.

(c)

For record in collector's office-land plans of all land permanently acquired.

(d)

For record in sub-divisional office-copies of all plans which are submitted to the Chief Engineer Irrigation's except land plans, index maps and all plans connected with buildings.

(e)

For record with Zilladars 16" project shajra sheets by channels.

(f)

For record with patwaris 16" map by villages.

16. Record plans required by the-various offices shall be prepared as follows;-

Name of office

Nature of plan

How recorded

(a) C.E. I s Office

All plans

On ferro paper.

(b) Divisional Office

Plan of works required for record in the C.E.I's office.

On what man paper, and tracing cloth (see note 1 Below).

Do

Land plans and plans of works not required in the C.E.I's office

On what man paper.

Do

Shajra Sheets.

5-p Cloth (see note 2 and 3 below).

(c) Collector's office

Land permanently acquired

On tracing cloth

(d) Sub-divisional office

All plans which are submitted to the C.I.E.

On ferro paper.

(e) For Zilladars

16" project maps.

On 5-p cloth.

(f) For Patwaris

16" village maps.

On 5-p cloth.

Note.- 1. Record longitudinal sections can be recorded in the divisional office on mounted paper instead of what man paper at the discretion of the divisional officer.

2. No divisional record shajra sheets shall ever be sent out from the divisional office. Copies must be prepared in the divisional office when required.

3. Deputy Collectors are responsible for examining Shajra sheets periodically and keeping them up to date.

17. The following scales should be adopted:-

Large masonry works, e.g. those of head works, main canals and branches.

1"= 10 feet

Other canals and branches

1"=5 feet

Longitudinal sections of channels-

Horizontal

4"=1 mile

Vertical

1"= 10 feet

Straight line land plans-

Vertical

1"=80 feet

Horizontal

8"=1 mile

General map of the country

4"=1 mile

Shajra Sheets

16"=1 mile

Other maps and plans, suitable scale as decided by the Executive Engineer.

18. The following instructions are to be complied with when preparing record plans.

(i)

Index maps shall show the limits of the gross Command of the channel, mileages, masonry works, parganas and district boundaries, important villages and main drainage lines.

(ii)

Longitudinal sections.-In the case of main canals and branches the Superintending Engineer's orders are to be obtained regarding the schedules which are to be engrossed longitudinal section. In all other cases record longitudinal sections shall be the form given at the end of this section.

Note. - The maximum permissible error in a bad bar is plus or minus 0.1 feet.

(iii)

Masonry works-Plans of masonry works should show-

(a)

The correct position of the foundations and the correct depths to which different parts thereof have been carried.

(b)

The position and R.Ls of wells and piles.

(c)

The reduced levels of the deepest points of the work foundations and of all the important parts of the work as actually constructed.

(d)

One or more geological sections in all large or important works.

(e)

Earth lines.

(f)

Reduced level of bench marks and its position.

(iv)

Land plans.

(a)

Land plan's of channels need only be straight line plans and shall not show field boundaries.

(b)

A schedule in the form given below shall be engraved on every record land plan column 5 of this schedule shall be filled by the collector or the land acquisition officer. The record land plan which is recorded in the divisional office shall be signed by one or other of these officers.

Schedule 2

District

Pargana

Village

Area as acquired by Executive Engineer

Area as certified by collector

Authority

1

2

3

4

5

6

Certified

As acquired Executive Engineer.

Collector or L.A. Officer.

.....Division.

(c)

Plans of land acquired in the Government Forest and Government estate should be signed by the Divisional Forest Officer and Superintendent of the estate respectively and the G.O. No transferring the land should be engraved on the plan instead of the usual notification.

(v)

Lay out plans of buildings shall show the north point.

(vi)

Buildings shall show the North Point, Plinth area and roof drainage in addition to full details of the building including foundation details.

(vii)

Alterations to existing works shall invariably be shown on the record plan of the work concerned and a copy of the plan showing alterations shall be sent to all officers with whom the original record plan was recorded.

(viii)

Shajras.

(a)

The following references shall be used on all shajra sheets:-

1. Canals, branches and distributaries, large channels over 20 feet bed width, width to approximate to actual bed width (black and blue).
2. Canals, branches and distributaries, small channels (thick blue line).
3. Guis (fairly thick black line).
4. Artificial drains (fairly thick black line).
5. Main drainage (blue).
6. Limits of gross command (thick green).
7. Limits of gul command (fairly thick green).
8. Water sheds of main channels, distributaries.
9. Outlets (red arrow, with details on cloth sewn to shajra).
10. Metalled roads with mile stones (black and light red).
11. Unmetalled roads with mile stones (black and burnt sienna).
12. Village cart roads (burnt sienna).
13. Railway with station (black).
14. Jhils and tanks (black and blue).
15. Pakka wells (black, blue and red).
16. Rice chaks (grey wash) (neutral tint).
17. Usar (yellow wash).
18. Bhur and send hills (light green wash).
19. Mar (light Indian ink wash).
20. Kabar (light blue wash).
21. Parwa (uncoloured).
22. Rakar (light red wash).
23. Village site or abadi (black and red).
24. Groves and gardens (black and green).
25. Inspection houses (red).
26. Telegraph offices (blue).
27. Survey lines (burnt sienna, the line itself may be in pencil if shown at all on shajra).
28. Contours where specially ordered (light burnt sienna).
29. Contours where specially ordered (at every 5 ft. thick burnt sienna).

(b)

Shajra shall be prepared as follows:-

For Patwaris

By villages.

For zilladars

By doabs commanded by each channel.

For divisional office by doabs commanded by each channel.

(c)

Cloth shall never be stretched so as to make village boundaries coincide, no harm ensues from leaving spaces between the boundaries.

(d)

In addition to survey lines and levels as required by paragraph 5(h)(i)(27), grounds levels shall be recorded clearly & legibly at each furlong along all distributaries and minors,

I. General (i) The officer in immediate charge of a work shall be responsible for the correctness of the working plans and the divisional officer shall be responsible that all deviations from the original plans are shown immediately on the working plans during the progress of the work.

II. As soon as each individual work is completed the record plan shall be prepared by the officer in immediate charge and after being signed dated, shall be sent to the divisional officer. The divisional officer, after satisfying, himself of the correctness of the plan, shall add the words "as executed", countersign and date it and have the final record plan prepared. The final plan shall then be sent to the Superintending Engineer for check and signature. The original plan shall be returned by the Superintending Engineer after which it will be numbered and entered in the register of record plans copies will be prepared in accordance with the rules for record in the various officers and the original plan recorded in the divisional office.

III. Superintending Engineers during their inspection should see that the record plans are maintained and are corrected up-to- date.

Completion reports and excesses over estimates see-Financial Hand Book.

1. Completion report should not be elaborate. A timely report on salient features of the scheme is of more value than a belated but more elaborate one. In a case in which a completion report is not necessary (see Financial Hand Book), the amount of actual expenditure incurred on works, establishment, and plant should be reported to Government.

2. Excesses over estimates will be sanctioned by the competent authority in the statements of items under objection. If the completion report reaches that authority before the statement, he will record his sanction on receipt of the former, and communicate it to the Accountant General immediately, given reference to the sanctioning order in the statement when it is received.

Preparation of Patwaris, Shajras and Khasras

19. - (i) Zilladars shall report to Deputy Collectors, on or before November, each year, the number of shajras and khasras which need replacing, giving the names of the villages and the total number of fields in each village. The Deputy Collector shall verify the necessity of replacement, and send a consolidated estimate of cost for the whole division to the Executive Engineer on or before March, 15 of each year. The estimate will give the names of the villages, the total of field numbers in each village, the length of cloth required and the cost of tracing new shajras and copying and binding new khasras. The Executive Engineer will return the estimate after sanction to the Deputy Collector and give a copy to his peshi munshi for reference in camp office.

(ii)

The Deputy Collector will be responsible for the execution of work, the Executive Engineer supplying colours and ink, the cost of which should be recovered from the tracers.

(iii)

Shajras shall be treated on 5-p long cloth, and the rate for tracing should not exceed annas three per hundred fields, including the cost of ink and colours. The rate for copying Khasras should not exceed three annas, per hundred fields excluding the cost of paper, Government supplying the necessary forms for the purpose. The cost of binding khasras should not exceed annas eight per copy. In divisions where one of the fasts is relatively unimportant, the deputy collector should endeavour to have the tracing and copying done by the ordinary revenue staff.

(iv)

The Deputy Collector shall check, pass, sign and date each completed shajra or Khasra and shall then send it to the Executive Engineer, together with the bill for his approval and pay order. The peshi munshi shall keep with his copy the sanctioned estimate a note of all approved shajras and khasras. Bills paid from contingencies need not be entered in measurement books, and the tracer should present the passed bill to the divisional or the sub-divisional office for payment.

Section II

Famine Relief Works

20. - Orders issued separately by the Government in this connection from time to time may be followed.

Section III

Stationery and Forms

Indents

21. - Separate instructions have been issued by the Government from time to time which should be Strictly followed.

Section IV

Returns

Occasional Returns

22. - The following returns shall be submitted when the necessity arises:

(i)

Casualty return-As may be published separately.

(ii)

Report of breach of main canal or branch-The divisional officer shall report the occurrence of a breach in the bank of a main canal or branch immediately to the Chief Engineer direct, as well as to the Superintending Engineer. In cases in which the sub-divisional officer is the first to learn of a breach, he shall without delay report the occurrence simultaneously to the Superintending Engineer and the Divisional Officer.

(iii)

Reports on floods.-After exceptionally heavy rainfall resulting in destructive floods in any tract, the divisional officer shall submit a report giving details of the rainfall over the catchment area-affected, the discharges observed in drains or natural channels, and the probable maximum discharges; obstruction, if any, offered by canal or distributary banks, areas flooded, extent of damages done to crops or works, etc. The Superintending Engineer shall forward the report to the Chief Engineer with his remarks and recommendations and such additional information as he can give.

Periodical Returns

23. - (i) A list of periodical returns due in and from the various offices of the Irrigation Branch is published separately.

.....No other periodical return shall be called for from any office in this Branch without the consent of the Chief Engineer or Government.

(ii)

Heads of offices shall prepare the various returns due from their offices in good time so as to ensure their punctual submission, and to render the issue of reminders unnecessary.

(iii)

In order to obviate the necessity of submitting blanks returns, a "NIL" return in general P.W.D. form No. 16 shall be submitted.

(iv)

With regard to returns not prescribed by the Government of India, officers to whom such returns are submitted shall periodically examine the necessity for each return, with a view to the discontinuance of unnecessary returns.

Section V

Office Arrangements

Correspondence and Reports

24. - (i) No officer shall do correspondence direct with an authority Superior to the officer under whom he is immediately serving, with the local Government or the Government of India, except in a case of extreme emergency, when he shall send copies of his correspondence to his immediate superior.

(ii)

All officers are responsible for the matter and style of official letters and reports issued in their names.

(iii)

All official letters shall be in proper form:-

(a)

notes, reports or copies of letters submitted as enclosures shall be headed as follows:-

Note or report No.....dated.....by (name)..... (rank) (division and canal).....on the subject.

Letter No.....dated.....from (name and rank), to the (rank).....

The number and date of the forwarding letter, to which a note or report is an enclosure, shall be quoted on the last page of the report.

(b)

Post cards shall be used for reminders and brief communications on matters of routine.

(iv)

All officers shall sign their letters in their own handwriting unless physically incapacitated or absent from headquarter in

which case a subordinate shall sign for them. When a subordinate signs such a letter, he shall specify below his signature the name and designation of the officer for whom he signs as well as his own designation. Signatures shall be written by hand and not type written or stamped.

(v)

Letters containing proposals concerning other Department shall be accompanied by reference to the opinion of the officers concerned.

(vi)

It is the duty of Superintendent and head clerk of circle and divisional officers to see that these instructions are carefully observed in their respective offices.

Correspondence with Government

25. - (i) All letters and documents addressed by any office or person to Government, or to another office and likely to be forwarded in original by the latter to Government, shall be written on fool scape-sheets.

(ii)

In order to facilitate the incorporation of such letters in files, a quarter margin at least shall be left blank on the binding edge, and when remarks are likely to be added by any officer through whose hands the documents may pass, a half margin shall be left blank.

Checking of Enclosures

26. - Heads of offices shall make proper arrangements for the receipt and opening of official covers addressed to them. When the enclosures of a letter received in any office do not agree with the list, the receiving office shall be responsible for informing the despatching office by return of post.

Confidential Correspondence

27. - Only the head of an office and one confidential clerk, the head clerk, shall deal with confidential papers, which shall pass from hand to hand by personal delivery, or be sent in sealed covers. Entries in the receipt and despatch registers shall give the barest reference to these papers sufficient to admit of their being traced. When despatched, they shall be put into double covers. The inner cover shall be addressed by name and marked confidential. The outer one shall bear the official address only without any mark to indicate that its contents are of a confidential nature.

Anonymous Correspondence

28. - No officer shall act upon an anonymous correspondence regarding the conduct of another officer without the permission of Government unless it be to remove any apparently well-founded cause of complaint which do not affect the characters of individuals. Officers shall inquire into every other complaint by or against any person serving under them.

Preservation and Destruction of Records

29. - (i) List of the registers to be maintained in the various canal offices will be issued by the Chief Engineer Irrigation.

(ii)

Divisional officer shall order in writing the destruction of records, including registers, in their own and subordinate offices, on the expiry of the minimum period to be prescribed, counting, from the last day of the latest official year covered by the record.

The following records should on no account be destroyed:-

(a)

Records in connection with expenditure which is within the statute of limitation.

(b)

Records connected with expenditure on projects, schemes or works not completed, although beyond the period of limitation.

(c)

Records connected with claims to service and personal matters affecting persons in the service.

(d)

As regards records for which no minimum period has been prescribed divisional officers shall seek the orders of Superintending Engineers who shall in the case of accounts records, obtain the previous concurrence of the Accountant General before ordering their destruction.

(iii)

Papers shall be destroyed by tearing into pieces, after which they shall be sold as waste paper. Paper/Papers of a

personal and confidential nature shall be torn up and burnt.

(iv)

The register of destruction of records shall also be maintained separately for records other than accounts.

(a)

Records in Vernacular offices shall be catalogued and weeded on the following system:-

As soon as a paper or "misi" is completed, and an order is passed for it to be filed, it shall be placed in a wrapper of one of the following colours: -

Red

...

...

Works

Blue

...

...

Irrigation and Revenue

Yellow

...

...

Establishment

Black

...

...

Judicial

Green

...

...

Miscellaneous

Files & papers to be preserved permanently shall be stamped in large block with the letter, A, and those to be kept for a period of years with the letter B and an index figure denoting the number of years to be kept.

(b)

In the divisional office the "mubafiz dafter", and in other office the naib munshi or the zilladars's muharrir shall be responsible for docketing the records in accordance with these rules. At the end of every official year they shall prepare lists to be destroyed and submit them to be destroyed and submit them to the competent authority through proper channel. All such papers shall be registered by heads and sub-heads and the register signed by the competent authority before the papers are destroyed.

(c)

Unless otherwise stated correspondence in connection with the subject matter of any vernacular printed forms and manuscript records shall be destroyed after the same period as the form.

I. Records in English offices shall be catalogued and weeded preferably in the same manner as that laid down in paragraph for Vernacular records, or in any other way which the head of the office considered suitable.

II. All important sub-divisional records shall be transferred to the divisional office for safe custody, and only such records left in the sub-division as are required for current use. The latter shall be stored in a building not liable to damage by fire.

III. Before depositing a file in the record room all reminders, explains of delay, dockets on mere matters of routine and original papers of which printed copies are available, shall be destroyed. The Head Clerk or the clerk deputed for the purpose shall enter all such papers in a list in manuscript, or on a prescribed form and submit it to competent authority, who shall satisfy himself that they are not of sufficient importance to be preserved before ordering their destruction.

IV. Officers shall examine their record rooms at intervals to see that weeding operations are carried on systematically, and that files are weeded in rotation.

Section VI

Canal Telegraph and Telephone Office

30. - Canal administrative messages shall be transmitted free of charge over the canal telegraph system.

(i)

Canal telegraph office, shall not receive paid messages from the public.

(ii)

Revenue and police officers and subordinate, not below the rank of naib-tahsildar and head constable respectively, may send urgent telegrams from any canal telegraph office to that at the headquarters of the division, free of charge but the department concerned shall bear the cost of any special messengers that may have to be engaged to deliver such telegrams. All signallers shall send, at the beginning of each month, copies of all such telegrams received by them for transmission during the preceding month, to the divisional officer who will decide whether the privilege is or is not being abused. Such messages shall not interfere with the despatch of telegrams relating to the work of the canal department and shall be received only during prescribed working hours.

(iii)

No canal telegraph office shall accept foreign messages.

31. All messages connected with the touring facilities of officers such as camp arrangements, supplies, etc. shall be marked 'P' or 'Practice' and transmitted free of charge. Private messages regarding appointments, leave transfer, pay or leave allowances shall be paid for. Signallers in charge of canal telegraph offices shall make copies of all telegrams marked 'P' which they transmit, and send them monthly to the divisional officer. The Superintending Engineer and the divisional officer shall check the telegraphic files from time to time to see that these rules are complied with.

32. Canal administrative message tendered at an office outside the canal telegraph system, and intended for transmission to a canal office, shall be marked, 'state' and paid for, shall be addressed to the headquarters station of the division concerned. Such messages as also private messages, shall be transmitted immediately by the canal signaller. When it is necessary to send a paid State message through a canal telegraph office not licensed to receive paid messages from the public, the message shall be sent to the accountant or head clerk at Head quarters with orders to despatch it and charge the cost to the contingent grant of the division.

33. The canal signaller shall immediately report all interruptions to the sub-divisional officer, Telegraphs (S.D.O.T.) giving a copy of the report to the canal divisional officer, and when the communication has been restored, shall report the fact to the divisional officer, giving the time of the restoration. In cases of interruption and general breakdown of canal lines, a canal telegraph traffic can be passed over the telegraph departmental wires free of cost in accordance with paragraph 42 of the Posts and Telegraphs Manual volume XI Parts 1 and II. In such cases however, only urgent and important telegrams should be sent.

34. The working hours for the canal telegraph systems shall be fixed by the Divisional Officers.

All signallers shall be in their offices during the fixed periods and received and transmit messages as rapidly as possible.

35. The signaller shall give a receipt for every message tendered for transmission with the time and date entered thereon, maintain a receipt and despatch register, and number the telegrams consecutively giving the time of receipt or despatch on them. He shall keep separate files, by months, for messages received and messages despatched, shall file all telegrams in order of receipt or despatch, and in the evening, before the office is closed, shall compare the registers with the files.

36. When the signaller does not understand a message tendered for transmission, he shall return it to the sender for explanation. When a receiving signaller does not understand a message, he shall repeat the doubtful words to the despatching signaller.

37. When a message is addressed to an officer at any telegraph office, and the addressed is not in the neighbourhood, the signaller shall transmit the message to the office which is nearest to the officer's camp.

38. The signaller shall enclose all telegrams marked "Urgent" or of an urgent nature, in yellow envelopes, and instruct the messenger to deliver them at once, nothing on the receipt the time at which the latter leaves the office.

39. The blame for sending telegrams by the wrong route shall rest with the despatching signaller, but other signallers shall receive or pass on all such telegrams.

40. The signaller shall acquaint thoroughly with the divisional standing orders regarding water regulation, a copy of which he shall hand up in his office. He shall give written orders to tindals and others regarding regulation, but, if they are unable to read or write, he shall read out the orders to them. He shall not receive verbal orders regarding regulation, or verbal gauge reports, but shall insist that they are written and signed by the person giving them.

41. The signaller shall maintain a gauge register in which he shall enter the gauges as he receives them. He shall not jot them down on odd scraps of paper or on his writing pad, except when otherwise specified, all gauges shall be read in

the early morning, and all rain gauges at 8 p.m. If the gauges relating to any other hour or date are included in those submitted by the signaller, he shall give full information regarding time and date of regarding the gauges so as to avoid any misconception. He shall telegraph every extra-ordinary fall of rain to the divisional officer.

42. When telegraph offices are closed, the handles of the instruments shall on no account be screwed down.

43. The signaller shall be responsible for keeping his office neat and clean, and his instruments, batteries and connections in proper working order. He shall not admit strangers or his relatives into the telegraph office.

44. No apprentice shall be allowed to learn telegraphy in a canal telegraph office without the special sanction of the divisional officer, when such permission is given, the candidate shall provide his own dummy instrument. He shall on no account practice on the service instrument.

45. Canal telephone offices shall not receive paid messages from the public. They shall not be subject to any telegraphic code and shall be entirely under the control of the Irrigation Branch.

Section VII

Miscellaneous

Register of Canal gauges and Rainfall

46.

- (i) Divisional and sub-divisional officers shall write up their gauge registers daily. The divisional register shall, as a rule, give gauges at canal regulatives and at the head and tails of branches, distributaries, minors and drains, besides other important gauges such as those at headworks, etc. They shall also have columns for discharges of main distributaries.

The divisional as well as the sub-divisional register shall be a combined gauge and water consumption register and shall give full information of the discharge run in every channel. The sub divisional register shall also give intermediate gauges for all long distributary channels.

(ii)

The rainfall at each inspection house where rain gauge is installed shall be recorded. The sub-divisional officer and the subordinate in charge shall inspect the rain gauge as frequently as possible. The sub-divisional officer shall furnish a report of inspection of all rain gauges in his sub-division to the Divisional officer in April every year. All rain gauges shall be observed at 8 a.m. and recorded in the register against the date on which they are observed.

(iii)

Sub-Divisional officers shall submit to the Divisional officer on the 3rd of every month a copy of the rainfall recorded by them during the previous month.

Register of Masonry Works

47. - All divisional and sub-divisional officers shall maintain registers of all masonry works on all channels. When an existing work is altered the necessary corrections shall be made in the register at once. Superintending Engineering, when inspecting divisional offices shall note that the registers are kept up properly.

Register of Bench-Marks

48. - (i) Every sub-divisional officer shall maintain a register of bench-marks, which shall contain, in addition to a list of G.T.S. benchmarks in sub-division, the correct reduced levels of the benchmarks on all mile-stones on Government channels, and as many records reduced levels of benchmarks as may be necessary.

(ii)

All benchmarks in a division shall be connected with benchmarks of the Trigonometrical Survey by means of double levelling. No new entry in the register of benchmarks shall be made until the reduced level has been checked by such double levelling. The names of the levellers and the dates of levelling, shall be noted in the "Remarks" column of the register.-

(iii)

When discrepancies are found between any recorded reduced levels of benchmarks and readings on the same benchmarks taken by the Trigonometrical Survey, the latter shall be adopted and other benchmarks in the same system shall be checked and corrected accordingly.

Office Libraries

49. - (i) Libraries shall be kept in a separate room, if practicable, and shall be under the charge of the head clerk. The books shall be classified according to subject matter, arranged properly on shelves out of reach of white ants and entered in a special catalogue. The head clerk shall verify the books in the library with his register once a year in July, and shall endorse a note in the catalogue "checked and found complete with the following exception."

(ii)

No books shall be removed from the library without the permission of the head of the office. When a book is issued, a proper receipt shall be taken from the borrower, and on the return to the library, the receipt shall be returned to him or cancelled.

(iii)

The head clerk shall be personally responsible for the observance of these rules, and for seeing that reference books and guard books of circulars in the divisional and sub- divisional offices are indexed and posted Up to date with standing orders and circulars.

(iv)

At the time of inspecting divisional office, Superintending Engineers shall examine the libraries to see that they are in proper order and that no books are missing. They shall also see that the reference books and the guard-books of circulars are indexed, and posted up-to-date and are complete in every other respect, Divisional officers shall similarly examine sub- divisional libraries.

Inspection of Offices

50.

- (i) The divisional accountant shall inspect the accounts records of sub-divisional offices and check a percentage of the initial accounts at least twice in the year in the case of any ordinary sub-division and four times in that of a head works sub- division.

(ii)

The Deputy Collector and the sub-divisional officer shall inspect the zilladari offices at least once a year, and submit copies of their inspection reports to the divisional officer. The interval between inspections by the two above named officers of the same zilladari shall be about six months.

(iii)

The Deputy Collector shall inspect the Vernacular section of the divisional office at least once a year, and submit a copy of his inspection report to the divisional officer.

(iv)

The Divisional Officer shall inspect the office of the Deputy Collector at least once a year.

(v)

The Divisional Officer shall inspect the sub-divisional officers at least once a year and submit a copy of his inspection report to the Superintending Engineer.

(vi)

The Superintending Engineer shall inspect the divisional offices once a year and submit a copy of his inspection report to the Chief Engineer.

(vii)

The Accountant General shall send a signed copy of his report of inspection, together with a few spare copies, in half margin to the divisional officer. He shall also send copies to the Sup. Eng. and the Chief Engineer, Irrig. Branch. He shall ordinarily not appeal to Government for immediate interference except in very serious and important matters. The Executive Engineer shall submit his remarks and explanations to the Superintending Engineer within six weeks of the receipt of the inspection report. The Superintending Engineer shall transmit the explanation within three weeks to the Accountant General with his own observations and remarks, and the latter shall submit them with his final remarks to Government for orders within five weeks of receipt in his office. The Government will communicate their orders in original to the Divisional Officer through the Accountant General and the Superintending Engineer, and the statement of remarks and orders shall be final in the divisional office.

Tour Programmes of Canal Officers

51.

Superintending Engineer shall forward copies of their tour programmes to the Chief Engineer for information. Executive Engineer to the Superintending Engineer, and Sub-divisional Officers and Deputy Collectors to the Executive Engineer. Executive Engineers and Sub-divisional officers shall also forward copies of their tour programmes to the Collectors and revenue sub-divisional officers respectively within jurisdiction.

Disposal of Complaints

52.

Complaints on any subject connected with the administration of the Irrigation Branch should be addressed to the Irrigation Officer concerned. The complainant may at the same time inform the tehsildar, who shall, however, refrain from investigating the case, but shall report it to the Collector. All complaints received by the Collector shall be forwarded to the Divisional Officer for disposal, but the Collector may in any particular case, request the latter to inform him of the result of the inquiry. If the Collector thinks that further inquiry is necessary, he may make such further investigation as he considers fit, and acquaint the Divisional Officer with the result. Should the latter disagree with the Collector, he shall refer the case to the Commissioner.

Liaison Between Commissioners and Superintending Engineer

53.

(i) It is desirable that the Commissioner should be kept in touch with the general working of the department, and the Superintending Engineer shall keep him informed in regard to irrigation matters consult him on new projects or any proposed important departure from established practice.

(ii)

The Commissioner may call on the Superintending Engineer for any information, and any views the former may express shall receive the fullest consideration. He may stop any action of the Department which he considers undesirable as affecting the people and the general administration. If the Superintending Engineer does not agree with the Commissioner, he shall refer the matter to Government for orders.

(iii)

Minor disputes with other departments which cannot be settled amicably shall be referred to the Commissioner, who may direct a joint inquiry to be held by the local representatives of the Departments interested.

Security Deposits of Government Servants

54.

For rules regarding security deposits of Government servants see financial hand book.

Dafedars and barkandazes attached to canal divisions shall furnish security in the form of a cash deposit. The deposit shall amount to Rs. 50/ which may be paid in one lump sum or be deducted in installments from the man's pay at the discretion of the divisional officer. Such deductions shall not exceed one fourth of each month's pay.

Preparation and Encashment of Establishment Bills

55.

The Sub-divisional officer shall forward his establishment bills (duly signed) to the divisional office. The Accountant shall check the bills and return them after countersignature by the Executive Engineer to the Sub-Divisional Officer, who shall present them for encashment at his head quarters treasury. No treasury will cash any bill without the Executive Engineer's countersignatures. Executive Engineers and sub-Divisional Officers shall attest all corrections made by them in the bills.

Safe Carriage of Government Money and Other Valuables

56.

(i) The Sub-Divisional officer or the senior officer present shall be responsible for nominating on each occasion a sufficiently strong guard for the carriage of Government money, and shall personally make over any cheque for encashment to the dafedar. The letter shall send or take out the full strength of the guard order. Any neglect on the part of the dafedar to do so shall be punishable dismissal.

(ii)

The officer referred to in paragraph (1) shall maintain a register in the following form, and shall, in every case, record his initials and signatures of the guard nominated or their left thumb impressions, in the columns provided for the purpose.

Date

Name of individuals comprising the guard

CHEQUE

Number

Date

Amount

Treasury

1

2

3
4
5
6

Note of any special instructions given to dafedar
or the guard

Initials of the detailing officer

Signature or left thumb impression of the guard

7
8
9

(iii)

The guard, when carrying money, shall as a rule, use the most public roads in preference to shorter but less frequented routes, and shall convey the money to its destination as far as possible on the same day that it is drawn from the treasury. The guard shall not travel by night unless it is absolutely necessary.

(iv)

Cash cheques, promissory notes or other valuables shall on no account be despatched by canal dak. Cheques, notes of valuable deeds shall be sent by special messengers or by post in a registered cover. Private arrangements shall be made for the delivery of valuable articles belonging to Government officials in Camp.

Police Guards

57.

Police guards can be asked for in an Engineering District by the Divisional Officer from the Superintendent Police, who will send the guard according to the Police regulations conditions laid down.

Copying of Shajras, Khasras etc.

58.

(i) Irrigation Officers shall obtain copies of new shajras and settlement records required by them from the Settlement office on payment of fees, approved by the Board of Revenue including the cost of copying, examining, counting and paper.

(ii)

Irrigation officers may have shajras and Khasras copied by their own staff, instead to obtaining copies from the Settlement Office, if it is desirable to do so on grounds of economy in time and expenditure.

(iii)

Fees for supplying copies of canal khasras and jamabandis shall be supplied free of charge if the collector orders that the official responsible for the loss of the original shall not pay for the duplicate.

Government Buildings

59.

(i) The office in charge of a Government buildings shall make some person of his establishment answerable for its general condition.

(ii)

The sectional officer shall be responsible for reporting, direct to the Executive engineer as well as to the sub-divisional officer, any case of occupation of an inspection house by an Officer, or of servants quarters by a servant who has suffered from fever for more than a week, or who is suffering from any inspections or contagious disease. The Executive Engineer shall either order the disinfection of the inspection house or the servants' quarters occupied, or report the case to the civil surgeon and ask him if disinfection is necessary. If the Executive Engineer on his own initiative or as a result of the advice from the civil surgeon decides that disinfection is necessary, it shall be carried out as follows:-

For every 100 cubic feet of room space, eight ounces of sulphur shall be burnt. The sulphur shall be placed on a iron plate supported for protection against fire over a tube of water. The sulphur shall be set on fire by putting live coal on it. Doors, chimneys and windows shall be tightly shut and punkha holes blocked. Durries and purdahs shall be hung on road in the room, which shall be kept closed for four hours. Thereafter, doors and windows shall be opened and kept open for three days. After disinfection in this way, durries and purdahs shall be washed and all furniture scrubbed with a solution of carbolic acid diluted with 50 parts of water.

(iii)

As a theatre is peculiarly liable to fire, no Government building in which Government Stores, etc. are kept, shall be used for theatrical purposes.

(iv)

Before a Government building is sold by or on behalf of any Department, the district officer shall certify that he has ascertained, to the best of his knowledge, after due inquiry, that the building is now wanted by any other department, or for any public purpose. The divisional officer shall obtain this certificate before recommending the sale of any building in his charge.

The rules sanctioned by the Government for the occupation on Dak Bungalows and rest Houses will apply.

Chapter VI

Land

Acquisition of land

Land required for the construction of Irrigation works will be acquired under the Rajasthan Land Acquisition Act, 1953.

Chapter VII

Canal Revenue Procedure

Section I

Assessment of Occupier's Rates

1. The Khasra-shudkar is the basis of all demands and statistical returns. The Mohafiz or Patwari shall record the entire irrigation of as many villages as possible in a Khasra-shudkar. He shall enter therein all fields which appear to him liable to assessment of water rates, but shall make out a separate list of any fields about the irrigation of which he has a reasonable doubt, and submit it to the zilledar for orders. He shall also enter in the Khasra-Shudkar fields in respect of which special charges have been authorised under rule 27 or 31 of the rules under the Canal Act, taking care that in doing so he does not include any area twice over.

2. The Divisional officer shall fix the dates for the commencement of the final measurements. The dates shall be so timed as to allow the despatch of Jamabandies to tehsils on the due dates, and at the same time to avoid the necessity of preparing supplementary Jamabandies.

3. At least ten days before the commencement of the final measurements, the zilledars shall send copies of a notice on prescribed form to the tehsildars concerned, informing them of the approximate date on which final measurements in each village will commence. He shall also cause a notice in prescribed form to be affixed on each village Chaupal. Tehsildars shall acknowledge receipt of the notice & shall be responsible that Revenue Patwaries are present in the village on the specified dates. If for any reason the canal amin or girdawar can not keep to his dates in any village, he shall send direct to the Revenue Patwari concerned either a written message through the Canal Patwari or a postcard for which he shall obtain a certificate of posting. Amins shall not change dates unless absolutely necessary.

4. The Revenue Patwari shall be present in the village during the completion of the final measurements. He shall furnish the Canal amin with the names of proprietors, tenants, etc. in order to enable the amin to complete his record, and shall help in setting any doubtful points by a joint inquiry. If Patwari fails to attend, a complaint about it shall be sent to the collector by the Divisional Canal Officer. Tehsildars shall intimate alterations in Patwaris circle to zilledars at the beginning of each year.

5. When the amin has measured the fields and completed the entries in the Khasra-shudkar, he shall make out purchase in prescribed form one for each cultivator. In the case of fields on which the rate has been remitted in full under rule 17, 23(1) or 28 of the rules under the cannal Act, he shall give only the number and area of the field, show the charge as nil, and record a note regarding the remission in the remarks column.

6. With the aid of the Khasra-shudkar and the Parchas, the amin shall prepare the Jamabandi on the demand statement in prescribed form bringing together all entries concerning each cultivator and giving the total for each separately. He shall not attempt to group and abstract, the fields belonging to an individual owner. There shall be a separate Jamabandi for each Mahal, except where the Lamardar of one Mahal in a village consisting of two or more Mahals has entered into a special agreement etc. make collections in the entire village. For villages in which canal dues are collected direct by the Revenue Department Jamabandi should be prepared village-war instead of Mahalwar.

7. Prior to completion of the Jamabandi, the amin shall inform the Lambardar or his agent when he proposes to distribute the parchas, and shall also post a written notice to the same effect in the village Chaupal. The Lambardar shall then call upon the cultivators to attend and receive the Parchas, The amin shall enter the date of distribution on each

parchas. If any cultivator is not present at the appointed time, the amin shall make over his parchas to the Lambardar, or in his absence to the Revenue Patwari who shall acknowledge receipt, the amin nothing on the Parcha to whom it has been delivered.

8. After correcting such errors as may be discovered subsequent to the measurement and in time to admit of corrections the amin shall note on the Jamabandi the amount of the fees to be paid to the Patwari. When the amin has completed the Jamabandi, the Patwari shall prepare, an abstract of it in prescribed form and get it signed by the amin. The Patwari shall sign the Khasra prepared by the amin, and he shall be responsible that the abstract of the Jamabandi is at all times accessible to any person who pays the water rate.

9. When the Jamabandies have been checked by the zilledar and such other officials as the Divisional Officer. Canal or Deputy Collector may direct, they shall be sent to the divisional office where they shall be checked, arranged by Parganas and signed by the Divisional Officer or Deputy Collector. They shall then be despatched to the Tehsildars concerned at least three days before the date fixed in the rules under the Canal Act. The warrants accompanying each batch of Jainabandis shall be in duplicate on prescribed form and shall be signed by the Divisional Officer immediately after despatching the Jainabandis. the Divisional Officer or Deputy Collector shall submit to the Account General through the Superintending Engineer a statement showing the total assessment for the half year from all sources.

10. No copies of the Khasra-shudkar shall be made.

11. In order to enable canal officials to prepare Jainabandis correctly by Mauzas and Mahals the Collector shall supply the Divisional Officer with-

(i)

a list of villages for which special agreements for these single Mauzawar Jamabandies are sufficient:

(ii)

a list of villages composed of single Mahals, for which also single Mauzawar Jamabandies are sufficient:

(iii)

a list of villages consisting of two or more Mahals in which separate Mahalwar Jamabandies are required. For these village the Collector shall supply maps showing the limits of the Mahals, and list of fields pertaining to each Mahal:

(iv)

a copy of the partition map with a revised list of fields when a partition subsequently takes place by which existing Mahal arrangements are modified. These maps and lists shall be prepared at the time of the partition at the cost of the parties, and charged for over and above the sanctioned partition costs.

Section II

Patwaris Fees

12. (i) The Patwaris fee shall be as decided by Government for every 100 acres of land irrigated. The payment of the fee shall be conditional on his performance of his duties as laid down in preceding paragraph to the satisfaction of the Divisional Officer. Failure to perform his duties shall be reported to the Collector, and the result of such reports communicated to the Superintending Engineer. The latter may, if he considers if necessary, bring the matter to the notice of the Commissioner.

(ii)

When the Jamabandies are being prepared, the Deputy Collector shall check the amount of the fees to be paid to the Patwaris and shall submit a report to the Divisional Officer, comparing the fees claimed and the areas irrigated with the figures for the previous fall. When inspecting the amin's work, Sub-Divisional and Deputy Collector and Zilledars shall look into the question of the Patwaris fees and see that no fee is entered if the Patwari is absent at the time of the measurement, or if he fails to take a copy of the Jamabandi.

Section III

Charges Waste or Unauthorised Use of Water

13. (i) For charges leviable for waste or issue of canal water, see rules 9, 27. 30 and 31 of the rules under the Canal Act. Any punitive charges so levied shall be treated as assessment of occupier's rate and included in the demand statement. Before ordering the levy of the charges, the Divisional Officer shall satisfy himself that the case has been investigated by a responsible canal officer, and shall carefully scrutinize the report of the latter. If the total punitive rate exceeds Rs. 10/- or the punitive rate on any one person exceeds Rs. 2/- he shall write the order in his own handwriting.

(ii)

Investigations shall be conducted promptly, and immediately on the issue of the orders levying punitive rates. Parchas

shall be distributed to the persons concerned, to enable them to exercise the right of appeal under section 35(2) of the canal act and rules 57 to 62 of the rules under the Act.

(iii)

If the Divisional Officer imposes punitive rates amounting to more than 500 on any village or Rs. 50/- on any individual, he shall promptly report the fact to the Superintending Engineer.

(iv)

The Divisional Officer shall submit to Superintending engineer every half year a statement showing by districts the amount of punitive rates levied and details of the cases tried under the canal Act.

Section IV

Remissions

14. (i) Under rules 17 and 28 of the rules under the Canal Act, the Divisional Officer is authorised to reduce the rate ordinarily leviable on any field that has been damaged-

(a)

by failure or stoppage of supply of water from the canal:

(b)

by locusts hail, floods, frost, rust or any such calamity other than failure or stoppage of the supply, whether in time of drought or at any other time:

Provided that the damage is not due to any negligence on the part of the cultivator, or, if the crop is Kharif crop, to its having been shown on land which is usually flooded during the rainy season.

(ii)

Whenever such damage occurs in a canal irrigated crop an immediate report shall be made to the Divisional Officer. The latter shall arrange for the prompt inspection of the fields by a responsible officer, who shall submit a detailed report on their condition.

(iii)

In determining the extent of remission to be made in such case, the Divisional Officer, shall, in general, be guarded by the following scales: -

PERCENTAGE OF DAMAGE

REMISSIONS

Under 150 percent.

Nil

50 percent and above but less than 75 percent

Half water rates

75 percent and above

Remission in full

(iv)

(a)

When the failure of the crop is due to the seed having failed to germinate, the charge shall not be less than the lowest water rate chargeable that is, if the irrigation is lift, the lowest lift rate.

(b)

No occupier's rate shall be assessed on newly sown sugarcane which has been irrigated but has failed to germinate or been destroyed by any cause whatever before the break of the monsoon.

(c)

Ratoon sugarcane which has been irrigated but is destroyed and is ploughed out before the break of the monsoon shall be given a remission of half the occupier's rate.

(d)

Newly sown sugar cane which has been irrigated but fails or is destroyed after the break of the monsoon owing to having been sown on land which is usually flooded during the rainy season or owing to any other cause within the control of the occupier shall not be given any remission.

(e)

Newly sown sugarcane which has been irrigated but is damaged or fails or is destroyed after the break of the monsoon by any cause beyond the control of the occupier, and which is not replaced by a subsequent crop in the same Kharif

season, shall be considered for remission under clause (3) of this paragraph.

(f)

Ratoon sugarcane which has been irrigated but fails for any cause whatever after the break of the rains shall not be granted any remission.

Note.- See also rule 23 of rules under the canal Act, for charge leviable on fields re-sown.

(v)

If seed sown fails to germinate, remission may be made on the ground that no cultivator would willingly or purposely have sown bad seed. If on the other hand a crop is destroyed by flooding due to the banks of the waterhouse not having been kept in proper repair, the failure is attributable to negligence and claims for remission shall not be admitted.

(vi)

All remissions shall be given by field except in the case of wide spread damage, when in exceptional circumstances a flat rate remission may be given. In the case of field to field remissions the Divisional Officer shall sanction remission upto Rs. 50 to an individual cultivator and Rs. 500 to a village, and shall apply for Superintending Engineer's sanction for higher amounts. In case of widespread damage, the Divisional Officer shall at once inform the Superintending Engineer of the probable causes of the damage and the extent of the remissions necessary. He shall then frame an estimate of the loss of the revenue in consultation with the Collector (who shall countersign the estimate), and forward it to the Superintending Engineer for orders. To be effective remissions shall be liberal and prompt, and shall, as far as possible, be made before the completion of the demand statement.

(vii)

By January 15 and June 15 the Divisional Officer shall report direct to the Chief Engineer the area and amount of the remissions given and send a copy of his report to the Superintending Engineer.

(viii)

A register in prescribed form shall be maintained in the Divisional and the zilledari Offices showing all reductions made under rules 17 and 28 of the rules under the Canal Act, prior to the completions of the demand statement. Reductions in the demand due to modifications in the areas or classification, although made before the completion of the demand statement, shall not be entered in this register.

(ix)

The amin shall be supplied with a statement showing the reductions made in each village of his beat.

(x)

Remission slips should be distributed in the presence of some responsible officer.

15. (i) All objections to demands falling under any of the following four classes shall be addressed to the Division or sub-Divisional Officer or Deputy Collector or Zilledar.-

(a)

Objections to occupier's rate. These include all objections on account of damage to crops in consequence of the failure or stoppage of supply.

(b)

Objections to occupier's rate made under rule 44 of the rules under the Canal Act, and based on alleged incorrectness of entries in the Khasra-shudkar. These include all objections on the ground of wrong measurement or classification, or that the land in questions has not received canal water, or has been irrigated by lift and not by flow.

(c)

Objections to special charges assessed under rule 27 or 31 of the rules under the Canal Act. These include all objections to special charges for debarred fields, or for unauthorised irrigation or waste of water.

(d)

Objections to demand on account of failure of crops from causes over which the canal administration has no control. These include all claims for remission on account of damage to crops by hail, locusts, floods or other unforeseen or sudden calamity, or of failure that may be attributed to causes other than negligence on the part of the cultivator.

(ii)

The Divisional Officer is competent to pass final orders on any objection falling under the above mentioned classes, but shall not authorise his sub-divisional and deputy revenue officers to pass orders on objections falling under class 1 and IV. He may from time to time define by general order the kinds of objections under classes 11 and III upon which his sub-divisional and Deputy Collector may pass final orders, or he may require that they shall send such orders to him for

confirmation or modification before communicating them to the complaints.

(iii)

Any objection falling under classes II and III shall be lodged within 30 days of the date on which the Parchas are distributed, and, if the complaint has been charged without having done any irrigation from the canal during the Fasal, within twenty one days of the date on which he first became acquainted with the claim against him.

(iv)

Any objection addressed to the Collector or his subordinate revenue officer shall be forwarded to the Divisional Officer for disposal, in the meanwhile, collection of the demand shall not be suspended except in the cases provided for in rule-49 of the rules under the Act.

(v)

The Divisional Officer may summarily reject any objection if the crop on account of which reduction or remission is claimed is out within fifteen days from the date on which objection is lodged.

(vi)

All objections must be investigated within fifteen days of the receipt and decided promptly. Final order shall be communicated to complaint without delay.

Section VI

Registers of Complaints Against Measurements

16. (i) Once the measurement of a village has been completed and the Jamabandi prepared, any complaints lodged, except those due to causes over which the canal administration has no control, shall be entered in a register of complaints, whether or not it is possible to carry out corrections in the Jamabandi. The register shall be kept in Hindi in the Divisional office under the following heading:-

(a)

Serial number.

(b)

Name of sub-division.

(c)

Name of amin or girdawar.

(d)

Name of officer receiving the complaint.

(e)

Name of complainant.

(f)

Village.

(g)

Pargana.

(h)

District.

(i)

Date of lodging the complaint.

(j)

Date of final order.

(k)

Number of final order.

(l)

Abstract of final order.

(m)

Date of recording case.

(n)

Number of docket to collector authorizing remission, refund, etc.

(o)

Amount of remission or refund.

(p)

Name of Fasal to which the complaint appertains.

(q)

Nature of final order.

(r)

Number of days occupied in disposal.

(s)

Remarks.

The register shall be in the form of a book and shall be continuous, but fresh serial number shall be given from the 1st of every calendar year. The register will be closed for Kharif on February 20, and for Rabi on August 20.

(ii)

The Divisional and Sub-Divisional Officers, Canal Deputy Collectors and Zilledars shall receive complaints but only the first three may pass the final order subject to the rules laid down in this paragraph. The Divisional Officer may withhold the power of passing final orders from any officer serving under him; but this shall be done only in special cases, and every officer's services shall be utilized as much as possible.

(iii)

The following procedure is recommended for the disposal of cases but divisional officers need to follow it to the latter.

(a)

The Divisional Officer, on receipt of a complaint, shall ordinarily send it for local inquiry to the zilledar, who shall report direct to the former for final orders. The divisional officer may send special cases to the sub-divisional officer or Deputy Collector for personal inquiry and report.

(b)

The Sub-divisional officer, on receipt of complaint, shall, if it is an ordinary complaint, send it to the Zilledar, or if the latter is too busy, to the section-holder (provided he possesses sufficient experience of revenue work) for local inquiry and report before passing final orders. He shall inquire into special cases personally, or refer them to the Divisional Officer for advice or for ordering a personal investigation by the Canal Deputy Collector See paragraph (c).

(c)

The Canal Deputy Collector shall either personally inquire into a complaint presented to him or send it to the zilledar for report. In either case the Deputy Collector may pass final orders subject to the limitation laid down in these Rules.

(d)

The Zilledar shall make local inquiry into complaints presented to him as soon as possible and report to the sub-divisional officer.

(e)

Nothing in the foregoing rules shall prevent divisional or sub-divisional officers from making personal inquiries in important or special cases, or sub-divisional officers or Deputy Collector from sending doubtful or special cases to divisional officer for final orders.

(iv)

As soon as an officer has passed the final order on a complaint he shall send a copy of it to the zilledar for communication to the complainant, and for correcting the Khasra- shudkar, Jamabandi, and Parcha, if the Jamabandi has not been despatched to the Tehsildar. He shall then transmit the case to the Divisional Office, where it shall be brought on to the register at once. If the case is one of error in the name of the cultivator an adjustment slip shall be made out for despatch to the Collector without delay. No correction of the Khasra-shudkar is permissible after the Jamabandi has been sent to tehsildar, and the necessary entry shall in that case be made in the register prescribed in this paragraph and a cross reference given in the Khasra-shudkar affected. The zilledar shall return the copy of the final order to the officer issuing it, with a report that it has been carried out. These papers shall be sent to the Divisional Office to be filed with the original papers of the case, and the file shall then be considered as complete and deposited in the record room, the date of doing so being entered in column (xii) of the register.

(v)

The entry in column (xvii) shall show whether the case belongs to any of the following:-

(a)

Not irrigated at all;

(b)
irrigated from other sources than canal;

(c)
failure of crops for want of water;

(d)
fields partly irrigated;

(e)
charged in two successive fasls;

(f)
irrigated in two successive fasls;

(g)
irrigated lift' and charged at flow' rate;

(h)
same field entered twice;

(i)
error in description of crops;

(j)
error in name of cultivator;

(k)
clerical error in calculating;

(l)
craps failed on account of bad seed;

(m)
other grounds.

(vi)
The entry in column (xviii) shall show whether the case has been:-

(a)
admitted:

(b)
dismissed on account of lapse of time;

(c)
dismissed on its merits.

(vii)
The period occupied in disposing of a complaint shall be calculated as follows. As soon as a complaint is lodged with any of the officers authorized to receive complaints, the date of receipt shall at once be entered on it, whether or not an order is passed at the time.

This date shall be considered as that of the commencement of the case. The date of the final order shall be that of the disposal of the case.

(viii)
If mi appeal is made to the Divisional Officer from the orders of a Sub-Divisional Officer or Deputy Collector, the number of days occupied in its disposal shall be added to the period occupied in the disposal of the original complaint. The appeal shall not be considered as a fresh complaint nor shall the number of the complaints be increased on that account. The final order on the appeal shall be entered in the register after the record of the original case, a sufficient space being left for the purpose. All records of appeals shall be made in red ink.

(ix)
In order to ensure that all cases disposed of by Sub- Divisional Officer and Deputy Collector are brought on to the register, these officers shall submit monthly to the Divisional Officer a list of all cases decided by them, giving for each the name of the village, and the number and date of the final order. The Divisional officer shall compare such lists with the register occasionally.

(x)
A statement showing the number of complaints in each of the classes detailed in sub-paragraph 5 under each of the

sub-heads mentioned in sub paragraph 6, shall be submitted to the Superintending Engineer with the half yearly return of complaints against Khasra measurements. The return shall include only those cases as have been disposed off up to the despatch. Those disposed off subsequent to the submission of the return shall be entered in the register and included in the next return.

(xi)

The Divisional Officer shall maintain an efficient check over the entries in the register, by comparing them with the original file in a sufficient number of cases to prevent errors creeping in either from carelessness or any other cause. Column (xvii), (xviii) and (xix) of the register shall receive an independent check before preparing the return for the Superintending Engineer.

Section VII

Alternations of Demand Subsequent to Completion of Demand Statement

17. (i) If in any village or mahal, a considerable area is irrigated at too late a date to admit of its being included in the ordinary demand statement, a supplementary demand statement shall be prepared and forwarded to the tehsildar as soon as possible.

(ii)

Alternations made after the despatch of the demand statement shall be communicated to the Tehsildar as soon as they are sanctioned by the Executive Engineer, so that prompt action may be taken to adjust the demand. Remissions shall be shown invariably in red ink. A consolidated monthly abstract of these alterations should be sent to the Collector.

(iii)

The Divisional and Zilledari Offices shall maintain registers showing in detail all additional assessments made subsequent to the despatch of the Jainabandis and all duly authorised remissions. The latter shall be entered in red ink. The registers shall be closed on February 20 for Kharif and on August 20, for Rabi. corrections of errors made in the Jamabandi previous to its despatch to the tehsildar shall not be shown as remissions.

Section VIII

Duties of Civil Department with Regard to Realization of Demand

18. (i) The Collector shall realize the rates assessed by the Divisional Officer. The Commissioner's responsibility to ensure the punctual realization of irrigation revenue shall be the same as in respect of land Revenue.

(ii)

The Collector may rectify errors in collection and where tenants have died, absconded or become paupers, grant remissions.

(iii)

On the 7th of every month the Collector shall submit to the Divisional Officer, for transmission to the Accountant General after countersigning, a statement showing the remissions given by him. An abstract of statement shall give the actual cash refund made on account of remissions authorised either by the Irrigation or the Revenue Department.

Section IX

Accounting of Canal Revenue in the Accountant General's Office

19. Detailed procedure is given in Accountant General Rajasthan's Manual.

Section X

Checking of Irrigation Measurement

20. (i) The Divisional Officer shall see that Sub-Divisional officers and Zilledars maintain fortnightly records showing how irrigation is advancing, and that they inquire immediately into all undue delay in the progress of irrigation.

(ii)

During the final measurements, Sub-Divisional officers and Deputy Collectors shall carefully supervise the work of the Revenue Establishment. They shall scrutinize the weekly returns of canal patwaris and call for explanations, or order special checks, if the progress of irrigation appears unnecessarily slow, or the returns reveal unexpected areas. If a large number of errors are discovered on checking irrigation, the matter shall be reported to the Divisional officer, who, if he considers it necessary, shall send the Deputy Collector to make local checks and to report on the work of the zilledar, amin and Patwari concerned.

(iii)

The Government shall fix the minimum area allotted for check to different classes of officers during Kharif and Rabi. There shall be no excuse for failure to check the full allotted area, except when the total irrigated area is so small and

scattered that a disproportionate amount to time would have to be spent in checking the prescribed area. In such cases not less than 75 percent of the allotted area shall be checked. Checking shall not be confined to tracts which are easy to check and close to inspection houses, but shall cover the beats of as many amins and patwaris as possible, and shall also be carried out in remote tracts. Divisional and Sub-divisional Officers shall spend at least eight morning on partial each fasl.

(iv)

The Deputy Collector shall be the personal assistant of the Divisional Officer in all Revenue matters. He shall make a complete check of at least one whole village in every amin's section every fasl, in addition to any villages which the Divisional Officer may specially order him to check. He shall carefully supervise the work of final measurements, and see that no irregular practices are resorted to, and that Parchas are promptly issued and Jainabandis promptly despatched to zilledars. He shall examine the zilledar's office frequently, and see that the Jamabandis are properly checked, and in time for functual submission to the Divisional office.

(v)

The Zilledar shall make a complete check, every fasl, of at least one whole village in every patwari's beat, in addition to any villages which the Divisional Officer may specially order him to check. He shall be responsible that no irregularities are practised by amins, and shall make proper arrangements for summoning Revenue Patwaris and Lamberdars to attend the final measurement.

(vi)

The amin shall, before the commencement of the measurement check, as a rule, 100 percent of the area irrigated except in very exceptional circumstances, but never less than 75 percent. He shall initial and date all entries checked or made by him in the Khasra-shudkar. He shall be responsible for the measurements in his section, and shall check the Jainabandis with the Khasra- shudkar in the zilledar's office.

(vii)

Where there is big difference between the final area and the area up to "bandi-shudkar", the Superintending Engineer should arrange for additional staff to enable supplementary irrigation to be checked

Section XI

Assessment of owner's rate

21. The following rules and abstracts of notifications regarding the assessment of owner's rates are here inserted for the information and guidance of canal officers. The Government shall decide whether this rate is to be levied in any area.

(i)

On all canal-irrigated land in revenue paying Mahals which was not assessed to land revenue on the basis of 'wet' rates in the course of the most recent settlement, the owner's rate shall be levied at one-third of the occupier's rate for such lands:

Provided that in any Mahal such owner's rate shall in no case exceed the sum which, under the law for the time being in force for the assessment of land revenue, might be or has been assessed on such land on account of the increase in the annual value or produce thereof resulting from canal irrigation: that is. it shall not exceed a percentage of the difference between the "wet" and "dry" rent rates for similar classes of the land which shall be the percentage of net assets at which land Revenue might be or has been assessed on the Mahal.

Explanation

(a)

For the purpose of deciding whether owner's rate is chargeable, the field shall be taken as the unit, so that, in the case or any field in respect of which land revenue was assessed according to 'dry' rates, owner's rate will be payable when he field comes under canal irrigation.

(b)

It is immaterial whether land was irrigated from canals or from any other source at the time of settlement, the criterion is whether 'wet' or 'dry' rates were used as the basis for assessment in respect of that land.

(ii)

On canal irrigated land in revenue free Mahals, owner's rate shall be paid by the proprietors at one-third of the occupier's rate in respect of all land on which occupier's rate is levied; provided that the maximum prescribed for land in revenue paying Mahals under the proviso the rule (1) is not exceeded.

(iii)

As regards land where the owners are distinct from the grantees of the land revenue, and where the revenue was assessed at last settlement, but assigned to the grantees, owner's rate shall be paid by the proprietors in accordance with rule (1).

(iv)

The Patwaris of villages within which there is canal irrigation shall forthwith draw up lists of all fields which were not assessed at "wet" rates at the last settlement, viz of all fields entered as non irrigated in the Khasra of that settlement, and which are consequently liable now to owner's rates if irrigated since from the canal.

(v)

The lists thus drawn up shall be checked as follows:-

Twenty-five percent of the entries for each village are to be tested by Kanungos, ten percent by the Tehsildars, and five percent by assistant or Deputy Collectors. The entries tested should be noted in the lists by their numbers, and should include the culturable as well as the cultivated area, as much of the former will, of course, have been brought under cultivation since the last settlement, and with this have obtained also perhaps irrigation from the canal.

(vi)

The lists thus prepared shall be made over to the Irrigation department, who will note in their Khasra the owner's rate leviable in accordance with existing rules on each field.

(vii)

Collectors should keep up for each Mahal, for each harvest, a regular statement of demand, collections and balances on account of owner's rate.

Government of Rajasthan

Department of Irrigation, Jaipur

Standing Orders

1. Standing Order

No. T/26/1573, dated 4-9-19

Standing Orders will be issued by the Chief Engineer from time to time for the guidance and compliance by the members of this Department. Sufficient copies will be supplied to the Superintending Engineers to be distributed to all the officers concerned.

2. All Officers Engineering Subordinates, Divisional Accountants & Office Superintendents are supposed to open a separate file for the same and keep the standing Orders in proper sequence with them for ready reference.

3. The No. of previous orders are being revised and is being intimated separately.

2. Office Order (New Standing Order)

No. 30-A/SA/647, dated 30-1-1957

It has been observed by Government that officers act beyond their powers. The works which they are not competent to sanction are sanctioned by them thus exceeding their authority. The higher authorities are only moved to regularise the matter when objected to by the Accountant General.

In one case the sanction to the construction of the residential quarter at an estimated cost of Rs. 20,700/- was agreed to by the Irrigation authorities on 12th January, 1954 but the Government was requested to regularise the action taken in July 1954. On receipt of an objection from the Accountant General, Rajasthan. This is not a happy state of affairs.

It is, desirable that the officers should not exceed the financial powers delegated to them and if because of some urgency any action has been taken in anticipation of sanction, the competent authority should be moved to convey sanction simultaneously.

Serious view will be taken in future of any disciplinary action will be taken against the defaulters.

3. Office Order (New Standing Order)

No. 30-A/II/SA/853, dated 12-2-1957

The following instructions are issued for the guidance of all.

Heads of offices should show necessary records except confidential papers and offer all facilities to inspecting Officers of the Accountant General and their staff.

All records should be collected and kept ready for inspection by the inspection party.

All officers whose offices are to be inspected should remain at Head Quarters unless they have urgent business else where.

The officers should carefully verify the facts when the objection statements or draft para for inspection reports are

handed over either to them or their subordinates. The notes of dissent if any can be inserted while verifying the facts. The inspecting party should be informed in writing if any file asked for by them have been submitted to higher authority and are not available.

4. Office Order (New Standing Order)

No. 18 AU/1 I/B/SA/1234, dated 12-3-1957.

During the course of inspection of a Division it has been notified by the Accountant General that secured advances were paid to the contractors on perishable materials without adoption of precautionary measures to safeguard the interests of Government Rules 456(a) of the Public Works Financial & Accounts Rules provides that grant of such advances can only be made on the security of imperishable materials and on the distinct condition that a formal agreement (Indenture on form 31) is drawn up with the contractor under which the Government can secure a lien on the material and be safeguard against, losses due to the contractor postponing the execution of work or to the shortage or misuse of materials as also against the expense for their proper watch and safe custody.

It is enjoined on all that these instructions should be strictly followed in future.

5. Office Order (New Standing Order)

No. 30-A/SA/3549, dated 14-8-1957.

It has been noticed by the public Accounts Committee that certain subordinate officers had opened private bank accounts for Government transactions. This was in clear violation of Government orders and disciplinary action will be taken against persons doing so in future.

(2)

The Accountant General, has been pointing out many financial irregularities through inspection reports and draft paras from time to time. Officers are expected to pay personal attention to accounts matters and to see that such irregularities are avoided in future.

6. Office Order (New Standing Order)

No. 30-A/SA/2415, dated 20-5-1958.

It has come to notice that the Divisional Accountants are not regularly checking the accounts records of sub-divisional offices, periodically as laid down in para 101 of the PW Financial and Accounts Rules.

The Executive Engineers should see that the instructions are properly carried out and deviation, if any, report to the higher authorities for their orders.

7. Office Order (New Standing Order)

No. 30-A/SA/2873-2881, dated 12-6-1958.

It has come to notice that the Superintending Engineers while forwarding estimates may be sent to this office stating clearly the correct chargeable head.

It is, therefore, enjoined upon all concerned that in future the estimates may be sent to this office stating clearly the correct chargeable head with detailed classification and the provision in the uddet for the work in question. All estimates which do not contain the above information will be considered incomplete and are liable to be delayed.

8. Standing Order (New Standing Order)

No. 185-R/3128-20, dated 12-5-1959.

It is observed that the Khataunis or Jainabandis are not sent to the Revenue authorities in time by the recovery of Irrigation dues.

It is hereby ordered that Executive Engineers should see that they are prepared and sent to the Revenue authorities within the specified submission date. Executive Engineers should telegraphically inform the Chief Engineer, Irrigation giving area irrigated and total assessment of the fasal as well as actual date of submission of the Jamabandi.

9. Office Order (New Standing Order)

No. 30-A/SA/2601-26-06, dated 20-5-1958.

A case has recently come to notice in which the security deposit of a contractor of the irrigation department was transferred to the B & R. branch at the request of the department for adjustment against recoveries due from him in that department. In the absence of any concurrence of the contractor for such adjustment or order of the Court for recovery of the amount due, the adjustment carried out was not in order. The contractor failed a suit for the refund of his security deposited in the Irrigation Department which was upheld by the Court and a degree was passed against the Irrigation Department with cost.

To avoid such difficulties and unnecessary loss to Government it is hereby ordered that in future the amount lying under

deposit in the divisions of this Department should not be transferred to other department for adjustment against the outstanding dues of contractors without any order of the court or specific concurrence of the contractors concerned with the officers of the Department concerned should be asked to obtain. All the Executive Engineers in the Irrigation Department may be instructed to comply with these instructions strictly in future.

10. Office Order (New Standing Order)

No. 30A-SA/458, dated 11-8-59.

A case has come to notice in which the final bill of a contractor was paid by the Executive Engineer without execution of a proper agreement. This practice is in contravention of the rules on the subject and should stop forthwith.

According to clause 10 of the above Notice Inviting Tenders, it is obligatory on the part of the assigning authority that the successful tenderer must execute an agreement bond within 15 days of the receipt of the written order to commence the work. All concerned should be asked to note that these departmental instructions are strictly followed in future.

11. Standing Order (New Standing Order)

No. X/Tanks/6/3/7125-38, dated 21-10-1959.

It has been brought to notice several times that rain water, collecting in the canals breaches its banks to find its way out to some natural drainage. These breached banks have to be left unrepaired during the monsoon and delay usually occurs in repairing them owing to which canals cannot be run to meet paise demand which usually occurs early. It is, therefore, necessary to make pucca bandobast to escape such rain water so that there may be no breaches in the canals. One such arrangement would be to provide an opening in the wall of an aqueduct which would be kept closed with blands where the canal is run. Where there are no aqueduct suitable escape heads will have to be constructed. Necessary action in respect of old and new canals should be taken at once.

12. Standing Order (Gauges Of Canals & Discharge)

No. 24 HS/479-502, dated 20-10-1959 & 24-HS/541-555, dated 27-10- 1959.

Road and tail gauges of all main, canals, distributaries and minors shall be read daily at 8 A.M. every day during that period when they are run. These gauges shall be recorded in a gauge register (which may be manuscript until a printed gauge register is made available) to be maintained by all section Overseers, Assistant Engineers and Executive Engineers. These registers must be posted day by day and shall be permanent record.

2. Until pucca gauges are constructed, the observations may be taken by mean of a measuring rod, the depth of water being observed on the canal bed.

3. Discharges of all channels shall be observed at head, atleast once a month by the Overseers and Assistant Engineers. The letter shall submit these to the Executive Engineers in monthly statements, and shall also keep record in a register in the sub- divisional office.

13. Standing Order

No. 24-HS/503-24, dated 20-10-1959.

Rain gauges should be installed at once on all Irrigation Department's Rest Houses or Inspection Houses and rain fall record in respect of these rain gauges shall be maintained throughout the year in all the offices concerned.

14. Office Order (New Standing Order)

No. 30-A/SA/6592, dated 26-11-1959.

The Government have observed that Officers appointed incharges of cases filed in courts do not supply necessary material to the Government Pleaders in time with the result that written statements are received just a day or two before they are to be fitted in the court of Law. In the circumstances the law Department has to examine the defence taken at a very short notice in consultation with the Administrative Department. As timely and expeditious submission of factual reports by the Department officers is necessary to ensure proper scrutiny of the cases all officers appointed Incharge of a suit filed in account of Law should arrange to supply all relevant materials for the Law Department as early as possible within the dates of the suit filed. As it is very necessary that the interest of Government be safe guarded, any defaults of this nature shall in future be severely dealt with.

15. Standing Order (New Standing Order)

No. T/26/2039, dated 29-10-1959.

It has been observed that projects had been submitted, without verifying the actual GCA & CCA. It is, hereby ordered that before a project is prepared. Executive Engineers should prepare a Sajra Sheet of command area on the cloth, get the command contour surveyed and mark contour at suitable interval and the canal alignment shown in it. A correct area statistics of the proposed CCA based on the revenue records should be worked out. The command area should also be

inspected and existing average cropping shown in a statement. The Executive Engineer should satisfy himself that proposed irrigation will be possible to attain.

16. Der (New Standing Order)

No. T/26/2040, dated 5-11-1959.

Blue print plans submitted with the estimates are some times very dim and also portions quite indistinct. It is, therefore ordered that before submission of estimates. Head-Draftsman of Superintending Engineer's and Executive Engineer's Office will carefully see all the blue print plant that they are complete in all respects and all the indistinct portions have been re-written in white thin ink. Failing in this respect defaulter entry will be earned by them, all longitudinal sections of canal should show bed level in red, ground level in black and full supply level in blue ink lines. Top of the bank need not be shown.

17. Office Order (New Standing Order)

No T/643-W/III/2229-2237, dated 11-12-1959.

Government have taken a serious view about the damages that have occurred to the Irrigation Works. It has been observed particularly in the case of Girinanda Tank in Pali Distt. that damage was caused due to an error of judgment made by the officers concerned. The masonry dam overflow section was raised earlier than the earth flank and as the tendered rates for the earth work were high, they wanted to save money by making other arrangements for construction. There was thus delay in reaching the designed height of flanks and in the man while an unexpected heavy storm brought down a big flood which caused all the damage. Under these circumstances although the loss was not due to any embezzlement of or malafide act on the part of staff, yet the responsibility had to be fixed due to an error of judgment. It is therefore, desired that irrigation officers should give more attention to irrigation structures as mishap to irrigation works, generally leads to a great loss of life and property apart from financial liabilities for their restoration. All the officers should, therefore exercise their best judgment depending upon the relevant circumstances of the case to avoid re occurrence of the similar loss in future.

18. New Standing Order

No. 30A/SA/1764-76, dated 24-3-1960.

It has been brought to my notice that payments of works and refund of securities are not made timely to the contractors and in some cases they are lying withheld from a long time.

It is, therefore, impressed upon the superintending engineer that they should look into the cause of non payments during their inspections of Divisional Offices and see the payments are not unnecessarily withheld.

Cases of non-payment of Bills for more than six months and of refund of securities beyond the due dates should be reported.

19. Standing Order (New Standing Order)

No. T/26/621-624, dated 24-3-1969.

In all Projects the commanded area shall be inspected by the Executive Engineers who shall incorporate the result of his inspection in the report of the project clearly stating the type of soil met with, spring levels, even or uneven nature of the country extent of its being cut up by nalas or rains, depth of soil cover over rock if it is less than a foot any where, and express his opinion in clear terms whether the area is generally fit for irrigation or not.

20. Standing Order (New Standing Order)

No. T-26A/232, 1233, 1234, dated 9-6-1960.

It has been observed that the abstract of cost of Irrigation Project estimates are not prepared. Sub-head-wise in the prescribed proforma.

It is, hereby ordered that estimates should be submitted in the enclosed prescribed proforma.

Copy of Proforma:

Abstract of cost:

Direct Charges:

I-Works

1.

-HEAD WORKS

A-Preliminary.

B-Land.

C-Works.

K-Building.
L-Earth work.
M-Plantation.
O-Miscellaneous.
P-Maintenance.
Total of Head Works:
2.
-MAIN CANAL
A-Preliminary.
B-Land.
C-Works.
D-Regulators.
E-Falls.
F Cross Drainage Works.
G Bridges.
H-Escapes.
L-Earth work.
M-Plantation.
O-Miscellaneous.
P-Maintenance.
Total of 2 Main Canal
3.
-Distributaries & Minors:
4.
-Water Courses:
5.
-Special Tools & Plants.
Total of I Works.
II-Establishment.
III-Ordinary T & P
IV-Suspense.
Total Direct charges.
Indirect Charges:
1. Capitalisation of abutment of land revenue.
2. Audit & Accounts charges 1% on direct charges.
Total of indirect charges:
Total Cost:
1. Direct Charges.
2. Indirect Charges.
Grand Total
21. (New Standing Order)

No. 135A/SA/7047-889, dated 6-12-1960.

I am directed to say that it has come to the notice of the Government and the Chief Engineer in course of Departmental enquiries that during Execution of Projects, major alternations in approved structural details are often made by Subordinate officers without obtaining prior written approval of the competent authority with the result that nomenclature of work tendered for and contracted with contractors is changed and claims are received for these items at exorbitant rates. The schedule of powers sanctioned by the Government contains the powers that have been delegated to different officers, but inspite of these clear limitations instances have come to light where unauthorised promises were made to the contractors for payment of extra items at untenable rates without concurrence of the authority competent to sanction such deviations.

I am therefore directed to invite your attention to the limitation of powers delegated to you in the schedule of powers as

also to the responsibilities prescribed in the manual of orders and to say that any lapses on the part of officers in deviating from their prescribed duties and responsibilities without sufficient justification and advance intimation to competent authority would render them liable to disciplinary action under CCA rules.

I am also directed to impress upon you that the contract agreement should be very carefully studied at the time of execution and vague specifications and nomenclatures should be carefully avoided. Deviation from agreed conditions of contract should not be allowed until sanction of the competent authority has been obtained and rates for new items entailed have competent approval, whenever any irregularity in the observation of prescribed rules and procedure is observed by a checking officer he should immediately bring it to the notice of his superiors.

The Departmental rules also lay down that subordinate offices should be inspected by Officers placed higher above them from time to time to ensure that no irregularities take place. I am directed to say that a separate report at the close of every year about each officer working under you should be sent to this office showing as to how many inspections he was expected to do and the inspections actually done by him and whether these were properly conducted and suitable action wherever necessary was taken. Instructions contained in the Departmental manual of orders regarding correspondence with contractors should also be strictly observed.

Receipt of this letter may kindly be acknowledged.

22. (New Standing Order)

No. T/26A/SA/657 to 678, dated 21-3-1961.

Sub:-Construction of Buildings for Irrigation Department.

It is being observed that in certain cases estimates and drawings submitted to this office do not bear the signatures of the concerned Executive Engineer and in some cases old drawings are furnished which bear the out dated signatures of the Executive Engineer who is no more incharge.

In case of buildings, total plinth area, estimated cost and cost per sq fts. should be indicated on the plan.

While submitting estimates for construction of residential building and rest houses etc. an index plan showing the existing similar buildings in the area be also furnished. In case of rest Houses the existing PDW & Forest Rest Houses be also indicated. This will help in deciding whether the construction of the building is actually necessary or not.

23. Order (New Standing Order)

No. 208-R/Khari/60/2947-62, dated 23-3-62.

The question of submission of Khatonies for Zaid crop was under examination of this office. The Chief Engineer has been pleased to order that in whatever fasal the Zaid crop is first irrigated, the Khatonies should be prepared in that fasal and sent to the Revenue Authorities by the due dated fixed for that fasal.

I am directed to request you to keep this in view for future guidance.

24. Office Order (New Standing Order)

No. 30A/SA/4382, dated 23-6-1961.

A case has come to notice in which a contract for work given on 21st Nov. 1953. and due to be finished in one year was not completed for several years and extension of time had to be given without penalty as detailed drawings of some parts of the work could not be finalised and given to the contractor. This state of affairs is very objectionable both for the contractor and for the Government and I am therefore, to request you to see that drawings and details are fully settled before a work is given out on contract and delays and extension on this account are avoided. Charges should be necessary in exceptional cases only when something unforeseen occurs.

25. Circular (New Standing Order)

No. 117-HS/1474-75, dated 25-8-1961.

It has been observed that staff posted at gauge sites do not possess details of the sites in question. It is essential that such gauge site must be provided with Longitudinal and cross- sections of the river indicating the position of gauge pillars. A plan of the site on 1 inch to a mile scale should also be prepared. Framed in glass and keep at site. Site should also be connected with GTS Bench Mark.

Some of the gauge readers are ignorant of their duties and except recording the river gauges, at fixed hours, they have no other work to do nor they have been given instructions or training their daily work when necessary proforma to record and analyst to do the gauges have already been supplied. They must be given training to observe surface velocity as well as imparted training to calculate the discharges for which gauge & discharge table of the site under observations should be prepared and keep at site on the basis of maximum anticipated flood heights.

The gauge reader should be vigilant particularly at the times of floods to collect rain fall figures of the closely catchment

stations besides his own and enter such information in the remarks column i.e. the particular floods at gauge site have come because of heavy rainfall at such and such stations on such and such days. Such records would be useful to determine the rainfall and run off relation. The gauge reader should also record duration of rains as well as intensity if it is a recording rain gauge station in the remarks column.

During the rains. Assistant Engineer, Incharge Field Assistant Incharge and Section Overseer should visit the gauge site and check the work of gauge readers as many times as possible.

The gauge reader or the observer must show his register to the superior officer who comes to inspect site and get his signatures.

It should be the responsibility of each visiting officer to go through the gauge and pocket registers and record their views in the remarks column.

26. Standing Order (New Standing Order)

No. II/C & M/40/8478-514, dated 31-8-61.

Some of the important dams constructed during the first plan breached or sustained heavy damages during the monsoon and the inquiry commissions appointed to investigate the reasons of breaches have pointed out some of the defects in their execution which caused the trouble.

In one of the cases black cotton soil was largely used for the construction and in some layers soil mixed with gravel fanning a pervious layer had been put. Borrow pits were dug hardly 15' away from the U/S. although specifications clearly laid down (that this distance should in no case be less than 100'). No attention was paid to quality of work in an attempt to hurriedly complete it with the result that the dam could not withstand the first flood.

In another case proper care was not taken to connect the old earth work with the new work and adequate overlap on a flat benching which is very necessary in such cases to avoid differential settlement, was not provided. Certain instances come to light where watering and consolidation had not been uniform and was below standard and no arrangements were made for proper quality control with required equipment for carrying out necessary tests at each stage. Some of these defects were obviously due to lack of intensive supervision which is required for such works. The contractor also did not have the equipment or experience expected of them.

It is therefore, enjoined upon all concerned that works would be executed with utmost care under the close supervision of officers and subordinates having requisite qualification and experiences.

27. New Standing Order

No. 656, dated 19-1-1962.

Sub.-Checking of Irrigation.

The manual of orders of the Irrigation Department in chapter VII para 20(iii) lays down that Irrigation should be checked by the various Revenue & Engineer Officers upto a limit to be prescribed by the Government. Since there was comparatively lesser irrigation in almost all the divisions except in Ganganagar Circle, no definite percentage has so far been fixed for the checking. The irrigation in most of the Divisions has not developed to a stage where checking of a particular standard is considered essential. A statement showing the division wise checking required for Kharif and Rabi crops by the Executive Engineer, Assistant Engineers. Dy. Collector and Zildar is being enclosed for the approval of the Government for making it applicable throughout the State. The Executive Engineers are meanwhile being requested to adhere to these limits in anticipation of Government sanction.

The selection of the village which are to be checked for final check measurement will rest with the Divisional Canal Officer, but the sub-divisional officer should be encouraged to indicate localities where check measurements appear desirable, which their irrigation registers should enable them to do with considerable precision.

To avoid any suspicion of perfunctory work, checks should not be made by the selecting fields here and there as they may chance to be easily seen or inspected. The whole irrigated area of a selected village, or defined portion of such village should be subjected to a complete check. When it is intended to check a portion only of a village an area with defined limits should be selected and the whole of that area brought under operation. This area may be the whole portion of a village lying on one side of a distributory or road, or the portion lying between two water courses, or irrigated from one water course as may be found convenient and advisable after inspection of the ground or village map, the aim being to select a compact block of fields of about 50 acres in extent.

All checking officers in the course of their inspection tours should check as far as possible the initial entries made by the Patwanes of fields irrigated (Shudhkar) in order to ensure the prompt and correct entry of all irrigation as effected.

This is very important and every officer is required to check a very much greater area during the currency of a crop than

he can check measure during the short period of final measurement.

Every officer should initial in ink, the Shudhkar apposite every field which he has checked in the course of "Kacha Partal".

28. Standing Order (New Standing Order)

No. T/26/359-379, dated 13-2-1962.

The procedure of sanctioning longitudinal sections of canals has been reviewed and it is hereby ordered that longitudinal sections of all canals of minor irrigation works i.e. costing Rs. 10.00 lacs and below each shall be approved by the concerned superintending Engineer after preparing the shajra sheets and classification of land as per standing order No. 4. Therefore, all long sections of minor irrigation taken should bear signatures of the Superintending Engineer as token of his approval. A copy of such approved long sections should be sent to this office for information of the Chief Engineer. The Longitudinal section of all channels of major and medium projects shall continue to be put up to the Chief Engineer for approval.

29. Circular (New Standing Order)

No. ASSEMBLY/MISC/2277, dated 23-3-1962.

Sub.-Quick Disposal of Assembly Question.

It has been observed in the past that generally replies to Assembly questions do not reach this office well in time with the result that the replies are not sent to Government well in advance. Further it is also observed that while answering starred questions a supplementary note about the matter is not received at all from some of the Executive Engineers while others send a very sketchy and incomplete note which does not serve the purpose. Hence it is desired that the note should be exhaustive enough to cover all possible supplementary information that may be required or asked for. Replies to the Assembly should be sent within the time prescribed. All communications pertaining to Assembly and parliamentary questions should be dealt with on 'TOP PRIORITY' at all levels.

30. Circular (New Standing Order)

No. 117-H/S/328-52, 358-446, dated 28-3-1962.

It has been observed that demand of current meters have been received from some of the divisions for observing discharges of canals.

It is felt that it is not necessary to use current meters which are expensive and delicate for observation of discharges of distributories and small canals by overseers. They should use velocity rods which can be obtained easily and in the meanwhile flat wooden floats of 2" diam, and one inch thick can be used after applying necessary corrections.

In case of canals having a discharge of 500 cusecs or more discharges may also be taken by observers in the dry season. To start with this Chambal and Bhakra System may be taken up first.

To obtain the services of hydrology staff where such staff is not deputed, a programme of running the channels may be intimated in advance to the hydrology Assistant of this office who in turn would direct the trained staff with necessary equipments to observe the discharges of canals.

31. Standing Order (New Standing Order)

No..... dated 27-3-1962.

During recent inspection of works, it is observed that designs of the waste weirs are generally defective as there do not have any protective works on the down stream for dissipation of energy of falling water below the spleway in absence of these works, the strata just below the Engineer waste weir is scoured out thereby exposing the structure to greater risk.

In order to avoid damage due to under mining in future provision for construction of suitable buckets be made in the estimates for all important works to be submitted to this office. In case of existing works and works under construction proposals for providing such works wherever necessary, should be prepared immediately.

32. (New Standing Order)

No. 2187-62, dated 30-3-1962.

Sub.-Issue of Tender Notice in the Irrigation Department.

Attention is hereby invited to Government Orders Conveyed to you vide this office endt. No. 25A/SA/5931, dated 10-4-1961. The Accountant General, Rajasthan, has brought in the Notice of the undersigned (copy enclosed) that short time tender notices are generally issued by the Departmental Offices which fall short of a month even on big Projects. This results in the Government depriving of the benefits anticipated from fair comparative rates.

It is, therefore, requested that proper compliance to the Government Orders referred to above should draw future and instructions to this effect may please be issued to all concerned.

33. Circular (New Standing Order)

No. 117-HS/447-555, dated 29-3-1962.

It is informed to all concerned that Government of Rajasthan, have agreed to the proposals of the Government of India regarding inspection of state managed rain gauges by India Meteorological Department of India.

It is, therefore, desired that Irrigation Branch Officers when touring should inspect any rain gauges they see in the course of their tour and take action to set right defects if any.

A report of the rain gauges stations in acted by the Officers should also be sent to his office time to time.

34. Standing Order (New Standing Order)

No. T/26A/1020, dated 12-6-1962.

The work of recording of rain fall and run-off and its analysis is not being done in a systematic manner with the result that there is no reliable data available for preparing Project. The run-off data assumed in the project to be based invariably on the Strange's run-off series where the maximum flood discharge for projects is generally worked out by using the Dicknes formula after assuming constants for different areas.

Experience has shown that these assumptions have differed substantially from the actuals and this necessitates that we should collect rainfall and run -off figures in this state on systematic lines.

It is, therefore, ordered that from the rain seasons of 1962 onwards the following procedure will be adopted for this purpose:-

1. Gauging of Rainfall.- Number of rain gauge stations are being maintained by the irrigation and the Revenue Department. The Executive Engineers are responsible for correct collections and record of rainfall data for the stations falling in their jurisdiction. Before monsoons, each year Executive Engineers should ensure that the rain gauges are in proper order as per standard instructions and before 15th of June, these should be inspected by the concerned Assistant Engineers and a certificate should be recorded by them in the rainfall register maintained at each station, regarding the correctness of the rain gauge installations. Rainfall registers should be maintained at the rain gauge sites, office of Asstt. Engineers. Executive Engineers and Superintending Engineer. A rainfall register will also be maintained in the Office of the Chief Engineer. The rain gauge reader should be provided sufficient stationary and stamps for sending the information daily direct to the concerned quarters. As usual rainfall of 1 inch and over should be communicated by telegram. Whenever a senior officer inspects the lower office or the actual rain gauge site he should check the register & sign it as a token of his visit and give instruction if the recording is not in order. The intensity and duration of rainfall should also be given in the remarks column. It will be the responsibility of the concerned Assistant Engineer that detailed instructions of proper recording of the rainfall are given to the concerned observer and to make sure that he has correctly understood and complied accordingly.

2. Recording of inflow and overflow of existing tanks.- All tanks under the charge of Irrigation Department should have tank gauges and capacity charts, Gauges of all tanks having capacity more than 100 m.ft. should definitely be recorded from the coming monsoon & sent to the concerned quarters in the prescribed proforma as per instructions already in force. A charge giving discharge in cusecs for various heights overflow over the weir should be prepared by concerned Assistant engineer for every tank in their charge and the gauges over the weir should be recorded every 3 hours or less as per necessity after the tank starts overflowing. Water surplussed over the waste weir should be calculated by the Assistant Engineer himself and sent all concerned latest by the end of Nov. each year. The tank gauge registers should be calculated by the Assistant Engineer himself and sent to all concerned latest by the end of Nov. each year. The tank gauge registers should be seen by the higher inspecting officers during their inspections and should be invariably signed by them.

3. River discharge gauging site. - a number of river gauge sites are being maintained by regular or construction or by the Survey & Investigations. Instructions regarding selection of sites, a actual gauging and recording have been issued from time to time from this office. It will be the responsibility of the Executive Engineer to ensure that the gauging of the rivers is being done in a regular and correct way. They should compile the data and work out the run-off in million Cft and maximum flood discharge at sites after preparing hydro-graphs. Efforts should also be made to co-relate rainfall with run-off data in various catchments and work out the constants of run-off and maximum flood discharge. The results should be communicated by the Executive Engineers direct to the Chief Engineer, Irrigation, by the end of November without fail.

The instructions should be strictly enforced and any laxity on the part of the Officers will be viewed seriously. Receipt of this order is acknowledged.

35. Standing Order (New Standing Order)

No. T/26-A/1063, dated:

In the Minor Irrigation Schemes live storage is at present being considered above sluice still level. It has been seen in actual practice that the full water above the sill level does not and cannot also flow in the canal (as no working head is being accounted for). It has therefore, been decided by the Chief Engineer that in future live storage should be considered above the FSL of canal where the sill level of the sluice corresponds with the bed level of the canal.

36. Standing Order (New Standing Order)

No. 14, dated 22-6-1962.

It has been brought to the notice of the Chief Engineer, the Officers inspecting works under their jurisdiction do not give inspection notes regularly. It is, therefore, hereby ordered that all officers should give an inspection note for every inspection carried out by them within one month of the inspection. A copy of the inspection note should so forwarded to the Subordinate officers concerned and the immediate Officer for information and necessary action.

37. Standing Order (New Standing Order)

No. T/25-A/1168, dated 6-7-1962.

The following procedure should be adopted for construction of new bridges by P.W.D. (B & R) on the existing irrigation channels, crossings of roads under their charge.

The designing or execution of bridges or culvert shall be done by the P.W.D. (B & R) authorities according to their own standard specifications but existing bed width full supply depth and free beside of the canal below the bridge should be provided according to the designed longitudinal section of the canal. Before taking up the work, the design will be referred to concerned Executive Engineer, who will ensure that these dimensions are in order bed levels of canal are not altered and that the introduction of bridge/culvert does not in any case reduce the discharge capacity and the free board of the canal.

2. The Executive Engineer. Irrigation will ensure that these works are completed by the P.W.D. (B & R) within the minimum period possible and that adequate arrangements to complete the work expeditiously are made before disturbing the canal P.W.D. (B & R) will also make arrangements for diversion of canal if needed so that irrigation is not effected and that no damage is caused to the adjacent fields, properties and canal etc.

3. After all the pre-requisite are completed. The Executive Engineer or the Assistant Engineer of the Irrigation Departmental shall inspect these arrangements and written authority shall be given by him to P.W.D. (B & R) to disturb the canal and to complete the bridge within the period to be stipulated therein.

38. Office Order (New Standing Order)

No. XII/62/5933-5976, dated 27-7-1962.

It has come to the notice of the Chief Engineer, that reports on petitions and other references are greatly delayed if they are routed through proper channel.

Normally such reports originate from the overseer or the Assistant Engineer and it will be expeditious if a copy of the reference made for obtaining a report is sent to the Assistant Engineer concerned with a spare copy for the overseer, for furnishing a report. The Assistant Engineer will prepare a report and send a copy direct to the Chief Engineer with another copy through proper channel. The report obtained from the Asstt. Engineer will be examined by the Chief Engineer and unless it requires some further confirmation, necessary action on the same would be taken. The Executive Engineer and Superintending Engineer should forward the report of the Assistant Engineer with their comments without any delay.

Necessary action in accordance with the above may kindly be taken.

39. Standing Order

Sub.-Monthly progress of expenditure on the works of Third five year plan.

It has come to my notice that the above mentioned Monthly progress Report of expenditure is generally sent to this office in time which results in delay in submission of consolidated report to the Government and a number of other returns are also delayed on this account. The Government have already fixed the date for submission of consolidated monthly progress report by this office as 30th of the following month.

It is hereby ordered that in future the above mentioned report should reach this office by 15th of the following month without fail. The Divisional Accountant will be held responsible for any delay in submission of these reports. In the case of the Executive Engineer being on tour the Divisional Accountant should sign the report on behalf of Executive Engineer and send it on the due date.

40. Standing Order

It has come to the notice of the Chief Engineer that the girdawari done by the Irrigation Revenue staff is sometimes subject to dispute which a later date cannot be properly decided. It is, therefore hereby, ordered that the irrigation Patwari should notify a programme of measurement to the Sarpanch of the village with the request that he should also be present when the girdawari is in progress. Such intimation shall be sent along with similar information to the Revenue Patwari and efforts should be made to obtain their association in the Girdawari working.

41. Standing Order

No. T/26/20/4. dated 28-9-1962.

It appears that the budget is not being regularly reviewed by the Superintending Engineers with respect to the expenditure incurred. The recent scrutiny by the Personal Asstt. reveals that no expenditure has been incurred on some of the items which are being carried forward even for the last two years. It is enjoined upon all the Superintending Engineers that they should hold periodical meetings (preferably every quarter) with their Executive Engineers to review the progress made with respect to each item of the budget, and if there be any bottleneck, immediate steps be taken to remove them. The Superintending Engineers should see to it personally that the works provided in the budget are started as early as possible and well regulated expenditure thereon is incurred and the rushing of the work during the last quarter of the year is avoided.

Similar reviews of the budget of their Divisions should be done by the Executive Engineers with their Assistant Engineers and Subordinates almost once in every two months and take immediate steps to speed up the progress of the works.

42. Standing Order

No. 30A/SA/9087, dated 11-9-62.

Sub.-Time limit regarding transmission of replies of the Inspection Reports and Audit para to the Accountant General.

In the P.A.C. meeting held on the 20th August, 1962 it was felt that the Inspection Reports and Audit Paras are not promptly and expeditiously dealt with, with the result that the replies remained pending for a long time and reached the Accountant General. Rajasthan a very late. In order to ensure the expeditious disposal of the inspection Reports and Audit Paras the following time limit is fixed for the disposal and transmission of replies of the Inspection Report and Audit Paras:-

The Inspection reports should invariably be replied by the Divisional officer within a period of one month from the date of receipt and thereafter it should be sent to the Superintending Engineer concerned for his comments on receipt of the compliance report of the Inspection Report from the Divisional Officer, the Superintending Engineer concerned should go through it and having dealing with it. he should pass it on to the Accountant General. Rajasthan, Jaipur within a month at the latest, positively.

Similarly, the audit paras should also be dealt with and reply in the manner as stated above be sent to the Accountant General, Rajasthan and the undersigned as the case may be.

On receipt of reply of the Audit para the Office of the undersigned will take 25 days in disposing of and sending report to the Accountant General, Rajasthan Jaipur.

It is enjoined upon all concerned to follow the obey procedure carefully.

43. Standing Order

No. 30A/SA/9387, dated 27-9-1962.

Sub.-Time Limit for the submission of Tenders.

It has been observed that the tenders after receipt on the prescribed date, remain pending for long time in the divisional and Circle Offices and are received in Chief Engineers Office just a few days before the expiry of the period of 4 months of their validity. In cases when the tenders are passed on to Government for acceptance, enough time is not left for the secreteariate for scrutiny and conveying Government orders. Meanwhile validity period of senders expires and contractors generally back out to take up the works resulting in repeatedly recalling of tenders. In this Government money and the time is unnecessarily wasted and the Accountant General, Rajasthan, Jaipur has prepared draft paras on this point.

In order to ensure speedy disposal of tenders the following time limit is fixed which should be strictly adhered to.

After having received the tenders by the Divisional Officers on the appointed day these will invariably be forwarded to the Superintending Engineer concerned duly recommended by the Divisional Officer within a fortnight or sanction them if they are within his powers to sanction during the same period. The Superintending Engineer after considering over the

recommendations of the Divisional Officers will forward the tenders to the undersigned, with his recommendations, within a period not exceeding another fortnight. If however, a reference is to be made to the Executive Engineer for some clarification he should forward the tender to this office within a month. If the tenders are within his competence, they may be sanctioned within a month.

The Officer of the undersigned will likewise take a maximum period of one month in forwarding the tenders to the Government or in disposing off them as the case may be. It may however, be ensured that tenders are called for the works, estimate of which have been technically sanctioned or finalised by this office for technical section.

44. Standing Order

No. F-72A/SA/9575, dated 10-10-1962.

Sub.-Monthly Return for expenditure figure.

At present the following three returns for monthly expenditure are being received from your office:-

1. Monthly progress report of works expenditure.
2. Returns of Control Assistance.
3. Statement of Reconciliation figures.

These should be discontinued. In future, the monthly return of expenditure should be sent in the proforma attached herewith, on basis of monthly accounts, as the same figure will be recorded in this office register for reconciliation purpose with the A.G. Office and for furnishing the various statements of expenditure to Government. The return should reach this office positively on or before 15th of each of the following month, as standing order issued, vide this office letter No. T-2/6/1607. dated 11-9-1962.

The Divisional Offices should send the figures of all the concerning heads of accounts under head 199-Capital Outlay etc. and 43 Irrig. N.E. & D. Works workwise information should be given for each work as is being done presently. The expenditure through accounts should come on basis of monthly account and the figures of establishment should be provided as booked in the offices subject to change while reconciling the same in the Office of the Accountant General, Rajasthan, Jaipur.

Proforma

S.No.

Particulars

Budget allotment

Expenditure during the year

Excess & Saving of Col. 3 & 6

Remarks, if any

Upto last month of the current year

During the month under report

Progressive total of the current year

1

2

3

4

5

6

7

8

42-MULTIPURPOSE RIVERSCHEMES (BHAKRANANGAL PROJECT)

(a) Extension & Improv.

(b) M & R

(c) ESTABLISHMENT

(i) Through Accounts.

(ii) Through Treasury.

Total spl. Estt. Rs.

(iii) Other Establishment.

Through Accounts.

Through Treasury.

Total other Estt.

(d) T & P

(e) Suspense

Debit

Credit

Net

Total

D/d R. & R.-----

Grand total "42"-----

43-IRRIG N.E. & D. WORKS (COMMERCIAL)

(NAME OF

WORK)

(a) E. & I.

(b) M. & R. (i) Contribution

payable to Punjab Government.

(ii) Other

Expenditure incurred in Rajasthan.

(c) Establishment

Through accounts.

Through Treasury.

Total Estt.

Grant Total Rs.-----

44-IRRIGATION N. E. & D. WORKS

(a) E. & I.

(b) M. & R.

(c) Estt. Contg.

(d) Suspense.

Dabit.

Credit

Net.

G. Total

44-CHARGES ON IRR1G. (COMBINED)

ESTT. T &

P.

(a) Estt. Contg.

(b) T & P.

44-IRRIGATION N.E. & d. WORKS

Irrigation works (i) works.

(ii) Misc. (Plan exp.)

(a) Estt.. Contg.

(b) T & P

(c) Other charges:-

Suspense:

Debit.

Credit.

Net-----

Total:- Rs.-----

Add. Exp. Through Treasury Rs.

Grant total 2-Misc.

98-CAPITAL OUTLAY ON MULTIPURPOSE RIVER SCHEMES, BHAKRA

NANGAL PROJECT.

(a) Works.

(b) Establishment.

(c) Tools & Plants.

(d) Suspense (Net).

Total Rs.

D/D. R.& R.

G. Total Rs.

Chambal Project:

1. Productive Irrig. Branch Portion: untill Kota Barrage.

(a) Works.

(b) Estt.

(c) T. & P.

(d) Suspense

(e) Int. On. capital a/c.

(f) D/d. R. & R.

Total 1

Kota Barrage.

Unit

2-Canals in Rajasthan

(2) (i) in Left canal.

(a) Works.

(b) Estt.

(c) T. & P.

(d) Suspense.

(e) Int. On. capital a/c.

(f) D/D. R. & R.

TOTAL LEFT

CANAL

2. (ii) Right Canal.

(a) Works.

(b) Estt.

(c) T. & P.

(d) Suspense

(e) Int. On. capital a/c.

(f) D/d. R. & R.

Total

1-Irrig. Branch Portion.

99-CAPITAL OUTLAY ON IRRIGATIONN.E. & D. WORKS

(COMMERCIAL)

(PLAN EXP.)

1. Name of work.

(a) Works.

(b) Establishment.

Through Accounts.

Through Treasury.

Total Estt.

(c) T&P.

(d) Suspense.

Debit.

Credit.

Net.

Total:-

D/d. R & R

G. Total

2.

3.

4. MINOR IRRIGATION WORKS (PLAN EXP.)(DETAILS OF EACH WORK SHOULD BE GIVEN)

5. E & I (Non-Plan)

6. Flood Control Works (Plan Exp.)

45. Standing Order

No. T/26/2193, dated 24-10-62.

The correspondence received from the Subordinate Offices often indicates lack or clear understanding of various rules, Government Orders and circulars.

This off hand disposal on the part of the subordinates offices does not reflect well. Ignorance of the latest rules on the subject will be looked up with disfavour and will make the official concerned liable for disciplinary action.

46. Standing Order

No. 80-A/SA/21146, dated 7-11-62.

A case has come to my notice that earnest money for a work was accepted by a Circle Office in the form of cheque which could not be encashed. The acceptance of earnest money by cheque is not permissible under the financial rules and should not have been accepted. It is again emphasised that earnest money should be accepted only in any of the following manner:

1. Cash through treasury challan or Bank receipt.
2. Treasury Savings deposits certificates and National Plan Certificates.
3. Post Office Cash Certificates.
4. Fixed deposit receipt of any scheduled bank.

47. Standing Order

No. 30A/SA/12443, dated 7-11-1962.

Sub.-Termination of Contract & Letting out it to the Same Contractor.

A case has come to the notice of the Chief Eng. Jrri. Jaipur that a contractor transportation of Government articles in a division expired on a date but after the expiry of the contract period, the contract was continued in the name of the same firm on the same terms and conditions. This procedure was irregular which created complications and was exposed to criticism by other firms.

As a matter of fact fresh tenders should have been called for the work as soon as the contract was over in order to avoid the repetition of such occurrences. It is enjoined upon all concerned to call for fresh quotations tender for the further work if necessary.

48. Standing Order

No. 44-SA/Recon/12595, dated 26-11-1962.

Sub.-Monthly Return for Expenditure Figures.

In continuation of this office standing order No. 44 issued vide this office No. F/72A/SA/9575, dated 10-10-1962, it is hereby ordered that the expenditure under head "32-Misc" Social & Development Organisation C. Misc. (3) Social Welfare Development schemes for schedule tribes in schedule acres v) Irrigation (Plan expenditure) should also be sent along with the monthly progress report by the concerning Divisional Office, showing the details of each works.

49. Standing Order

No. T/26-A/2522, dated 8-12-1962.

Sub.-Performance of Irrigation Projects.

A number of Irrigation Projects have been completed in First, Second and Third Five Year Plans but actual Irrigation in most of them is less than the targets. The water stored in either not being fully utilised or the use of water is not so efficient as it should have been, with the result that in the almost all the project the duty of 10 acres per mcft. is not being achieved, in certain project harif irrigation, i.e. done in the command which utilises more quantity of water.

It is, therefore, necessary that performance register of every projects having more than one thousand acres by flow irrig.

in the enclosed proforma is maintained in the offices of the Assistant Engineers Executive Engineers and the Superintending Engineer to watch the progressive utilisation. The Executive Engineers will send the figures of Rabi and Kharif Irrigation for the proceeding year in the prescribed proforma for flow irrigation like Chambal, Bhakra, garwan, Kalishindh etc. in which no storage is involved will be a little different a copy of which is also enclosed.

Performance of Irrigation During.....

S. No.

Name of project

Live storage Capacity (Designed) Mcft.

Estt. Annual Irrig. Acres.

Kharif Acres.

Assessment Kharif (Rs.)

1

2

3

4

5

6

Live storage before rains of (Mcft)

Live storage in Kharif before rains of (Mcft)

Live storage after rain of (Mcft)

Live storage before start of Rabi Irrig. of
(Mcft)

Live storage lost in evaporation or used in

Kharif after rains (col. 9-10) (Mcft)

7

8

9

10

11

Rabi Irrig. (Acres)

Rabi Assessment (Rs.)

Total assessment (Col. 6+13)

Other income if any (Rs.)

Total income (col. 15+6) (Rs.)

12

13

14

15

16

Total income (col. 15+6) (Rs.)

Live storage after Rabi (Mcft)

Live storage used in Rabi (Col. 10+18) (Mcft)

Duty in Rabi in acres per (Mcft) col. 12, col. 19

Remarks

17

18

19

20

21

Performance of Irrigation Projects During.....

S. No.

Name of project
 Estt. Annual Irrig. Acres.
 Kharif Acres.
 Assessment Kharif (Rs.)
 Rabi Irrig. Acres
 1
 2
 3
 4
 5
 6
 Rabi Assessment (Rs.)
 Total Irrig. (Col. 4+6)
 Total Assessment (Col. 5+7) (Rs.)
 Other income if any, (Rs.)
 Total income (Col. 9+10) (Rs.)
 Remarks

7
 8
 9
 10
 11
 12

50. Standing Orders

No. 208-R/G/C2/2159-92, dated 18-3-1963.

It has been decided that the Sarpanch or the Panch of the area should be associated with the work of final Girdawari done by the Irrigation Department.

It is, therefore, hereby ordered that henceforth the programme of the measurements may be intimated to the Sarpanch or the Panch of the area with a request to him to be present at the time of measurements, if he so wishes. His signature may also be obtained on measurement by our Patwari if he is present or remarks given if he is absent.

51. Standing Orders

No. T/26-A/628, dated 5-4-1963.

Instances have come to my notice where the Executive Engineers have sanctioned and taken up works of extension and improvement nature out of the maintenance and repairs grant, resulting in overspending in the maintenance grant and savings in the extension and improvement grant, which is not desirable. In the interest of proper utilisation of maintenance and repairs grant, it is hereby ordered that this practice should stop immediately. A programme of works of Extension and Improvement should be drawn at the beginning of the final year and the estimate under the extension and improvement grant should be prepared and got sanctioned well in advance so that the funds provided under this head are full utilised.

52. Standing Orders

No. 740, dated 17-4-1963.

It has been observed that regular procedure prescribed for dealing with papers as not being followed in some of the Irrigation Division and Circle Offices, with the result that no check on the movement of the papers received in the offices can be exercised. Many of the important cases therefore, get badly delayed.

It is, hereby, ordered that procedure prescribed in "A HAND BOOK OF OFFICE PROCEDURE FOR DEPARTMENTS (excluding Collectories) and Offices subordinate thereto" issued by the O & M Section of the Government should be strictly followed in each offices.

53. Standing Orders

No. T/26-A/1308, dated 11-6-1963.

Sub.-Level Crossing Gates Over Canals.

A copy of letter No. 213T/4 (TAG), dated 2-5-63 from the General Manager (Optg), Northern Railway, addressed to the

Chief Engineer, Irrigation, is sent herewith for necessary compliance.

Copy of letter No. 213-T/E/TAG, dated 2-5-63 from the General Manager, Northern Railway, Baroda House, New Delhi to Chief Engineer, Irrig. Raj., Jaipur.

Sub.-Level Crossing Gates Over Canals.

It has been noticed that level crossing gates on canal inspection roads remain mostly open to road traffic. This is likely to lead to serious accidents.

In order to avoid such incidents, it is requested that strict instructions be issued to your subordinate officers to see that level crossing gates on canal inspection roads are invariably kept closed and locked except when required, for departmental use.

It will be appreciated if a copy of the instructions issued in this connection is endorsed to this office for record.

54. Standing Order

No. 304/SA/3902, dated 4-6-1963.

Sub.-Check Measurements by Assistant Engineers and Executive Engineers.

Vide para 19 Section III of Chapter III of Manual of Orders (Irrigation Branch) Percentages of check by Asstt. Engineers and Executive Engineer have been mentioned whether it is for each month of each work or for the period of a particular work remains in progress.

The following procedure is hereby ordered regarding this:-

The Assistant Engineer is responsible for all measurements taken in his sub-division. Final measurement of works costing less than 500/- will be checked by the Assistant Engineer to an extent of not less than 25% of the cost of work. Generally all final measurements for works costing more than Rs. 500/- will be checked by Assistant Engineer himself. Those of completed items of works may be taken at any stage of the work. Measurements of item such as excavation of the foundations, foundation concrete footings or of and other work that lies below ground level or is likely to be covered up subsequently must invariably be taken by the Assistant Engineer and accepted as final by the contractor, before the work is covered.

Final measurements not taken by the Assistant Engineer must be checked by him at the earliest opportunity and to ensure this, the Subordinate, who records measurements as final, will, when submitting them for payment, enter the words intended to be final in the remarks column in the measurement book against such measurements.

In the ease of running bills, the Assistant Engineer will use this discretion as regards check, but he must personally take or check the measurements of at least every fourth running bill.

(2)

The Assistant Engineer may record his check on the original measurements or may enter there on a reference to the number and page of the measurement book in which the check measurements are recorded.

(3)

The Executive Engineer must frequently check the measurements made or taken by his subordinate officers, observing the following instructions:-

(a)

He should check at least 10 percent, by number of all final and first and final bills of contractors and those for work done departmentally paid during a year.

(b)

The value of the bills checked in each month should be atleast 10 percent of the total value of such bills paid during the month.

(c)

The measurements of not less than 24 of the more important work in the division in each year should be checked.

The entries of these checks should be made either in the measurement book in which the original measurements are recorded or in a separate measurement book in which latter case a reference to that book should be made in the original book when the measurements are compared with one another.

Note.- The object of check measurement is to detect error in measurement and to prevent fraudulent entries. Check measurements should therefore be conducted with discretion and method, those items being selected which appear obviously incorrect or which would most easily susceptible of fraud or which would most seriously effect the total amount of the bill if in accurate.

It is enjoined upon all concerned to follow the above procedure in future.

55. Standing Order

No. XV/Misc/30/5981, dated 18-6-1963.

It has been observed that Officers stationed outside come to Jaipur for discussing their cases with the Chief Engineer or the Addl. Chief Engineer without seeking prior permission for the same. This results in wastage of time of the concerned officer at a number of times when the Chief Engineer, is not free to devote any time for such discussions. It is therefore, enjoined upon all the Officers that they should seek prior permission and time for such discussions with the Chief Engineer or the Addl. Chief Engineer, in future.

56. Standing Order

No. T.313/1496, dated 27-6-1963.

Sub.-Proper planning Investigation and preparation of project Reports.

An extract from the Memorandum of the Planning Commission regarding reduction in cost of Projects is reproduced below for guidance and compliance:-

A project should normally be started after proper Planning Investigations, and preparation of a detailed Project report, have been carried out. The time, labour and money spent on these will be amply repaid in the more economical and expeditious completion of the project report and its satisfactory operation and maintenance later. It will also avoid set backs in the time schedules and considerably minimize, if not eliminate, in possibilities of radical departures during the course of construction in design and scope of the project and large excesses over estimates as a result of these departures or otherwise, and thus prevent any serious upset in the economics of the project. This condition may, however, have to be largely relaxed in certain emergency projects or in projects where major decisions have been reached and a certain initial or experimental expenditure work be justified in order to avoid costly delays involved in postponing all actions, until the last details is settled.

57. Standing Order

No. T/313/1494, dated 27-6-63.

Sub.-Phasing of Irrigation Project. In Preparation of Project Reports.

An extract of the Memorandum on Reduction in cost of Major construction projects, by the Planning Commission regarding need for correct phasing of irrigation, is reproduced for guidance and compliance.

The correct phasing of projects is one of the many factors which will effect costs and time schedule. Each project will have its own special problems but proper phasing will not only out costs but also make it possible to secure increasing returns each before the whole of the project is completed. It will also safe guard against unnecessary Locking up of capital on items of work in advance of actual need, for instance, there will be no sense in carrying with the completion of a dam for irrigation when the canal system will not be ready until a few years later.

The phasing of irrigation project should be done in all spheres of construction activity like construction schedule for various components, annual financial and physical targets procurements of materials and equipments etc. and the possible efforts should be made to follow these schedules.

58. Standing Order

No. T/313/1495, dated 27-6-1963.

Sub.-Completion Reports and Technical Bulletin.

An extract from the memorandum from the Planning Commission is reproduced below for guidance. Detailed completion reports on the lines indicated therein may be prepared for all the medium and major projects, so that these may be preserved as an authentic records for reference in future.

In order to have complete and connected record of the programme and problems of a project and the manner they have been handled, it is most important that a comprehensive completion report is prepared which, apart from giving the history of the project, financial estimates etc. should deal exhaustively with (if necessary, in separate columns) all aspects of construction, planning construction plants, constructions lay out, time schedules, details of execution designs and departures there from difficulties encountered and how resolved, factors leading to increase or reductions in costs and above all, critical analysis of innovations introduced, mistakes made, calculated risks taken and proposed guides for the future.

Also technical papers should be prepared dealing each distinctive technical aspect of the project.

The preparation of the completion reports and technical bulletins should be undertaken while the works are in progress and special staff appointed as necessary to assist the field staff in their preparations otherwise, this most important work may never be accomplished and the benefits of knowledge and experience gained on the project may be lost to

posterity and the same mistakes may be repeated in the next project It is desirable that completion reports and the technical papers on important projects are printed in sufficient numbers and copies made widely available. The labour and cost involved in the preparation and printing of these publications will be fully justified.

59. Standing Order

Sub.-Basis of adopting annual run-off in storage Projects.

In this department Storage's Tables are invariably used for assessing the yield from a catchment area. They are, however, not being correctly used. The storages tables are based on the monsoon rainfall and not on the annual rainfall of a catchment. The Depts. used this figures of near annual rainfall instead of the mean monsoon rainfall, which results in over estimation of yield the monsoon rainfall being less the annual rainfall.

Preliminary studies computing runoff in reservoir have been conducted in the hydrology Section of this office and it is observed that the winter rainfall verified from 5% to 13% of the mean annual rainfall. It is proposed to carry out such studies for a number of other catchment and prepare mean isohyets charts for monsoon rainfall. Till then mean monsoon rainfall figure should be adopted tentatively by reducing the mean annual rainfall by 10% for computing yield from Storage's Tables.

60.

Standing Order

Dated 13-11-1963.

It has been brought to the notice of the undersigned that in most of the service books/rolls the entry of services have not been verified for the period prior to and after 1-4-1950. The date of birth and qualifications shown on the 1st page of the service books/rolls have not also been got verified from any authentic document and entries in token of having verified them are not made under the dated signature of the drawing officer. This is in contravention to the provision of articles 66 and 67 of G.F. & A. Rules.

It is enjoined upon all concerned to strictly adhere to these instruction and to rectify the defects and arrange to keep the service books/rolls complete in all respect in future.

61.

Standing Order

No. 394 Estt/8158-59, dated 22-11-1963.

It has been observed that embezzlement cases are not receiving the attention which they deserve. Government attaches great importance to the cases of this nature thereby requiring prompt disposal at all levels. Contrary to this, it has been noted that information called for in such cases is delayed abnormally covering a period of months.

This type of negligence in such important cases involving Government loss does not reflect well on the Department and more specially on the Head Office which has to deal with the Government. In order to effect expeditious disposal and to achieve immediate result in such cases, the Commissioner Departmental Enquiries, Jaipur has already been declared as Head of the Department by the Government in respect of all cases involving embezzlement of Government amount/property for more than Rs. 50/- vide Government letter No. F. 19(12) Appts (A)/5/59 Group III dated 25th Oct. 1951 endorsed by this office to all the subordinate offices vide No. 394-Estt/255-69 dated 8-1-1962.

It is, therefore, enjoined upon all concerned that prompt disposal of such cases should be ensured at all levels. The information called for should be furnished within a period of a week at the latest and in rare cases requiring collection of the requisite information from more than one source not beyond a period of a fortnight be taken. In the later case, interim reply should be sent immediately indicating clear reasons.

In the cases involving embezzlement of Government money/ property for more than Rs. 50/-information may be supplied directly to the Commissioner, Departmental Enquiries, Jaipur in order to avoid delay with a copy to this office.

It is further, emphasised upon all concerned that any violation of these instructions would be viewed seriously and may be followed by taking disciplinary action.

Copy of standing order No. T/26/537, dated 21-2-1964 from the Chief Engineer, Irrigation, Rajasthan, Jaipur.

Sub.-Standing Orders.

Standing order issued vide this office letter No. T/313/1494, dated 27-6-63 and No. T/313/1495, dated 27-6-63 regarding (i) Phasing of Irrigation Projects and (ii) Completion reports and technical bulletines, may kindly be numbered as Standing order No. 58 and 59 respectively.

62.

Standing Order

No. 30A/SA/595, dated 30-1-1964.

It has generally been observed that time barred arrear salary claims and T.A. claims received from the Circle offices and Divisional Offices for conveying sanction of the Chief Engineer and Government are not handled properly by the Subordinate offices resulting in loss of enclosures by way of misplacement, detachment or tearing of bills in pieces. These are vouchers which are important from every point of view and are categorised under the category of 'Lasting' Documents.

It is, therefore, enjoined upon all subordinate offices that such cases should be handled in a careful manner and forwarded to other offices properly tagged with file cover in future.

63.

Standing Order

No. 43M/SA/937, dated 17-2-1964.

It has been brought to my notice that payment of wages to the work charged employees is not being made as per provision of the payment of Wages Act, 1936 which provides payment to the labour within days of next calendar month. Regular payment of wages to the work charged employees is one of the most important duty of the Assistant Engineer and any lapse in this regard will be viewed seriously. Necessary powers for payment to work charged staff have already been delegated vide this office No. 43M/SA/795, dated 18-12-63 (copy enclosed for ready reference). The overseers of the sections should send the pay and muster rolls through a special messenger to the sub-divisional headquarter on the next day or closer of the month and ensure timely payment to the labour.

Copy of Chief Engineer, Irrig. Raj., Jaipur office Order No. 43M/SA/1951 dated the 18th Dec. 63 to all concerned-

In continuation of this office Order No. 43M/SA/704-707, dated 18-2-59 the Assistant Engineer Incharge of the Sub-Division of this Department are hereby authorised to pass the T.A. bills and pay bills of the work charged staff working under them to avoid the difficulty of the staff.

64.

Standing Order

No. F. 29/VII/CP, dated 18-4-1964.

It has been observed that number of time barred claims requiring sanction for entertainment in pre-audit is increasing day by day. The position becomes all the more poignant when such cases are forwarded incomplete without any regard to the relevant rules. In the later case, long time is taken to get the cases completed involving avoidable correspondence and labour even after their becoming time barred.

Such a state of affairs does not reflect well on the department and specially on those who are responsible for dragging them to the stage of being time barred and thereafter dealing with them without any regard to the relevant rules.

In order to improve things and infuse efficiency in this direction, it appears necessary that persons responsible for delaying these cases and subsequently disregarding relevant rules should be made to realise the negligence on their part. It is therefore, enjoined upon all that such cases should be submitted to this office only after due check and complete in all respect. Secondly, request for sanction for their entertainment in pre-audit should be also accompany a report fixing responsibility on an individual or individuals involving negligence or disregard of rules.

65.

Standing Order

No. IV/C/2/3241, dated 26-3-1964.

In spite of Government instructions regarding use of service stamps of higher denominations on Government mail, it has been observed that stamps of small denominations are being frequently used where stamps of higher denominations should be used.

It is, therefore, enjoined upon all concerned that in future Government instructions on the subject are adhered to strictly and any non-compliance in this regard will be viewed seriously. To ensure proper implementation of Government instructions adequate number of postage stamps of all denominations should be kept in stock by offices concerned.

66.

Standing Order

No. 9-A/SA/3046, dated 9-4-1964.

It has been brought to the notice of the Government that large number of officers holding permanent advance are not strictly following the prescribed procedure contained in the rule 244 (VIII) of G.F. & A.R. to send and acknowledgment of permanent advance outstanding in their names as on the 31st March yearly to the Accountant General. The Finance

Department vide circular No. 13(1) F.W.M/64, dated 24-2-1964 desires the Head of Department to ensure that the provisions of the rules are followed strictly by the Officers under them. The copies of above circular have already been sent to all the offices of this department to follow the instructions strictly and to have a watch over this, a register has been opened in the Head Office in the following proforma:

S. No.

Amount of Permanent

No. and Date of sanction

Year

1964

1966

1967

Acknowledgment sent to the AG. Raj. Jaipur vide

No. and date.

The officers holding the permanent advance will intimate the balance to the Accountant General as on the 31st March under intimation to this office. The dealing assistant in the Head Office will note down the reference in the Register and put up the same to the Officer incharge for perusal and to have a watch whether the observance of rule is strictly followed. In case it is not complied with, the facts will be brought to the notice of the Chief Engineer.

67.

Standing Order

No. VI/Insp/Note/Gen/64/4338. dated 21-4-1964.

It has been observed that the inspection notes submitted to this office by the Superintending Engineers are not exhaustive nor sent in time due to which useful purpose of inspection and inspection reports is not served. It is therefore, enjoined upon all the Superintending Engineer that their inspection notes should be more exhaustive covering all the important aspects of the work inspected by them. Due emphasis has to be given on the aspect of development of irrigation. It has also to be ensured that the inspection notes are submitted to this office within a fortnight positively after the date of inspection.

This practice has to be followed at all levels.

68.

Standing Order

No. 4177. dated 12-6-1964.

Sub.-Disposal of Complaints against staff.

A number of cases have come to my notice where in abnormal delay have been observed in disposal of complaints received from the public direct or through the Anti-Corruption Department. In one particular case one Superintending Engineer took more than 2 years in enquiring and sending the report of the complaint to this office. This is highly undesirable as the deficiency pointed-out in the complaints does not get a chance of rectification.

A reference is also invited to Government circular No. F. 21 GA/Gr. 11/64. dated 30th April, 1964 vide which Government has already taken a serious note of abnormal delays at every level in attending to the public grievances and complaints and elaborate machinery for this purpose has been created.

It is, hereby, ordered that the cases of complaints and grievances of Public against the conduct of Government servants should be promptly dealt in every office and such cases should take more than a week, in disposal after the receipt of the case in a particular office. These orders should be strictly complied. The Superintending Engineers will report cases of delays to this office.

69.

Standing Order

In order to ensure expeditious disposal of Draft paras, the Government in the Finance Department issued a joint Executive and Accounts procedure vide letter No. 7879/T-14(139)F()/55, dated 10- 10 1956 according to which Governments acceptance to the facts stated in the paras should be communicated to the office of the Accountant General, within a period of 8 weeks. But it has been observed that inspite of repeated reminders the fact and reports on the paras are not authorised this office to Government. As a result of this even very ordinary irregularities which can be finally decided by correspondence are included in the audit reports.

It is therefore, enjoined upon all the subordinate officers that a period of three weeks is fixed for furnishing the detailed

reports on the draft paras from the date of receipt of communications from the Accountant General or from this office and reply should reach this office within aforesaid period positively. Non-compliance of these orders will be considered as disobedience and will be dealt with accordingly.

70.

Standing Order

No. 438/Esst/6190, dated 12-8-1964.

Formal orders of reposting a Government servant on return after expiry of leave are required to be issued by the competent authority to enable the Accountant General, Rajasthan, Jaipur to issue duty payslip in favour of the Government servant. To have uniformity in the issue of such reposting orders, a specimen order form is produced below which should be used for this purpose.

In pursuance of Finance Department Order No. F. 1(23)/FD/(ER)/63, dated 21-10-1960 Shri..... (Name of the Government servant along with designation of the post held) on return from leave sanctioned vide this office order No.....dated.....is hereby reposted as.....(Name of the post) on the post which he held proceeding on leave.

71.

Standing Order

No. 340-E/CP/4441, dated 22-9-1964.

It has been observed on the perusal of the charge reports that neither the purpose of handing over/taking over the charge is mentioned nor the reference of order according to which the charge was taken is shown. The signatures of the relieved and relieving officers are often illegible and their names in capital letters below their signatures are not given. Sometime the charge reports are even received unsigned.

The absence of the above information in the charge reports is difficult for this office to make entries in the incumbency register. It is enjoined upon all concerned that the charge reports are sent to this office in duplicate complete in all respect.

72.

Standing Order

No. 30A/SA/1179-842. dated 31-12-1964.

Register for watching the progress of outstanding audit objections as prescribed by the F.D. circular No. F. (59)(ii) F. (A & A) 54. dated Feb. 58 which was not so far maintained may now immediately be introduced This register should be reviewed by the Accountant at least once a month and he should record a certificate in the register to this effect. Each and every entry should be initiated by him.

The concerned dealing Assistants should attend to all the audit objections/inspection reports and paras received from the Accountant General, Rajasthan, Jaipur promptly and should put up all such letters within 3 days from the date of receipt to the divisional accountant who in his turn would take the appropriate step for early disposal, within a week at the latest.

Some target date should be fixed for each head of the offices subordinate to your department for disposal of audit objection/Inspection report/and paras failing which some disciplinary action should be taken by you against the defaulters. The Divisional Accountant should submit quarterly reports for each such delinquent subordinate officer to the Head office and then to the Head of the Department if necessary for suitable action. The Head Office may record appropriate remarks in the C.R. of the concerned officers in cases where the officers have become habitual with regard to committing such irregularities or inattentiveness on their part.

Separate register to watch the progress of audit objections/inspection reports/paras should be opened for each of the subordinate officers in the Head Office. Instructions should also be issued to all subordinate officers to open such register in their office, and the same should be reviewed by the concerned heads of offices at least once a month with a view to watch proper and expeditious compliance. In token of this review they should record a relevant certificate in the concerned register.

Each and every case of the recovery should be reviewed by the Divisional Accountant and action to recover the amount should be taken without delay.

Monthly progress report showing the position of outstanding inspection report/audit objections should be sent to the Accounts Officer, Irrigation Department, Rajasthan, Jaipur before the 1st of the following months.

At the end of each month the Divisional Accountant should submit a specific report regarding outstanding audit objections inspection reports/para to the head of the Department

Controlling Officers should arrange to compare the figures intimated by the subordinate officers with these intimated by the Accountant General in his quarterly statement and the difference, if any, should be got reconciled with the Accountant General's office by deputing some assistant and confirmation of the correct figures obtained from the Accountant General and intimated to the Accountant Officer of the Department for his information.

The controlling officers and internal check parties should get the outstanding objections/reports/paras as far as possible settled in their presence when they visit any subordinate officers.

One of the Gazetted Officers in the Accountants Branch the Department most preferably the Executive Engineer attached in division should be made exclusively responsible for early disposal of outstanding audit objection and inspection reports.

Prompt replies to the references made by the subordinate officers in connection with the audit objections should be ensured by the department.

Periodical meeting should also be arranged with the subordinate officers at head quarters of outstanding objections, inspection reports and paras and progress of their clearance should be watched. Accounts Officers should address the meeting and bring the position of outstanding inspection reports and paras to the notice of all concerned officers and suggest measures to settle outstanding audit objections/inspection reports paras.

Instructions should also be issued to all the drawing Officers to see that the bills drawn by them are complete in all respects so that there may be least possible chance of objections from the Accountant General, Raj, Jaipur.

73.

Standing Order

No. 35A/Bud/503. dated 7-1-1965.

The Accountant General has brought to the notice of the State Government and this office, the cases of delay and irregularities detected during the year 1962-63 in the Divisional Officer of this Department. To avoid such irregularities, the following instructions are issued which should be followed strictly:

1. With the monthly accounts which are rendered to the Accountant General by the Divisional Offices, the relevant vouchers should be appended. The stamped receipts should at least be sent by the end of the next month.
2. The stores accounts and half yearly registers should be maintained properly in the Divisional and Sub-Divisional Offices. Physical verification of stores should be conducted every year before the close of the financial year.
3. The measurement books should be reviewed by the Divisional Accountant as provided in para 438 of PW and Financial and Accounts Rules.
4. The monthly account should reach the Accountant General's office on the 10th of the following month positively.
5. All audit objections, inspection reports, audit note and S.I.Os. etc. should be attended to promptly as per standing order No. 42. In future, there should be no delay in replying to the objections of the Accountant General.
6. Retention of heavy cash balances at the end of each month with the divisions and sub-divisions should be avoided and the balances be kept to the minimum. There should be an even flow of expenditure during the whole year and a rush of expenditure in the month of March should be particularly avoided.
7. The register of check measurement should be maintained properly in the division and sub-divisional offices and prescribed check should be exercised by the Assistant Engineer and Executive Engineer.
8. The schedule of Settlement with Treasuries in form 51 alongwith C.T.R. and C is issued by the Treasury Officer are not appended with the monthly accounts. Besides this, the discrepancies in part I and II of the schedules are also not received from the Treasuries. The delay in reconciliation may prevent timely detection of fraud and embezzlement etc. It is, therefore, essential that the schedule is sent regularly with the account and also the discrepancies are reconciled at the earliest.
9. Under head 'Suspense' (Purchase, stock, misc, P.W. Advance) there should be no heavy balances at the close of the financial year. Every effort should be made to adjust the items of the suspense heads, during the same year.
10. The balance of stock should be kept up to the sanctioned limit of stock. In the case of excess, the reserve stock limit should be got sanctioned from the competent authority before the close of the financial year.
11. Physical verification of Stores should be conducted once a year.
12. In the case of expenditures against the sanctioned estimate for a work, the revised estimate should be prepared in time and got sanctioned by the competent authority as soon as the case comes to notice.

74.

Standing Order

Under rule 105 of the Rajasthan Law and Judicial Department Manual, a factual report in respect of cases whereof notices under section 80 CPC have been served on the department, it is required to be furnished within 15 days from the date of receipt of notice is given to facilitate an examination of the case by the government and hence this statutory stipulation. Under the Law, a notice has to be served on the Government and as the Collector represent the Government at the Distt. Head Quarter a notice is served on him and also on the Secretary to the Government in the administrative Department. The collector is required to obtain a factual report from the Officer Incharge i.e. the office giving rise to the serving of the notice is requested to furnish a factual report to him. The Collector forwards the factual report to the Secretary to the Government in the Administrative department and the latter, in its turns. Laws Department after its examination administratively, forward it to them for conveying their opinion. All this has necessarily to be accomplished within two months from the date of the notice. Any delay at any stage would dislocate the whole programme and bebar the department from effectively dealing with the notices given who is always to file a suit as soon as the prescribed period of two months expires. In order that the department may be able to obtain the opinion of the law department well in time, it is enjoined upon all officers of the time, schedule of furnishing a factual report within 15 days from the date of receipt of all the notice to the Collector and copies may also be endorsed to this office through proper channel. In our case this would enable the secretary to the Government in the Irrigation Department to deal with the case as soon as he receives a factual report from the Collector, otherwise what would happen is that in the absence of comments from us he would be obliged to forward the factual report as received from the Collector to this Department for comments. This would adversely effect the time schedule and by the time the case reaches the Law Department, the statutory period of two months is over. It has observed that in several cases that the factual report been furnished timely, the situation could have been compromised by negotiations or effectively defended in the court of Law. These court cases attract, very serious attention of the Government and realise commented upon adversely by the public account committee. Officers who fail to submit the factual report will hereafter be held personally responsible for any loss to the Government resulting by delays or negligence on their part.

75.

Standing Order

No. Misc/XV/30/4058, dated 14-5-1965.

It has been observed that Officers (Superintending Engineers/Executive Engineers) stationed outside come to Jaipur either on some leave or on some other official work, but they do not call on the Chief Engineer or Addl. chief Engineer, Irrigation. It enjoined upon all such officers that whenever they happen to visit Jaipur, they should make a point to see the Chief Engineer or Addl. Chief Engineer after fixing time on telephone for the same appointment.

76.

Standing Order

No. 1A/Bud/SA/1371, dated 17-9-1965.

Sub.-Revised Estimates 1965-66 Budget Estimates 1966-67.

In the comments on the Revised Estimates 1965-66 and Budget estimates 1966. the finance department has drawn pointed attention to the need of economy being practised in all spheres of administration and particularly so where the expenditure has to bear any relation to revenue. The relevant extracts from the Budget Notes since they depict their view point very precisely and can be treated as "STANDING INSTRUCTION" are reproduced for the guidance of Officers:

Expenditure.- "The Department has to restrict expenditure within the budget estimates and in cases where additional funds needed separate move is to be made with full justification. The practice of over spending without Government approval and then proposing very high figures in Revised Estimates or debiting part of expenditure to suspense etc. and then to move for approval in subsequent years is objectionable and has to be stopped...

Carrying over of any liability to the next year for want of funds is a serious irregularity. It is non-economy to postpone payments in respect of liabilities already incurred and indisputably payable. Exact position in regard to the past and present liabilities may be ascertained now once for all and funds asked for promptly giving full justification as indicated above so that the accounts for the next year be started with a clean slate i.e. free from all encumbrances.

Working Expenses Verses The Field

"Working expenses 19.54 lacs and receipts for 1966 67. 55.72 lacs including Gang Canal project 15.00 lacs and 47.94 lacs respectively. If Gang Canal is excluded from both sides the result will be 4.54 and 7.78 lacs on expenditures and receipt sides. If the interest charges which are anticipated of the order of Rs. 52 lacs in respect of these projects are

added, the expenditure will be far exceed the receipts indicating huge losses being made good by State Exchequerer. Whether receipts increase or decrease due to failure of rams there seems to be on restraint on expenditure which is proposed at higher figures every time.

With regards to revenue it is realised that while on maintenance expenditure is inevitable, still the need for exercising economy on that score cannot be over-looked. It must remain the order of the day.

77.

Standing Order

No. T/26/1340, dated 16-6-1966.

There is no regular system of preparing completion reports of projects indicating when deviations have taken place from the original project reports and of recording the reasons which led to the deviations nor there is a record of the difficulties of all types which confronted the project during the execution and the remedial measures taken to meet them. In the absence of such a report no guidance is available for meeting such difficulties in similar subsequent projects. Such a system is to be adopted and the completion reports be sent by the concerned Divisional offices to their Superintending Engineer and the Chief Engineer.

In this connection it has been noticed that the divisions do not maintain a proper record of the deviations made during the construction period in the original project estimate or the reasons due to which the deviations have become necessary. No records is also kept of the difficulties encountered during the construction of important, works and the remedial steps taken to solve them. These records are very necessary for exercising a proper control over execution of the work and can be great help when any remedelling or special reports to these work has got to be undertaken or when some similar works are taken up at a later date. It is hereby enjoined upon all concerned to keep a proper record of the work done. The measurement of the work should be recorded in such a manner as to preparation of detailed completion drawings in due course. All the relevant latest stratas and width etc. should be recorded in the measurement books and for complicated structures, necessary sketches should also be drawn in the measurement book. All such important entries which cannot be checked after the Assistant. Engineers himself. The Executive Engineer should also check a part of these items of the work which are liable to get covered up. The construction staff should also prepare monthly progress drawings of the works under execution on which references of measurement books, brief specifications of the works and the cases of execution should be entered from time to time. The Executive Engineer, should ensure safe custody of such drawings in the name manner that of a measurement book, whenever deviation have to be made from the sanctioned proposal the reference of the order of the competent authority should be recorded in the measurement book as well as on the drawing. The Superintending Engineer, should during their inspection examine these progress drawings and ensure that these instructions are faithfully complied with.

The revised estimate should in future details of completion drawings of all works proposed on the basis of measurement books as well as the progress drawings mentioned above.

The Ex. Engineers and A. En. should maintain a detailed account of the difficulties encountered by them during the construction of the works and the measures that were taken by them to solve these difficulties. The spudg. Engineer should bring to the notice of the Chief Engineer, details of some important difficulties encountered or of successful measures adopted for solving them, which in his opinion deserve to be made widely known. The Jr. Offices should be encouraged to write technical report regarding various works being under taken by them.

78.

Standing Order

No. T/26/341, dated 25-6-1966.

It has been noticed that while constructing feeder canals for supplementing inflows in to Irrigation Tanks, no provision is kept for constructing outlets from the feeders which may be able to command some adjacent lands even in an emergency. It is hereby enjoined upon all concerned to provide suitable outlets from the feeders wherever there is a possibility of some lands being directly commanded from them.

79.

Standing Order

No. T-261/1508, dated 29-6-1966.

The Government have recently increased the water rate by Rs. 5/-per acre on non-cereal crops. Due note of this is to be taken while preparing new projects now. This office has worked out that instead of the average of 8.75 adopted for new rates this would be Rs. 10.00 per acre.

In the new projects, there is sufficient un-occupied culturable waste area, which on introduction of irrigation by the new project, will be converted into cultivated area and will be so allotted by the Revenue authorities. They will charge the lowest Barani rate on such area till the next settlement. The officers preparing the projects should find out such area in the project and should show the enhancement of the land revenue on this score.

If the Executive Engineer, preparing the report for a new project finds that settlement operations are proceeding in the commanded area, he may as well make a note of it and take enhanced land revenue into account while preparing the project.

80.

Standing Order

No. AG/1234, dated 2-8-1966.

Instance have come to the notice of the undersigned where machines procured for the projects were not properly utilised on the same and the investment made on them unnecessarily remained blocked. This is a serious irregularity.

It is, therefore, enjoined on all concerned that before placing orders of any equipment, it should be properly foreseen that the same, after its procurement, would be fully utilised for the work for which it is purchased. It would be the personal responsibility of the officers who place an order for the procurement of machines to see that the expenditure incurred would not be wasteful.

81.

Standing Order

No. AG/1234/4169, dated 2-8-1966.

It has been observed in some of the works that:-

1. Materials to the contractions were issued before commencement of the works for the total requirement, on the works. This necessitated gradual recoveries as and when the materials was actually consumed by the contractors and the Government stores unnecessarily remained in the custody of a private agency for an unduly long period.

2. The steel schedules for consumption of steel in the R.C.C. work were not prepared correctly and the record measurements of the steels actually not made in the measurement books. Consequently, it become difficult to ascertain whether the required quantity of steel had been consumed on the work or not?

3. Steel schedules for consumption of steel in some of the R.C. C. works were not at all prepared and in the estimate for items of R.C.C. work, definite poundage of steel was not mentioned. It, therefore became difficult to ascertain the quantity of steels actually used per cft. of the work.

It is, therefore, enjoined upon all concerned officers that in future:-

(i)

The Government materials required for a particular work should be issued gradually in lots so that recoveries are affected in the running bills.

(ii)

For all R.C.C. works the detailed steel schedules should be prepared before hand and definite poundage of steel per cft. of the work should be provided in the estimate.

(iii)

in all R.C.C. work the steel consumed should be separately recorded in the measurement book so as to keep proper record in the measurement books so as to keep proper record of the actual consumption of steel of a particular work.

82.

Standing Order

No. 55E/GNR/3018-19, dated 30-6-1967.

The Government of Rajasthan in the Finance (Expenditure Rules) Department have laid great stress on most expeditious disposal of pension cases of the employees who have been retired on 1-7-67.

In order to keep constant watch on the progress of finalisation of pension cases, the enclosed proforma of fortnightly statements showing incumbent wise progress of finalisation of pension cases of Government servants retired on or before 1-7-1967 has been prescribed. It is, therefore, enjoined upon all Heads of Offices under the contro of Chief Engineer, Irrigation and Chief Engineer, Irrigation (North) Raj. to send these fortnightly progress reports in two parts I for those retiring on 1-7-1967 and part II for those retired prior to 1-7-1967 so as to reach this office by 10th and 25th of every month commencing from 1st July, 1967.

All the heads of Offices are further advised to take assistance's of the Sr. Accounts Officer of this Office in all cases of

doubts/difficulties in the preparation or settlement of the pension cases.

This may please be given top priority as the Government has decided to take serious view of delays in the finalisation of pensions cases.

Receipt of this letter may kindly be acknowledged.

Statement showing progress of finalisation of Pension cases of Government Servants retired on 1st July 67.

Name of the Pension sanctioning authority:

Report for the fortnight ending.....

Names of Government Servants retired (with designation)

Number of pension applications

Already reed.

Reed, during fortnight

Total

Already verified

Verified during the fortnight

Total columns 5 & 6

Unverified (difference of col. 7 & 4)

1

2

3

4

5

6

7

8

No. of cases pending for

Number of pension cases sanctioned and sent to

Accountant General

No. of P.P.O. issued

Pay fixation

Condonation

Already sancitoned

Sent during fortnight

Total

Already issued

Issued during the fortnight

Total

9

10

11

12

13

14

15

16

Head of the Office.

Signature of the Assistant

Note.- A list of cases pending for either pay fixation or condonation of breaks in service should be appended.

83.

Standing Order

No. XV/Mis/30/3586, dated 27-7-1967.

Sub.-Calender of Returns.

It has been noticed that there is no scientific system at present in the Irrigation Department for watching receipt/issue of periodical/specific return required to be received from subordinate offices or to be submitted to higher offices, with the result that punctuality of action, which is so essential in a good Government, cannot be observed. In order, therefore, to tone up the administration of the Department, all officers and officials are required to be "Return Conscious" They had better get rid of the feeling that 2 or 3 reminders must come to them before they may submit the returns. It is enjoined upon all concerned to be most punctual in the matter of sending periodical/specific reports and despatch the same in such a way so as to reach the concerned office by the due dates prescribed for the purpose.

2. All sections of the Head-Quarters Office, Circle Office, Division Office, Sub-divisional Offices will hereafter maintain two calenders of Returns for every financial year,

viz: 1. Calender of specific returns,

2. Calender of specific returns, in the manner given below:-

A-Calender of Periodical Returns.

(a)

On the first page of the Register, the Head of the section will certify that "all the periodical returns prescribed under orders of competent authority have been noted down in this calender of Returns".

(b)

On the 3rd page of the Register, an Index will be prepared, sub-divided into three parts viz:-

Part I ? Returns due to be submitted to higher or other authorities other than officers of this office:-

Yearly

Page

to

Half-yearly

Page

to

Quarterly

Page

to

Monthly

Page

to

Fortnightly

Page

to

Weekly

Page

to

Part II ? Returns due from Subordinate Offices/other Offices.

Yearly

Page

to

Half-yearly

Page

to

Quarterly

Page

to

Monthly

Page

to

Fortnightly

Page
to
Weekly

Page
to

Part III ? Returns to be submitted to the Officers of this Office itself.

Yearly

Page
to

Half-yearly

Page
to

Quarterly

Page
to

Monthly

Page
to

Fortnightly

Page
to

Weekly

Page
to

(c)

From 5th page onwards, the Calender of Returns shall be prepared on the enclosed proforma (A), commencing with the yearly returns and ending with weekly returns. First 5 columns will be posted right at the opening of the first Calender of Returns which will include all periodical returns prescribed to date. Thereafter, whenever, any new returns is prescribed, it will be immediately noted in the Calender. The actual date of receipt/despatch of the return will be entered in the respective columns for the month concerned. In respect of late receipts the dates will be noted in red ink so that the register will show at a glance the number of times the returns was received late from a particular office.

(d)

This register may remain on the table of the Section Incharge and each clerk dealing with any returns will make necessary entries in the register.

B-Calender of specific Returns:

(a)

Whenever an order is issued by competent authority asking for submission of a particular/report/Return from several subordinate offices, it should be entered in Calender of specific returns in the enclosed proforma (b). Important cases e.g. disciplinary cases, draft paras, notices under section 80 CPC time bound cases, etc. may also be entered in this Calender of the office requiring the report, and of the office which is to submit the report, for the same of watching timely receipt/despatch of the report in question. Actual date of receipt/despatch of the return from/to the offices concerned will be entered in the column meant for the purpose.

(b)

The Calender of specific returns will also bear a certificate and an Index, and shall be sub-divided in three parts as for the calender of periodical returns.

C-Submission of the Calenders of Returns:

The two calenders of returns will be reviewed by the section-Superintendents, daily a first item of the day, and put up to the Branch Officer/Head of the office, as the case may be on every monday alongwith submission memo (on office note sheets) in proforma (c). The Branch officer/Head of the office will critically examine the cases of late receipt/despatch or non- receipt/despatch of returns, initiate action to get them expedited, and to deal with the defaulter suitably. Both these returns will also be included in part III of the Calender of Periodical Returns for watching their timely submission to the

Branch Office/Head Office.

3. All the inspecting Officers of this Department will invariably look up the two calenders of Returns of subordinate offices alongwith the submission memos as frequently as possible, and any deficiencies as found will be brought to the notice of the Head of the Office concerned. Serious cases of default/delay shall be brought to the notice of the Chief Engineer, Irrigation.

4. This item shall be included in the several questionnaires prescribed for the inspecting Officers of this Department.

5. Compliance report of having opened the two calenders of Returns in the manner indicated above may be sent to me by name by 1st Aug. 1967.

84.

Standing Order

No. XV/Mis/30/3585, dated 21-7-1967.

Sub.-Weekly outstanding letters report.

To keep watch over disposal of letters received from several offices, it has been decided to introduce a system of weekly report of outstanding letters/reference as described below. The section Superintendents of the Head Quarters will put the report on every Monday to their respective Branch Officers viz. TA/PA/Sr. AO etc. In the circles/Divisional and sub-divisional offices the report will be put to the respective Superintending Engineer/Executive Engineer's/assistant Engineers. They will critically examine the list of pending reference and endour to reduce the minimum.

2. Normal time for disposal of letters will be as under:-

Letters marked urgent

3 working days.

Other letters

7 working days.

3. The weekly reports shall be prepared on every Saturday which will depict the position of letters received upto and including the previous Saturday. For instance, ordinary letters received upto the 29th July, 1967 should be disposed of upto 7th Aug. 67, and so on. Urgent letters received upto 29th July, 67 should however be disposed off by 4th Aug 67.

4. The weekly report shall be in the enclosed proforma.

5. In order to facilitate preparation of the weekly report and to make the system effective, the week of receipt and despatch may be entrusted to a diarist in each section. It will be his important duty to note down despatch numbers and dates against the respective entries in receipt register. The papers ordered to be filed will also be shown to the diarist who on being satisfied about it, will give a note Filed' against the concerned entry. All references in the receipt register which have not been marked off by the diarist' in the manner indicated above will be considered to be pending and will be included in the Weekly report. The diarist will prepare incumbent wise position of letters on Friday mentioned therein only the receipt Register numbers and dated of the pending letters so that the concerned Assistants are able to link up and verify the position before it is submitted to the Section Superintendents/Branch Officer.

6. The Inspecting Officers of the Department will invariably lock up the register containing weekly letters reports in their subordinate offices as frequently possible and any deficiencies found will be brought to the notice of Head of the Office concerned. Serious cases of default/delay shall be brought to the notice of the Chief Engineer, Irrig. This item shall be included in the several questionnaires prescribed for the inspecting Officers of the Department

7. This item may be noted in the Register of periodical returns prescribed in the standing order No. 84, dated 21-7-67.

Government of Rajasthan Irrigation Department

.....Section

Weekly outstanding letters Report:

Position of letters received upto.....as on.....

Urgent

Ordinary

Total

(a)

Previous Balance.

(b)

Letters received during the week.

(c)

Total (a) + (b)

(d)

Letters disposed of during the week.

(ii)

Over 7 days old.....

Reasons for the letters 7 day old.

Section Incharge.....

Dated.....

Incumbent-wise position of pending letters.

(1)

R/R No.....

(2)

No.....

(3)

No.....

Dt.....

(dt.)....

(dt.)....

(4)

R/R No.....

(5)

No.....

(6)

No.....

Dt.....

(dt.)

(dt.)....

Mr. Y

Mr. Z

and soon.

Diarist.....

Dated.....

85.

Standing Order

No. 5738, dt.....

Sub.-Register of Irregularities.

In order to keep track of all important and serious cases of Financial irregularities coming to our notice departmentally or through audit or otherwise and to pursue them until they are finally closed by orders of competent authority, it has been decided that a Register irregularities of in the enclosed performance shall be maintained every' section of the Head Quarters office, the Circle Officer/Divisional Office/Sub divisional Offices. Cases which may eventually entail disciplinary proceeding against the staff of the Department may also be entered in this register. The Section Superintendent will put. up the register to the Branch Officer/Head of the Office, as the case may be on the 1st of every month after incorporating latest position of each case in the column, meant for the purpose.

2. This item may be noted in the register of periodical returns prescribed under standing order No. 84, dated 21-7-67.

3. All the inspecting officers of this department will invariably look up the Register of irregularities as frequently as possible and any deficiencies found will be brought to the notice of the Head of the Office concerned. Serious cases shall be brought to the notice of the rules/orders of competent authority.

4. This item shall be included in the several questionnaires prescribed for the inspecting officers of this department.

5. Report having opened the Register of irregularities in the manner indicated above be sent to me by name by 1-8-67.

Government of Rajasthan

Proforma: -

Office of the....

Irrig. Department..

Register of Irregularities

S. No.

Brief facts of the case

Reference of the authority reporting the case

File No. of the office in which dealtwith

1

2

3

4

Action taken

Latest position on 1st of every month

Reference of the orders of competent authority to
close the case

Remarks

5

6

7

8

86.

Standing Order

No. F. 1(3) LA/Gen/5979, dated 29-7-1967.

Sub.-Progress of Court Cases.

Government attaches great importance to the speedy disposal of court cases and to reduce litigation costs. In order to keep watch on the disposal of court case instituted by or against the government and to ensure that effective measures are taken by all concerned for proper and timely pursuance thereof, it has been decided that all the officers incharge of court cases will send monthly progress reports in the enclosed proforma so as to reach this office by the 10th of every month.

2. New cases instituted during the month under report will also be included in the Monthly progress report. Whenever any decree is awarded, the facts will invariably be mentioned in column 7. Reference of action taken to obtain approval of the Law Department for satisfaction of the decree or the filing an appeal will be noted in the remarks column.

3. This item shall be included in the Calender of periodical returns prescribed under Standing Order No. 84, dated 21-7-67.

Performa:

Monthly Progress Report of Court Cases as on 1st of....

S. No.

Case No.

Title No. of the case

Name of the court in which pending

Amount involved

1

2

3

4

5

Name of the work etc.

Progress since previous month

Date of next hearing

Purpose of the next hearing

Remarks

6
7
8
9

10

87.

Standing Order

No. 394 Estt/3064, dated 3-8-1967.

Sub.-Disposal of Embezzlement cases.

The Chief Secretary of the Government of Rajasthan vide his letter No. F 15(272) O & M/67, dated 6-6-67 has stressed the necessity of sending preliminary enquiry reports in embezzlement cases to the commissioner departmentally enquiries with regard to the role of gazetted officers concerned because in the absence of such reports, no material is available with the commissioner, Departmental Enquiries on the basis of which charge sheets and statements of allegations could be prepared and served upon delinquent officers.

2. The Special Secretary to the Government Finance Department in his D.O.No.F. 11(6) FB/A & 1/65, dated 29-6-67 has again stressed for speedy finalisation of pending cases of embezzlement/losses of Government money/property to ensure that the amount, if any, recoverable is realised and to observe necessary precautions to avoid recurrence of such cases in future.

3. In order to keep close watch on the speedy disposal of embezzlement cases, it has been decided that all the Superintending Engineers and Divisional Officers of this department will send a monthly progress report of disposal of embezzlement cases in the enclosed proforma, so as to reach the Head Quarters Office by the 3rd of every month. This order will not effect submission of the preliminary reports, detailed reports, annual report required to be sent to several authorities, as usual

4. This item may be included in the calender of periodical returns prescribed under standing order No. 84, dated 21-7-67 and the return submitted punctually.

5. It has further been decided that all existing cases of embezzlement should be dealt with on priority basis and decided within two months positively.

88.

Standing Order

No. 98/A/PF/SA/7393, dated 17-10 1967.

Sub.-Delay in finalisation of provident fund/pension claims.

The Accountant General, Rajasthan, has prepared a draft para on delay in finalisation of provident fund claims of retired Government servants. It was pointed out that in one case the Government servant had retired in July, 1960., but his application for payment of provident fund was sent to the Audit Office in Sep., 1965. and replies to the Audit observations were communicated after one year. In another case the retired Government servant submitted his application for payment of provident fund in Sept. 63 but the same was sent to the Audit in May, 1965. The Government have taken serious note on such delays which betray indifference on the part of the offices concerned, in dealing with the cases of retired Government servants. The importance of expeditious disposal of provident-fund/pension cases can be better realised than expressed. It is, therefore, enjoined upon all concerned to dispose of such cases with clarity. In order to pin-point responsibility a movement slip in the enclosed proforma should be attached with every pension/provident fund case in which date of receipt and the date of disposal of the case by every assistant/office should be indicated in all the offices through which the case is to pass through unfill settlement and entries therein should be attested by the Head of the Office concerned. Necessary instructions may please be issued to the subordinate offices also for strict compliance in future.

Movement Slip

Pension/provident Fund Case of Shri..... of.....

Date of Retirement

Date of actual application for pension/ provident fund

Date of start of verification of service etc.

Date of completion of the case

Date of submission to the Superintending Engineer

Date of submission to the Chief Engineer

Date of submission to the Accountant General

Date of return from Accountant General

Date of subsequent exchanges, if any

Date of issue of anticipatory/final P.F.O./ P.F.P.O. by the Accountant General.

The Rajasthan Irrigation And Drainage Act, 1954

[Act No. XXI of 1954]

Government of Rajasthan Department of Irrigation, Jaipur Standing Orders

Continued from volume 16

89.

Standing Order

No. 5511, dated :

Sub.-Maintenance of record for watching transfer of expenditure on survey works from Revenue to Capital Head of Account.

In order to keep track of all expenditure incurred on survey and investigation of all works/which eventually received administrative approval of the competent authority to be executed as projects, it has been decided in consultation with the Accountant General, Rajasthan Jaipur that such expenditure should be posted monthly in a special register to be called "Register for watching proforma transfer of expenditure on survey and investigation works" in the enclosed proforma. All the other particulars required in the proforma should be filled in as and when the occasion arises. As such as the any survey work is sanctioned as project, the entire expenditure incurred to date should be transferred proforma to the capital head of accounts without incorporating any transanctions, to this effect, in the Government account.

This register should be put up to the Divisional Officer monthly for review at the time of passing monthly account of the Division.

Ench: One

Register For Watching Proforma Transfer of Expenditure on Survey And Investigation.

S. No.

Name of work/Canal/Schemes

Sanctioned Estimate of Survey and Investigation

No.

Date

Amount

1

2

3

4

5

Monthwise expenditure

Progressive Expenditure

Administrative sanction of the Project

No.

Date

Amount

Actual expenditure transferred by proforma in the capital a/c of project concerned.

Remarks regarding action taken to expedite adjustment after project estimate have been sanctioned

Reference to intimation sent to the Accountant

General for transfer of Expenditure

Initials of Divisional Accountant/Executive

Engineer

11

12
13
14
90.

Standing Order

No. 30A/SA/7522, dated 20-10-1967.

Sub.-Clearance of audit objections, draft paras, inspection reports and balances under remittance heads.

The Government of Rajasthan, the Accountant General Raj. and the Chief Accounts Officer, Rajasthan have laid great stress on the expeditious settlement of items placed under objection relating to works and establishment, draft paras, audit inspection reports and clearances of balances under remittance heads, particularly "Items adjustable by Public works Department" and "Transfere between public work Officer". Soem of these items appear prominently in audit reports submitted to the Public Accounts Committee of the Rajasthan State Legislature to whom the Chief Engineer, Irrigation has to explain the position of the Department.

In order to arrest the arrears and to watch the progress of clearance in this behalf it has been decided that the Senior Accounts Officer of the Headquarters office will collect the arrear position (6 monthly or at other suitable intervals) from the office of the Accountant General, Rajasthan and pass on the same to the concerned Offices, in addition to the information normally sent by the Accountant General, Rajasthan direct to the concerned offices. The Superintending Engineers and Sr. Accounts Officers as the base (or the opening balance) and directly submit monthly progress report in the enclosed proforma so as to reach the Headquarters Office by the 15th of every month. The additions made during the intervening period will not be exhibited in the progress reports though every attempt should be made to clear them as soon as possible within the prescribed time schedules. This will enable the Superintending Engineer, and the Headquarters Office to keep watch on the monthly clearance of the arrears as intimated by the Sr. Accounts Officer at periodical intervals. Full particulars of the items, paras or balances, settled should be indicated in the enclosures to the monthly progress report so that those items can be scored out from the lists maintained in the Circle Offices and the Headquarters Office. If any cases have been sent to the Superintending Engineer/Chief Engineer for sanction/orders etc. a list of such references shall be attached with the monthly report for expediting the cases in the offices. A copy of the monthly progress report with enclosures will be sent by the Divisional Officers to the Superintending Engineer concerned also who will keep watch on the progress of the clearance.

This procedure will not vivest the Divisional/Circle Offices from their basic responsibility to clear the audit objections, inspection reports and balances under remittance heads and arrange necessary re-concilation with the records of the audit offices as hither to fore. In fact, this task will require good dealt of personal efforts on the part of assistants, Divisional Accountant and Heads of Offices.

The progress made in this behalf will be kept in view while writing or counter-signing annual confidential reports.

This standing order supplements the Standing Order No. 73 issued vide this office letters No. 30A/SA/11782, dated 31-12-64.

The date of sending the monthly progress report should be entered in the Calender of Periodical Returns prescribed in the Standing Order No. 84, dated 21-7-67.

List of outstanding audit objections, inspection report balances under I.A. P.W.D. T.B. P.W.O. as collected recently from the Accountant General's Office are being sent separately to the concerned Offices.

Enel: Proforma

Progress report.

Division/Circle office.

Monthly Progress report of clearance of Audit objections. Inspection Reports, Draft paras and balances under remittance Heads for the Month of.....

S. No.

Particulars

Opening balance as advised by Sr. A.O.

Clearance during the month(as per details attached)

Progress of the clearance (including this month).

Closing balance (col. 3-5)

Remarks (List of reference made to SE/CEI to

clear the remaining cases shown in Col. 6 to be enclosed).

1

2

3

4

5

6

7

I.

Objection Book Items

Item position

Amount

Item

Amount

Item

Amount

Item

Amount

(a)

Works expenditure

Up to.....a/c.

(b)

Establishment expenditure as on

II.

Audit/Inspection Reports.

-do-

I/R Paras (Inspection Report)

III.

Draft Paras

-do- No.

Nos.

Nos.

Nos.

IV.

Balances under remittance heads

-do-

Item

Amount

Item

Amount

Item

Amount

(a)

Items adjustable by PWD

(b)

Transfer between PWD Officers.

Executive EngineerDivision

.....

Superintending EngineerCircle

.....
91.

Standing Order

No. 28 Estt/66-67/GS/505, dated 28-10-67.

Gazetted.-

It has been observed that the matter of confidential reports is not being given due importance, urgency, attention for timely submission and proper application of rules in preparation and subsequent u.s-posal of formalities required under the rules. This despite clear Rules on the subject and repeated Government instructions.

Despite repeated instructions, incomplete reports are received resulting in unnecessary correspondence and delay. They are generally found incomplete with regard to period/date of birth/integrity certificate etc. As per Government instructions every officer who signs on the confidential reports has to give his name within bracket () in block letters. Under this office endt. No. 28 Estt/64-65/GS/1012, dated 12-10-65 (alongwith copy of letter from Chief Secretary No. F. 6(15)/Appt/K-2/63/5 Conf dated 1-9-65) all Superintending Engineers concerned were enjoined to mention specifically that which of the adverse remarks be communicated to the Officer. These instructions have not engaged the attention of the concerned officers.

Similarly the importance attached by the Government, for submission of the confidential reports within the stipulated period as expressed in the various circulars issued from time to time have not been given due weight by the Official of the Department which is clear from the fact confidential reports are still awaited for the year 1966-67. Similarly all superintending Engineers are required to submit a list of the officers who worked in their circle during the year for which confidential reports are required. Such list is either not furnished at all submitted very late or submitted incomplete/inaccurate with the result that no proper check can be effected over the receipt of confidential reports. In the case of officers who came under transfer during the course of the year, their confidential reports should be passed on to quarter concerned after recording for the period they worked in the circle. In the event of rate cases of transfer to more than one place, the same procedure is to be repeated completing the circle till it covers the full period of the year.

All confidential reports should be got completed by middle of April and sent to this office latest by the close of April. In the cases where confidential reports are to be routed through Collector, these may be got completed by the Executive Engineers concerned at their level in the 1st week of April. By the close of April, each circle office should check their lists and ensure that all confidential reports have been got prepared and. sent to the quarters concerned.

Confidential reports of officers working in Panchayat samities/C.D. Blocks and other departments are also to be obtained by the Superintending Engineer concerned in whose jurisdiction any of the officer of the Irrig. Department is working. In the 1st week of May every year, each circle office should send the following certificate:-(duly signed by Superintending Engineer himself).

"Certified that the Confidential reports of each Gazetted/Non-Gazetted Officers/official worked/working in this circle during the year have been got prepared and sent to the quarters concerned after due checking.

In most of the cases it has been observed that annexures prescribed under this office latter No. 28-Estt/VJ/GS/1093, dated 20-7-64 are not filled in and attached with the confidential reports which in future should invariably be attached duly completed.

Non-Gazetted.-

The instructions meant for gazetted staff almost apply in the case of non-gazetted cadre and the same should be followed strictly. In the cases of non-gazetted staff, the adverse remarks should be conveyed by the authorities concerned for each cadre. In the case of the Engineering Subordinates it has been noticed that inspite of clear instructions the adverse remarks were conveyed only in few circles and that too hardly for 10% of the cadre. Annexures prescribed in respect of confidential reports of Engineering Subordinates Dy. Collectors and Zilledars as indicated in this office No 194-E/GS/1570-71 dated 22-9-64 should invariably be filled in and attached with the confidential report. Timely conveyance of adverse remarks is very necessary and the same should be conveyed each year before the end of June and the representations received there against decided after inviting comments from the concerned Officers.

All reporting/ reviewing and counters/signing authorities should also ensure that, in the cases of both confidential reports gazetted/non-gazetted adverse remarks recorded are as far as possible supported with instances, cases warnings etc. and the last reviewing and countersign authority should mention as to which of the adverse remarks is to be conveyed.

These instructions are to be gone through carefully and complied with immediate effect.

92.

Standing Order

No. 266A/SA27966, dated 18-11-1967.

Sub.-Quarterly return of pending final bills of Contractors/suppliers.

Large number of cases of delay in payment of final bills of contractors/suppliers have come to notice of this office through applications/representations from contractors as well as through Audit Reports presented to the Public Accounts Committee took of serious view of the delay in payment of final bills and desired this department to keep a close watch on their expeditious finalisation. Necessary instructions were issued vide this office letter No. 226A/SA/1209-26, dated 21-12-66 to all the Superintending Engineers and Executive Engineers; Irrig. to send quarterly returns of pending bills but it has been noticed that all the Divisional Officers have not been acting upon the orders, strictly. It has, therefore, been decided that in future, the quarterly returns of final bills, in the enclosed proforma, shall be sent by the Divisional Officers direct to this office with a copy to the respective circle office on 15 of January/april/July/October from the date of actual completion of the work. In case, any reference affecting the bills in question has been made to the Circle/Headquarters office for orders/Decision, number and date of the same should be quoted in column 9-reasons for delay so that early action is taken by all concerned in this behalf.

The Superintending Engineers will keep a watch on speedy payment of final bills of contractors and suppliers and see that genuine difficulties of contractors and suppliers are removed, and a high standard of efficiency in payment of bills maintained.

This return shall be entered in the calender of Periodical Returns prescribed vide Standing Order No. 84 dated 21st July 67 and the return submitted punctually.

Quarterly Return of Pending Final Bills of Contractors/suppliers More than 3 Months Old as on 1st of January, April, July and October.

S. No.

Name of contractor/Supplier

Name of work

Agreement work order/Supply order

Date of commencement

1

2

3

4

5

Date of completion as per contract

Actual date of completion

Actual date of recording final measurement

Reasons for delay in payment of final bill

Remarks

1

2

3

4

5

93.

Standing Order

No. F-I(3)LA/GNI/8793, dated 30-12-67.

Sub:-Submission of factual reports on notices under section 80 CPC

1. It has generally been observed that factual reports of cases pertaining to notices u/s.80 CPC as received from the officers incharge are incomplete and skated which do not serve the required purpose. Besides this, more often than not, factual reports are received very late. It is, therefore, enjoined upon all concerned to prepare factual reports in accordance with the provision of rule 105(i) of the Rajasthan Law and Judicial Department Manual, reproduced below:-

"105. Duty of the officer-in-charge (i) on receiving the notice, the officer-in-charge shall forthwith make a careful enquiring into the case and within fifteen days of the receipt thereof, submit to the Collector a detailed report containing:-

(a)

a clear chronological statement of facts and circumstances of the case, in narrative form, with reference to the documentary evidence on both sides and indications of the oral evidence on either side.

(b)

a separate statement answering serially all points raised in the notice.

(c)

copies of all documents relevant to the case.

2. A copy of the factual report on claims of Rs. 1,000/- and above should be sent simultaneously to the Superintending Engineer, and to the Chief Engineer within a week of receipt of the factual report. The head quarters office will forward the factual report with its comments to the Government within a week, so that the factual report is with the Government within one month from the date of receipt of the notice.'

In case of claims below Rs. 1,000/-the officer-in-charge will send factual report to the Collector and take necessary action as required under para 107 of the Law & Judicial Department Manual reproduced below:-

"107. Procedure for compromising claims below rupees one thousand:-Where the value of the claim is below rupees one thousand, action will be taken as follows:-

(a)

If on perusal of the report of the officer-in-charge the Collector considers the claim to be genuine in whole or in part, he shall forward all the connected papers to the public Prosecutor for his opinion on the merits of the claim and also to whether the claim should be compromised.

(b)

If, on considering the opinion of the public prosecutor, the Collector is satisfied that the claim should be compromised, he shall either himself or through the officer-in-charge open negotiations for compromise with the notice giver. But it should be borne in mind that negotiations should, as far as possible, be carried on verbally and "without prejudice" to the pleadings of Government in the event of a suit being filed and on the distinct understanding that any arrangement agreed upon will be subject to the sanction of appropriate authority.

(c)

If the notice-giver is willing to settle his claim amicably, on the terms which appear to the Collector to be reasonable, the Collector shall forthwith send all the connected papers along with the opinion of the public prosecutor and his recommendation to the Head of the Department concerned (which expression shall, the case, of a department having no separate head of the department shall be constructed as referring to the Secretary' to Government in that Department).

Note:- All action under this rule shall be completed by the Collector; within one month from the date of the receipt of notice.

(d)

If the head of the Department is satisfied that the claim is genuine and should be compromised on the terms recommended by the Collector, he shall issue orders forthwith to have the claim settled and the collector, shall then take steps to effect a compromise accordingly.

94.

Standing Order

No. 17A/Bud/ 17A/Bud/958, Dated: 2-2-1968

Sub:-Physical verification of stock and tools & plants.

The Public Accounts Committee in their meeting held on 13th December, 67 took serious view of the lapses on the Divisional Officers and sub-divisional Officers who had not conducted physical verification of stock even once in a year.

Physical verification of stock and tools and plants is intended not only to detect embezzlement/shortages that have actually taken place, but also it has great moral effect against attempts to pilfer Government Stores. Articles 264 and 269 of the General Financial and Accounts Rules and paras 230 to 237 and 258 of the public works financial and accounts rules make it quite clear that physical verification of stock and T & P should be done atleast once in a year and result of verification should be reported in form 99 of Book of forms. It is, therefore, enjoined upon all concerned to follow the rules strictly with regard to physical verification of stores and T & P. A report of having conducted physical verification by the Sub-Divisional Officers, in respect of stock and T & P (including dead stock) in their jurisdiction and by the Divisional Officer in respect of stock and T & P (including dead stock) e.g. furniture, fixtures, type- writers etc. in the Divisional (Office) in their direct charge may be sent to the Head Quarters office as well as respective Circle office

annually so as to reach by the 5th april, every year. In the case of officers who fail to conduct physical verification as referred to above, their default shall be reflected in their annual confidential reports, to be written /countersigned by the Superintending Engineer concerned/Chief Engineer, Irrigation.

Copy of letter No. I/S.O./Inst/2826, dated 8-12-69 from the CEI. Rajasthan Jaipur to all EES & SES.

Sub.-Standing Order No. 95 & 96.

1. The Public Accounts Committee has adversely criticised cases in which divisional Officers have booked expenditure under to the suspense stock in excess of limit sanctioned by the competent authorities and has asked for action against officers concerned.
2. Similarly, cases in which physical verification of stock and T and P has not been conducted have been adversely viewed by the Public Accounts Committee. It is probable that physical verification of stock and T P might actually have taken place but the Head-Quarter's office has not information about it, though clear instructions have been issued in this behalf vide Standing Order No. 95. In absence of information from the officers concerned on need with the tas of physical erification, it has also not been possible to know the factual position by 15th April every year as required under Standing Order No. 95.
3. During inspection of Divisional Officers by the Sr. Accounts officer, it has been noticed that manufacture accounts have not been closed and profit/loss adjusted by close of accounts of every financial year.
4. In order to keep a check on the three issues noted above it has been decided that all Divisional Officers will send a copy of form No. 73-Stock Account Part-I classified Account of Receipts, Issues and balances to the head quarters office as an enclosure to the monthly progress report sent under standing Order No. 91 by the 15th of every month.
5. (a) Reference No. and date and amount of the Reserve stock limit should be shown in the column "sanctioned reserve".

(b)

The fact of having conducted physical verification of Stock & T & P with the name of the office and dates of physical verification should be shown in the 'Remarks' column in the said form No. 73C. An explanatory note on the outstanding balances under 'stock manufacture' will be appended to show the estimate- wise break-up and progress of clearance.

Submission of this form may please be commenced from the monthly return for November, 1969.

95.

Standing Order

No. 25A/SA/959/960, dated 2-2-1968.

Sub.-Incurring of expenditure in excess of sanctioned grant.

The Chief Secretary to Government of Rajasthan vide his letter No. F. 9(3)/FD/Gen/R/67, dated 20-10-67 has administered a warning that "any breach of financial rules, particularly in the way of unauthorised expenditure will be viewed seriously and such unauthorised expenditure is liable to be recovered from the salary of the officer who may have been responsible for incurring the liability". It is, therefore, enjoined upon all Divisional Officers that booked expenditure and pending liabilities should not be allowed to exceed the sanctioned budget allotment for every work of unit of appropriation. In case, verbal orders are given by higher authorities at site or elsewhere the same should be promptly got confirmed in writing within a week unhesitatingly.

2. In view of the unabated financial stridency, it has been decided to exercise stricter (work-wise) control on expenditure in the Department. All the Divisional Officers are hereby ordered to send a copy of the schedule of works. Expenditure (Revised from showing also excess over estimate and excess over allotment), alongwith a copy of form No. 80 so as to reach Headquarters office by 15th of the month following. This system shall be started from the monthly account for January, 1958.

3. Operation of Remittance Heads plays an important role in this behalf. At present there is a misconception in to minds of the large number of officers and officials that ways and means position of the State Government is not affected by not accepting Accountant General's ATD's etc. The real position is however, different. After material is supplied for service rendered by central Government or any other state Government to the Rajasthan Government, immediately on receipt of t he concerned monthly accounts, the Accountant General of the Government concerned informs the Reserve Bank of India for effecting monetary settlement by book transfer and simultaneously sends the vouchers to the Accountant General, Rajasthan, through monthly settlement Accounts for carrying out adjustment in the account of Rajasthan Government. The Accountant General Rajasthan, debits the expenditure under the head I.A. P.W.D. and sends memos to the Division concerned who is to give debit to the service Head and credit to Remittance Head I.A.P. W.D. It will be

seen that by withholding verification of Accountant General memos the Divisional officer only avoids giving debit to his respective Service Heads of accounts, but the fact remains that money has flowed out from the fisc of the Rajasthan Government by the book adjustment carried out by the Reserve Bank of India. Similarly ways and means position of the State Government is affected when debits raised by other Divisions of the Rajasthan Government are not accepted by receiving Divisions who utilise their budget grants otherwise to the full, without taking into account the liabilities they have postponed. This leads to overspending by playing upon the Remittance Head T.B.P.W.O.

4. in order to check incurring of expenditure in excess of sanctioned grant it is also necessary to know the amount of pending liabilities under each unit of appropriation approved in the sanctioned budget. All the Divisional Officers are directed to show in the remarks col. of the schedule of work Expenditure for the months of June, Sept., December, March and March supplementary accounts, the approximate amount of pending liabilities alongwith brief reasons for non-adjustment of the same. For the purpose of financial control, the Divisional Officers will be deemed to have spent the amount of pending liabilities and if for any reasons, adjustment in accounts cannot take place during the financial year, the corresponding amount of appropriation should be surrendered to the Government before 31st March of the year concerned.

96.

Standing Order

No. 30A/SA/1356, dated 29-2-1968.

It has been noticed that the expenditure on maintenance and running of jeeps etc. has outstripped the budget allotment and same measure of economy is necessary in view of the prevailing financial stringency. It is therefore, ordered as under:-

1. Journeys between places connected directly by rail/bus service should normally by rail/bus service and use of Government vehicles should be avoided. As far as possible, jeeps of field Officers should be used for inspection of works instead of taking vehicles from headquarters of the Inspecting Officer. In case of departure from this requirement, prior approval of the controlling authority should be obtained giving full justification i.e. the public interest to be served by use of Government conveyance, which would not be served by undertaking journeys by rail/bus service. This should be done before undertaking the journey by Government conveyance, and reference of the sanction should be quoted in the T.A. Bill.

97.

Standing Order

No. 30A/SA/1 16, dated 5-6-1968.

It has been observed that the disposal of Draft Paras received from the A.G. is not prompt and the replies do not reach the A.G. within 8 weeks as required in the Joint Executive and Accounts procedure finance Department.

The following procedure is, therefore, prescribed for the disposal of the draft paras and should strictly be followed failing serious view which all the concerned should note:-

All draft paras are to be dealt with on personal level by T.A. to the

S.E. in Circle Office and D.A. in the Divisional Officers and they will be responsible to ensure that the reply is sent within the prescribed time limit.

As soon as the draft para is received, the Executive Engineer will submit a detailed report within a week to the Superintending Engineer who examine the report and forward the same to the C.E. with his comments within a week from the date of receipt of the reply from the Executive Engineer.

A cell of the following officials in the CEI office has been constituted and the Accounts Superintending will be responsible to get the reply finalised and sent to the Government/A.G./within a fortnight from the date of receipt of the reply. Thus the final reply to the draft paras should be sent within a month positively.

(1)

Shri Brij Mohan Lal, Supdg. Accounts, (2) Shri Bansi Lal, accounts clerk, (3) Shri Pooran Chand Accounts Clerk.

98.

Standing Order

No. It has been observed that the inspection reports of division conducted by the Superintending Engineer are sent to the Head Quarters office for orders of the Chief Engineer. The Inspection reports at this stage only contain remarks of the Superintending Engineer about the State of Affairs of account and other records of the division and those office is hardly in a position to give any orders unless the Executive Engineer concerned has furnished replies to the

observations made in the report.

It is, therefore, ordered that the Superintending Engineer, in future will in the first instance send inspection report to the Division for compliance and for reply to the observation made by him in the inspection report. On receipt of replies from the Executive Engineer, the report will be sent by the Superintending Engineer to the Head Quarters Office in duplicate with his further observation so that one copy of the report may be returned to him with the orders of the Chief Engineer. The revised proforma of inspection report shall be as under:-

S. No.

Points worthy of notice

S.E.'s remarks

E.E.'s reply

S.E.'s further observation

C.E.'s order

1

2

3

4

5

6

99.

Standing Order

No. 394-Estt/Embz/CP/807-57, dated 12-3-1969.

Sub.-Police Action in cases of embezzlement, theft, mis-appropriation etc. etc.

It has been observed that correct procedure is not being followed in dealing with cases of embezzlement, mis-appropriation, theft, tampering with measurement books etc. Detailed instruction for regulating the enforcement of responsibility for losses etc. have been laid down in appendix II of the General Financial and Accounts Rules of the Rajasthan Government which should be scrupulously observed while dealing with such cases. The following further executive instructions have been issued by the Government vide their letter No. F. 16 (138) Irg/68, dated 2½2-1-69.

"Whenever such cases are detected, the appropriate step is to submit a detailed report to the District Magistrate. The district Magistrate consults the legal advisers and then decides the legal steps to be taken. The Irrigation authorities, should therefore, report the cases to the District Magistrate and abide by his decision.

Some officer should be made responsible to pursue the case with the District Magistrate and supply all information required by him.

When a case is sent up for trial before the Courts, some one must invariably be appointed as Officer-in-charge of the case.

If the cases are put-up before criminal courts, prayer should be made to the court to pay the money of the department out of the fine realised from the accused in accordance with the provisions of section 545 of the code of Criminal Procedure.

The possibility of recovering the amount from the person concerned should invariably be explored irrespective of the decision in criminal or departmental proceedings. All possible steps must be taken to recover the Government money.

When cases are handed over to the Police for investigation close liaison should be kept with them by some responsible departmental officer who should provide all help and assistance required in expeditious completion of the investigation. Cases of delay and-in-action at the investigation stage should be taken up with the higher police officials.

These instructions may please be brought to the notice of all concerned and compliance insisted upon. Action on these lines should be taken on all pending cases, including cases reported in the Audit Report 1966-67".

In pursuance of the above directions from the Government, it is hereby ordered that Executive Engineer, Superintending Engineer or P.A. to Chief Engineer, Irrigation in whose office embezzlement, theft, mis-appropriation, etc. has taken place or may take place in future shall be the responsible officer to fulfil the above requirements. Action taken on each case should be reported briefly in the monthly return prescribed vide Standing Order No. 88 invariably.

100.

Standing Order

No. 30A/SA/1779, dated 8-8-1969.

While scrutinizing the cases of time extension instances Have come into notice where recommendations of the forwarding officers are not convincing, and one is apt to conclude that hindrances advanced or the period thereof are incorrect and incoherent with the facts of the case. Varied reasons are put forwarded in support of the applied extension e.g. death of some close relation of the contractor, out break of epidemics, non- acquisition of land, late layouts by the department, meagre arrangements on the part of the department for dewatering etc. subsequent changes in design, incorporation of specifications other than mentioned in agreements, unexpected cloud bursts, execution of extra/additional items so on and so forth. No up to date record is maintained at any level whether any of the above reasons are registered from the very outset of the work with the duration pertaining to each hindrance. When the contractor applies for extension at the end of the work he mentions several hindrances in support of his application and the departmental officers have mostly to take their memory to recollect as to what the actual facts were. This results in subsequent queries and counter-queries and the case, which is received in this office (or subordinate office in case the time extension falls within their competence), paints a very unrealistic and illegal picture of the actual hindrances on the site. To put an example, in one case the contracted represented.

101.

Standing Order

No. 30A/SA/3130-32, dated 27-12-1969.

Ref.-Your Letter No. 5089, dated 6-10-1969.

I am directed to convey the instructions and proforma of register as under for compliance.

Heading of Register:

Name of works:

2. Name of Contractor.

1.

Proforma:

Period of hindrances and time involved with dates.

Nature and detailed reasons of hindrances

Whether the hindrances is due to fault of the contractor or of Department

1

2

3

Dated initial of Engineering Subordinate

Dated initials of A.En./X. En. And S.E. Whenever they inspect the site.

Dated initial of the contractor or his authorised agent

4

5

6

2. When there are no hindrances then here will not be any entry.

3. The entries made by Engineering Subordinate may be countersigned may be counter signed by A. Eng. Xen and S.P. whenever they inspect the side and should be recorded in the register as and when the cause for doing so arises.

4. If there is a bonafide hindrance the same should be recorded irrespective of fact whether contractor applies or not.

5. Old cases are to be dealt with on their merits and should not be entered in the Register. However, if they are in progress and hindrance occurred after 1-10-1969 these should be recorded in the Register.

102.

Standing Order

No. 59A/SA/104-105, dated 9-1-1970.

The question of obtaining securities from Government servants required to handle cash and stores in the Irrigation Department has been gone into and it has been decided to fix the following security amounts for each class of the officials as mentioned below who are required to handle cash/stores in the Irrigation Department in terms of Government

order No. F. 19 (12) F. 11/53, dated 1st March, 54.

1. Cashiers and Store keepers Rs. 1,000 each.

2. Overseers and Assist. Store-Keeper Rs. 500 each

The deposit will be either in cash or in one of the forms prescribed in para 419 of General Financial and Accounts Rules. It is enjoined upon all concerned to note and compliance made accordingly.

103.

Standing Order

No. 380/A/SC/70/1083, dated 13-5-1970.

Sub.-Quarterly return prescribed by the Finance Department

regarding draft paras, objection book items, inspection reports, embezzlement cases, pay fixation cases and pension cases.

The finance Department, Government of Rajasthan has ordered for submission to the Chief Accounts Officer, Rajasthan, Jaipur of a quarterly return of Draft paras, objection book items (Works and Establishment), Inspection Reports and Paras. Embezzlement cases, Pay fixation cases and pension cases indicating opening balances as at the beginning of financial year, additions during the quarter clearance during the quarter and balance at the end of every quarter.

The existing returns prescribed under various standing orders do not show such progressive date of quarterly accumulations and clearance. It has, therefore, been decided that a separate return on the enclosed proforma shall be prepared and submitted by all Divisional Officers. Superintending Engineers including officers of the Design Directorate, Dy. Director, Hydrology and T.A. to Chief Engineer, Irrigation by 15th April, 15th July, 15th October and 15th January.

These statements will be received consolidated and submitted to the Chief Accounts Officer by the Inspection Section of the Head quarter's office. Pursuance of the cases shall continue to be done by the respective sections dealing with the subject, as usual viz:

(i)

Draft paras

Accounts Section

(ii)

O.B. Items

Inspection Section

(iii)

Inspection Reports

Inspection Section

(iv)

Pay Fixation Cases.

-do-

(v)

Embezzlement

Chambal Section

(vi)

Pension Cases

Establishment Section

The respective sections shall check the consolidated statements with reference to their own records and put up the checked statements within 3 days to the Senior Accounts Officer who will place the same before the Chief Engineer, Irrigation and then send the quarterly return to the Chief Accounts Officer so as to reach him by 10th May, 10th August, 10th November and 10th January every year.

Copy of proforma.....

Quarterly Statement Prescribed by Finance Department.

Name of Office:

Previous Return sent vide

No.

Dated:

Items

Fixation Cases

UPS1950

RPS1956

RPS1966

RPS1966

NPS1969

1

2

3

4

5

6

(a) Position at the beginning of quarter.

(b) Reed, during the quarter under report.

(c) Total (a) and (b).

(d) Clearance made during the quarter.

(e) Balance at the end of Quarter.

(f) Action taken for disposal of the remaining items.

(g) Number and dates of personal contracts with names of officials attending offices of the A.G. during the quarter.

(h) Complete details of 3 years old items and amount involved therein alongwith reasons for non-clearance (detail to be attached).

Draft Paras

O.B. Items (Works)

No.

Amount

S.Rs

Vrs.

For other reasons

7

8

9

10

11

O.B. Items (Works)

Inspection Report

S.Rs

Vrs.

For other reasons

Report

Paras

12

13

14

15

16

Embezzlement Cases

Pension Cases

No.

Amount

Retired up to 1-7-67

Retired after 1-7-67

17

18

19

20

104.

Standing Order

No. GS(12) VC/66/748-754, dated 18-6-1970.

Sub.-Quick disposal/finalisation of the cases received from the Rajasthan, Vigilance Commission.

The following "Modes of Corruption" have been indicated to be prevalent in Government employees/Offices in the 1st report of Rajasthan Vigilance Commission with a view to take suitable steps to eradicate the same. As against this, the following modes of corruption are found to be relevant to the working of this department and after obtaining and considering suggestions from the subordinate offices, instructions mentioned against each mode of corruption are issued for strict compliance:-

Mode of Corruption¹

Check Measures²

22. Demanding bribe in Passing T.A. bills and Medical Bills.

A register of T.A./Medical Bills be maintained showing date of receipt of the bills and date of passing the same by dealing clerk. A time limit of 7 days be fixed for disposal of such bills. In case the controlling officers does not pass the T.A. and Medical bills in the prescribed time matter should be reported to the next higher authority. In case of persistent and intentional delays by the concerning controlling officer Engineer, Irrigation, for consideration in regard of action to be taken.

24. Embezzlement of Government Money by forgoing Signatures.

Signatures should be compared minutely.

33. Making purchase against rules for wrongful gain.

No purchase should be made against rules and the order be placed only with the Government approved dealers/reputed firms.

It should be made incumbent in all offices to maintain lists of approved and well known dealers in various types of machinery and other articles and stock and quotations should invariably be called from all such registered dealers unless the purchase is made at D.G.S. and d. rates. It should also be certified by the officer concerned that the articles purchased will be utilised within a period of six months.

34. Mis-appropriation of Government money in public works, nonpayment of daily wages to labourers, preparation of false schedules.

Payment to daily labourer made only in the presence of Gazetted Officers.

35. Claiming of false T.A. and D.A.

The claims be entertained only after due verification and if covered under rules.

36. Mis-use of Government vehicles.

Vehicles should be used only for Government work and the Log

Book of the Vehicle be filled in as soon as the journey is completed.

37. Extracting illegal gratification for signing arrear bills.

Every arrear bill should be examined to determine whether delay in passing has occurred due to the fault of the paying authority and his office. Intentional delays should be looked into and disciplinary action taken against, the official concerned immediately.

38. Cheating the Government by obtaining false house rent allowance

The certificate given by an official for house occupied by him be got physically verified occasionally to prevent the fraudulent practice of submitting false receipts.

39. Securing service by false certificates

In the event of suspicion with regard to correctness of the Certificate, a reference be made by appointing authority to the concerned University/Board before appointment is given.

44. Making Over-payment to Contractors for ulterior motive.

Only exemplary punishments can eradicate the evil. As such, immediate action under rules be taken against the delinquents and matter brought to the notice Head Office at once.

48. Harassing of cultivators by Irrigation Officials in respect of supply of water etc.

Only exemplary punishments can eradicate the evil. As such, immediate action under rules be taken against the delinquents and matter brought to the notice of Head Office at once.

50. Purchase of immovable property etc. without prior permission

As per pension and conduct Rules such purchases can only be made after obtaining permission of the Head of the Department/Government as the case may be and the cases of defaulters be taken up immediately for disciplinary action under rules. The matter should be brought up to the notice of Head Office immediately, on occurrence.

52. Moral turpitude

-

53. Abuse of official position for giving benefit to a relation

The officers holding/supervisory posts should not have official dealings with their relatives.

54. Abuse of official position by forgoing purchasing orders for illegal gains.

Purchases should only be made for essential requirements and after obtaining sanction of the competent authority.

104A.

Standing Order

D.O. No. GS (12)/VC/72/IV/1255, dated 2-11-1972.

Sub.-VIth Report of Rajasthan Vigilance Commission.

Vide Standing Order No. 104 issued under this office No. GS(12) VC/66/748-754, dated 18-6-70 (copy enclosed) several modes of corruption with measures to avoid corruption amongst Government employees in the department were

indicated. The Vigilance Commission in their VI Report (para 77) have again mentioned several modes of corruption out of which the following four modes may relate to this Department also and you are, requested to keep special watch in the cases where there appear any likelihood of such cases in your office as well as in any of the subordinate offices under your charge.

1. Manipulation of Muster Rolls, Measurement Book and other record of work.
2. Conveying with contractors in the use of sub-standard material or relaxation of rules or specifications or making over payments with improper motives.
3. Misuse or diversion of material for personal gain or advantage.
4. Manipulation of medical reimbursement claims by Government employees with a medical officers and or druggists and chemists.

105.

Standing Order

No. DE/3739-41, dated 21-8-1971.

It has been observed that suspension cases are not receiving the attention which they deserve, Government attaches great importance to the cases of this nature thereby requiring prompt disposal at all levels. Contrary to this, it has been noted that cases of this nature are delayed abnormally covering a period of years.

This type of negligence in such important cases involving government loss does not reflect well on the Department and more specially on the Head Office which has to deal with the Government. In order to effect expeditious disposal and to achieve immediate results in such cases it is enjoined upon all concerned that prompt disposal of such cases should be ensured at all levels for which a special watch should be kept in dealing with such cases and all such cases should be dealt with on "PRIORITY" basis.

It is further emphasized upon all concerned that any violation of these instructions would be viewed seriously and may be followed by taking disciplinary action against the defaulters.

106.

Standing Order

No. 30-A/SA/Irrig/4475, dated 21-8-1971.

Attention is invited to para 179 of P.W.F. and A. rules wherein it has been provided that the purchases of the stores or materials far in advance or in excess of requirements is likely the result both in direct and indirect loss to the Government and should be avoided. With a view to eliminate the probabilities of excess purchases, it has been decided that the purchase programme of each Division shall be scrutinised by the Superintending Engineer with reference to budget allocation each year latest by the end of April. He will forward his recommendations to this office for approval and the final approval thereof will be conveyed by this office within 4 to 6 weeks. Purchases will be made by the officers competent in accordance with schedule of powers subject to the rules and regulations and orders issued on this subject from time to time by the Government and this Department.

The items for which the purchase programmes will require the approval of this office are given in the appendix (A) to this standing order. The recommendations of the Superintending Engineer will be sent in the proforma enclosed as Appendix (E) attached herewith.

Variations in the approved purchase programme may be done by the Superintending Engineers of the extent of 5% of the quantities in emergency. These variations should, however, be got approved from this office immediately. Proposals for 1971-72 should be sent now within 4 weeks by the Superintending Engineers.

In future, purchases made by the Divisional Officers in excess of requirements will be viewed seriously and the officers concerned will render themselves liable to administrative action.

List of items for which purchase programme will be approved by the Office of the Chief Engineer, Irrigation.

1. G.I. Pipes and Hose Pipes.
2. Pumping Sets.
3. Tractors, Trolleys and Trucks.
4. Sluice Gates.
5. Ordinary T and P exceeding Rs. 10,000/- in a year.
6. Cement.
7. Spare parts of the vehicles exceeding Rs. 2,500/- in a year.
8. Iron steel.

9. Cement pipes.

10. Building material exceeding Rs. 20,000/-.

Appendix (B)

Purchase Programme for the year.....

Head of Account:-

Sanctioned grants of the Divisions:

I-Works:

Works:

III T & P

IV Suspense

S. No.

Name of the Article

Existing quantity

Requirements of the year

(i) Serviceable

(ii) Unserviceable

1

2

3

4

Quantity to be purchased

Probable price per unit

Total cost

Recommendations of the S.E.

Remarks

5

6

7

8

9

Note.-Col. 3 is to be filled in respect of all the items in Appendix-A for all the Divisions irrespective of whether new purchases are proposed or not.

107.

Standing Order

No. 30A/SA/7405, dated 30-12-1971.

Attention is invited to Appendix VII of the P.W.F. & A. Rules wherein rules for the execution of works on work order in the Irrigation branch have been laid down. The rules laid down are to be read with reference to the delegations made in the item No. 23 of the schedule of powers which lays down that delegation is to be exercised where no tenders are received.

It has been brought to my notice that the Divisional Officers are issuing work orders for works which do not fall under rule 2(c) and (d) of the rules contained in Appendix VII. Besides rule 4 is also not being observed by the Divisional Officers. Work orders are also being issued in respect of works for which tenders are received and also where tenders have not been invited at all.

While individual cases wherein these lapses have been noticed will be dealt with according to rules, it is enjoined on all the Divisional Officers that the provision contained in these rules should be scrupulously followed and there should not arise any occasion for non-observance of these rules. Any breach of these rules and the delegations made by the Government if brought to the notice of this Department will render the Divisional Officers concerned liable to appropriate administrative action.

Rule 3 of these rules provide that if urgency of a project requires the work to be commenced forthwith before acceptance of the tender and contract documents by competent authority the work for recorded reasons and under the written orders of the Divisional Officer can be started temporarily on a price work agreement. The rule also provides for the

personnel responsibility of the Divisional officer for getting contract bond completed and signed with the least possible delay. Instances have come to my notice wherein the Divisional Officers taking shelter under this rule have got works executed and have not cared to get the tenders and contract documents etc. approved by the competent authority. Even by the time of the completion of the work, tenders were not accepted in many cases.

In all such cases, it is enjoined for future that no works should be commenced until written orders are conveyed by the competent authority for getting the work executed on piece work agreements pending sanctions for acceptance of tenders by that authority. Besides, it will be the duty of the Divisional Officer to inform the competent authority when the work has exceeded the limit of Rs. 10,000/- for conveying acceptance of the tender promptly and in case there is likely to be any delay further in this respect, he should seek instructions for continuance of the work after a liability of 10,000/-has been incurred.

It is also enjoined on the Divisional Officers that invitations of tenders without sanction to estimates should be avoided because unless the estimates are approved tenders can not be accepted.

108.

Standing Order

No. 1023, dated 8-2-1972.

At present there is no Register in the Divisional Offices where in the details of purchases made could be referred at a glance.

It has, therefore, been decided that a purchase order register should be maintained in each Division. The proforma in which this register is to be maintained is enclosed.

Divisional Officers will ensure that this Register is maintained up-to-date and made available to the Inspecting Officers at the time of their visit.

Proforma:

Purchase Order Register

S. No.

No. and Date of the Order

Name of the Firm

Materials ordered

Specification

1

2

3

4

5

Quantity

Rate

Amount

Ref. Of sanctioned Estimate

6

7

8

9

Period Delivery

Date of delivery

Vr. No. & Date of payment

Initials of the Divisional Accountant

109.

Standing Order

No. 380/A/SC/1416, dated 17-7-1972.

It has been observed that the quarterly return prescribed in the standing order No. 103 issued vide this office No. 380A/SC/1083, dated 13-5-70 is not received in this office on due dates, as a result of which the quarterly return to be submitted to the Chief Accounts Officer, Rajasthan, Jaipur and Finance Department is either delayed or sent incomplete.

Such delays and incomplete submission of Return has been commented upon adversely by the Chief Accounts Officer and the Government.

It is, therefore, again requested that the quarterly return prescribed in Standing Order No. 103 should in future be sent to this office on due dates.

109A.

Standing Order

No. 1812-1816, dated 14-5-1973.

It has been noticed that departmental Vehicles/machinery given to the contractor/other Departments on hire, remains idle on Gazetted Holidays other than Weekly off and or due to rain but no hire charges are claimed from the contractors/other departments for the days vehicle/machinery remains idle, the matter has been examined and it has been held that since machinery/vehicle, when lent on hire, remains under the custody of the contractor/other Department charges for such Idle period should be recovered.

It is therefore, enjoined upon all the Superintending Engineers/Executive Engineers to see that hire charges of the Vehicles/machinery, are claimed from the Contractors/other Departments for the days the Vehicles/machinery remains idle due to Gazetted holidays/rains or any other reasons except weekly off or due to breakdown of the machinery.

110.

Standing Order

No. Estt/GTD/Misc/4050-58, dated 17-4-1974.

It has been observed that officials/officers of the department apply for different types of leave after issue of transfer order, even after their being relieved on transfer Government orders are very clear on the subject and in accordance with such orders such officials/officers can apply for leave only after joining at the place of new posting and accordingly they cannot apply for/avail leave after relief in the office from where they have since been relieved. In effect no leave can be granted/ availed during transit.

It is, therefore, enjoined upon all concerned that leave applications from such officials/officers should not be entertained by the office from where they have been relieved and alone the office where they are required to report for duty should not entertain their applications unless they have reported for duty report.

All concerned will, therefore,, please ensure that above instructions, covered under rules, are strictly adhered to.

111.

Standing Order

No. T/GP/240/250, dated 3-6-1974.

It. has been noticed that many irrigation structures viz. Bunds & Canals, Bridges, Aquesducts, escapes, canal regulators, regulation gates, etc. stand in need of repairs. The officers who are presently incharge of such structures are generally not fully aware of the exact extent of the damage and the exact factors which contributed to these damages. Scientific investigations at the stage are some times necessary in order to evaluate the extent of damage and to decide the remedials as well as oreventive measures required in future. Much of the labour required to do such investigations could have been saved and corrective as well as remedial measures could have been saved and corrective as well as remedial measures could have been taken much earlier had a proper history of behaviour of each structure been maintained. It has been noticed that the predecessors of the present officers incharge of these structures have not left any notes mentioning as to how the structures got damaged and what repair work is required and what had already been done by the predecessors towards investigations and evaluating the remedial measures thereof. In order to ensure efficient maintenance of irrigation works, the following instructions are laid down for guidance and compliance of all concerned:

1. While handing over charges, every Assistant Engineer, Executive Engineer & Superintending Engineer should prepare a handing over note mentioning specifically the existing conditions of all major irrigation structures and if any of them are in damaged condition, the causes and circumstances leading to the damage, investigation made for working out designs of remedical measures, the remedical measures already executed and those remaining to be taken, for the guidance of the succeeding officer.

2. There should be opened a separate file on the history of each major irrigation structure containing its completion drawing showing thereon various changes made from time to time in the structure. Wherever any damages or changes in the behaviour of the structure occur, these should be recorded in the file and all technical data in connection with the factors leading to the damage etc. as well as in connection with the remedial measures taken should be given inveriably,

such identical file should be in all the sub-divisions as well as Divisional offices and while inspecting the sub-Divisional office every Executive engineer, should record a perse of this inspection in each such file. Similarly, while inspecting Divisional offices, all the respective Superintending Engineers should record their notes in all such files of the Divisional offices.

3. In case of bunds, regular daily discharge data of inflow and outflow should be maintained, in a separate register so that the total availability of water vis-a-vis the quantum being used and the quantum if water available surplus may be assessed when so, required beside serving many other useful purposes.

All concerned should strictly follow the above instructions and non-compliance be strictly viewed.

112.

Standing Order

No. Estt/GTD/Misc/11915-18, dated 17-10-1974.

In addition tot he leave cases covered under standing order No. 109, issued under this office No. Estt/GTD/Misc/4050-58 dated 17-4-1974 the following categories of leave cases have also come to the notice of this office.

1. Government servants keep away from duty without applying for leave or without obtaining prior permission/sanction of the competent authority.

2. Medical certificate is not furnished while proceeding on medical leave and medical certificate is submitted alongwith fitness certificate availing after leave while the two certificates are required to be submitted in separate prescribed forms as per rules 76 & 83 of R.S.R.

It is, therefore, enjoined upon all concerned that while sanctioning leave in such case, the competent authorities should ensure proper application of rules while sanctioning leave or while recommending cases of leave to this office in order to plug a violation of rules.

113.

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114.

Standing Order

No. 1138, dated 13-5-1978.

Inspite of clear instructions issued vide this office order No. T/26/A/1108, dated 27-6-62 and XV/Misc/30/74/3395-406 dated 12-6-74 the tour programmes and inspection notes are not submitted well in time before submission of T.A. bills for countersignatures but the compliance of this office circular is not being made by the Superintending Engineers and Executive Engineers except in few. Now it is again enjoined upon all the officers to submit their tour programmes well in time and inspection notes before submission of the T.A. bills for countersignatures failing which the T.A. claims will not be countersigned.

115.

- dk;kZy; vkns'k

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tu lkoZtfud fuekZ.k fofRr; ys[kk fu;e 362 ds vuqlkj fcuk /kjksjg jkf'k ds fufonkvksa ij dksbZ fopkj ugha gksuk pkfg;SA mijksDr vkns'kksa dk dBksjrk ls ikyu gksuk pkfg;SA

116.

Standing Order

No. A/S/A/1055, dated 2-3-1975.

Sub.-Quotation/Tender for Supply of Materials.

During the course of inspection, it has been observed that while issuing quotation tender for supply of material neither uniform procedure is adopted nor provisions laid down in appendix XVA of G.F. & A.R. are followed strictly, which is irregular and leads to the audit objections.

Open tenders, should always be obtained for the amount more than Rs. 2,000/- and limited tenders should only be obtained in case of material costing less than Rs. 2000/-.

1. The notice inviting tenders/quotations must be issued in the proforma Annexure 'A' given on page 429 of G.F. & A.R.
2. The tender/quotations must be in proforma Annexure 'B' given on page 430 of G.F. & A.R. and terms and conditions must be as given in Annexure 'C' page 431 to 435 of G.F. & A.R. The agreement may please be got executed in all the cases except small purchases not exceeding Rs. 200/-.
3. Purchase should not be spilt up and should not exceed in quantity for more than the occasion demands.
4. The notice for inviting tenders/quotations should only be issued when there is a proper and suitable demand from the sub- division or from the Incharge stores and it is approved by the Divisional officer, the Assistant Engineer may not be allowed to issue NIT as the list of registered firms is not kept there and financial adviser is not available with him.
5. Full specification of material and total No. of quantity required should be mentioned in the NIT. The N.I.T. should be issued only after consolidating the requirement and wide publicity should be given by giving in leading news. Papers and well as to all leading suppliers and placing on notice board at different important places.
6. The list of leading suppliers for each type of store items be maintained in a register and kept in the Division duly initialled by the Divisional Officer. The proper office order be issued with whom this register will be kept duly page numbered. Such register be prepared by 31-3-75 and report may please be sent to this office. In case of Jeep, Trucks and other genuine parts supplier's name may be obtained from the manufacturer.
7. All the tenders/quotations must be entered in the register immediately as soon as they are received. They should be kept duly page numbered with some responsible financial official and a proper office order be issued as to by whom the register is to be kept. In the register the signature of the representative of the firm, Divisional Accountants and Executive Engineers should be obtained in that Register.
8. Earnest money must always be obtained without which no tenders are to be accepted.
9. Sufficient time should be allowed for receipt of tender, which is fixed as under:-
Cost of Materials
Time limit to be given in N.I.T.
Cost of quotation/tender form
 1. Upto Rs. 2000/-
7 days
1.00
 2. Exceeding Rs. 2,000/- but not more than Rs. 20,000/-
15 days
2.00
 3. Exceeding Rs. 20,000/- but not more than Rs. 30,000/-
21 days
3.00
 4. Exceeding Rs. 30,000/-
One month
4.00
10. A proper supply order should be placed giving full details of specification and rates. It should be binding on supplier to supply the material within the specified date and thereafter there should be a penalty clause.
11. All materials received should be examined properly, some suitable Asstt. Engineer should be made incharge of stores and he should record the certificate in the following language:

"Received the material as detailed above mentioned in the bill in correct and good conditions. The material has been accounted/measured/weighed and found in accordance with specifications detailed in supply order. Entered in stock register on page No.. at S. No.....

Store Keeper. Officer Incharge

The receipt of the circular may please be sent.

117.

Standing Order

No. Ins. F.6/112, Sr. F/Insp./2250, dated 6-8-1975

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fo"k; %& ys[k iz.kkyh dk foHkxh; fujh{k.k ny }kjk fujh{k.k

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lkFk gh tks LVsVesaV fuf'pr fd;s x;s gSa mUgSa Hkh iwoZ esa gh rS;kj dj fujh{k.k ny dks izLrqr djus gksaxs ftls fujh{k.k

ny dk le; u"V u gksA

Proforma of Accounts record to be inspected by the internal check party enclosed here with:

Accounts Record to be Inspected by the Internal Check Party

Name of the Division :Party Consisting of :Period of

Inspection :

P.W. Records

Remarks of Division Officerwhether

maintained or not maintainedtogether with the reasons for non-maintenance.

Para No. of the Inspection reportbe noted if there is any observations, forobservation pl. see para No.

1. Cash Book P.W.A. 1 C.I.T.R. 101 including form 51

2. (a) Register of Cheque/Receipt book PWA 52.

(b)

Receipt book/cheque book blank/used kept with the Division Officer or not.

(c)

Physically verified quarterly or not.

3. Register of M.B. form-92.

4. Register of Muster-roll (F.D.

Order No. F. 3 (39) FD/Exp. III/70 dated 30-5-1971.

5. Register of work:

Major works form-40

Minor works form-41

6. Contractor ledger form 43

7. Register of Securities form 85 (reviewed by Divisional Officer or not).

8. Suspense Register form 67:

1. Purpose

(i)

for stocks.

(ii)

for specified work.

2. Misc. P.W. Adv. 70.

3. Suspense stock form 8-9-10 & 12

4. Register of manufacture 42

5. Stores.

6. Tools & Plants register form 15 part I & II.

9. Deposit Register 67

10. Register of rent of building and land form 49
 11. Register of check measurement,
Standing Order No. 54
 12. Purchase register standing order No. 107
 13. Register of fixed charges for M. 56
 14. Register of undisbursed wages from 21-A
 15. Register of sanction to Estimates
 16. Register of Misc. Sanction form 59
 17. Register of work order
 18. Register of M.A.S. Accounts (form-35)
 19. Register of Cash Settlement
 20. Register of M.A.S. Accounts (form 35).
 21. Statement of standing imprest and temp, advance with subordinates in form 5 Part II as on 31st March and as on the previous month of the internal check in case of outstanding more than six months reasons to be recorded by the divisions.
 22. Register of Indents form-7A.
 23. Sale Account P.W. 19.
 24. Register of Revenue Realised-46.
 25. Register of Misc. Recoveries-95.
 26. Register of transfer await.ed-57.
 27. Register of Destruction of records-97.
- Register As Per G.F. & A.R.
1. Cash book G.A.-48
- (a)
- Is cash book closed daily & initialled by the Divl. Officer?
- (b)
- Does the double lock system exists? 1
- (c)
- Checking of totals by the person other than writer.
2. Encashment Register G.A.-173.
 3. Bill Register G.-59.
 4. Register showing receipt and disposal of cheques drafts, postal order and M.O.'s G.A.-51.
 5. Register of each challan G.A.-58.
 6. Register of Retrenchment G.A.-60.
 7. Register of special Recoveries g.a.-61.
 8. Register of pay & allowance drawn by Gazetted Officers G.A.- 73.
 9. Establishment register G.A.-74.
 10. Register of T.A. Bill G.A.-98.
 11. Register of periodical increment G.A.-102.
 12. Register of un-disbursed pay & allowance G.A.-102.
 13. Register of payment made by P.O./ M.O./Bank Draft-G.A.-130.
 14. Register of contingent charges G.A.-104.
 15. Stock Register of Stamp Postage-G.A.-I 14.
 16. Register of Medical reimbursement.
 17. Register of postage stamps used and their balance G.A.-115.
 18. Register of trunk calls G.A.-I 15.
 19. Register of showing receipt & disposal of application of pension G.A.-152.
 20. Loans & Advances Register G.A.-I 85.
 21. Loans & Advance Individual ledger A/c. G.A.-156.
 22. Register of Casual Leave G.A.-160.
 23. Stationary register G.A.-161.

24. Dead stock register G.A.-162.
25. Register of defalcation cases G.A.-163.
26. Register of deposit G. A.-171.
27. Register of Service Book & Service Roll G.A.-201.
28. Register of Grants G.A.-12.
29. Register of grant of app. & Modification G.A.-I 1.
30. Register for watching receipt & disposal of Grs. of Government Servants G.A.-42.

Misc. Registers:

1. Register of black listed firms.
2. Register of O.E. Items. f.D. No. 9.
(8)
A & 1/66, dated 5-8-1969.
3. Register of Rate Contract.
4. Register of Inspection Report & their disposal. F.D. No. F. 9(8) FD/A & 1/66, dated 5-8-1969.
5. Quarterly return (Standing Order No. 103)
6. Register of Draft Paras.
7. Register of News Papers.
8. Register of enlistment of contractor/ suppliers.
9. Monthly remittance Return-Standing Order No. 91.
118.

Standing Order

No. F. (9)/Instructions/75/419 to 478, dated 12-1-1976.

It has been noticed that appropriate action on cases of losses of stores and T & P articles on account of shortages found during physical verification and hading over charge by one store keeper to other store keeper is not taken at sub-division/Division & Circle levels.

The following directions are issued for appropriate action to be taken in such matters.

(i)

Whenever such losses are noticed intimation of them should immediately be sent to higher authority, this office, C.A.O., F.D. & A.G. in compliance with rule 20 & 21 of G.F. & A.R.

(ii)

After sending the above intimation action should be taken to fix responsibility of loss under rule 17 of C.C.A. rule. In case the loss is heavy and action under rule 16 is considered necessary to give major penalty action under this rule may be taken instead of rule 17. After fixing responsibility for loss action should be taken to recover the amount in one instalment from pay, security and property of the concerned Government servant. For recovery from property action under P.D.R. act or as arrears of land revenue is to be initiated through the Collector of the Distt.

(iii)

Responsibility for supervisory negligence should also be fixed. Action against the Government servants found responsible for supervisory negligence should also be initiated under rules 17 of C.C.A. Rules.

(iv)

Detailed report of the above action should be sent to this office every month.

(v)

Action prescribed under provisions of para 186 of P.W.E. & A.R. Annexure II alongwith rule 23 of G.F. & A.R. should be taken.

(vi)

Merely showing the amount of loss as P.W. advance is not sufficient immediate steps to recover the loss from the concerned Government servant are necessary..

The above instructions should be followed in all such cases in future. In respect of all the past cases in which the above action has not been followed so far, it may be followed now.

Omission of the above instructions will be dealt severely.

119.

Standing Order

No. F. 9(1)(43) Misc/PWA/76 Return/950-54, dated 12-2-1976.

It has been noticed that huge amounts about 50 lacs have been lying as misc. PW. Advances in various divisions against Executive-engineers, Assistant Engineers, Jr. Engineers, contractors and other officials since last several years, awaiting clearance and adjustment. In absence of appropriate action on their clearance, amount is being added day to day. This tent-amounts to serious financial irregularity.

In order to clear the misc. PW. Advances and to check such advances in future, the following directions are given. These directions are to be complied with strictly.

(i)

Misc. P.W. Advances on account of loss and Mis-appropriations:

Merely placing the amount in question as Misc. Advance against the concerned official etc. is not sufficient. Such cases should be investigated immediately and responsibility be fixed after giving an opportunity to the concerned official in addition to other action as prescribed in relevant rules of PWF & A.R. and G.F. & A.R. After taking decision regarding responsibility for loss, action to recover the same from security, pay & property of the concerned official be taken to clear the advances. Pending cases should be reviewed and cleared within two months. In future, all these actions should be completed within three months from the date the losses are noticed.

(ii)

Misc. P.W. Advances on account of personal charges, imprest and temp, advances.

In respect of these items, concerned Government servant should be asked to deposit the amount of personal charges imprest and temp, advances within 15 days. In case, they do not deposit within this period, action to recover the same from salary, which is payable after 15 days be taken. In respect of these Government servants, who have been transferred, their such recoveries be shown in revised L.P.C. which is to be sent now to their present head of office. A copy of the revised L.P.C. which is to be sent now to their present head office and concerned Treasury Officer. In future, no imprest and temp, advances should be given unless previous imprest and temp, advances are got adjusted or cleared.

(iii)

Misc. P.W. Advances against contractors and suppliers:

All such pending items be examined and recovery be effected from running/final bills or from the security deposit. If there is no payment due other divisions be requested for recovery under intimation to head office. In case, recovery is not possible by taking all possible efforts action of recovery as arrears of land revenue through Collector of the Distt. be taken. Immediate steps to be taken accordingly. There should be strict watch on clearance of such advances in tour.

(iv)

Misc. Advances against Asst. Engineers/Jr. engineers for want of sanction.

Some times, Misc. advances are placed without sufficient ground's and even without informing the incumbents. For existing items, the concerned Government servants should be served with a registered notice to get such advances cleared within one month. If they fail, action to recover the amount from their salary should be taken. In cases action taken and justification given by Asst. Engineers or Jr. Engineers are not considered by the Executive Engineer sufficient to get their advances adjusted, they may represent directly to the Superintending Engineer. The decision of the Superintending Engineer on their representations will be final. Decision at the level of Executive Engineer and Superintending Engineer on the justification, replies of the concerned officials will be given within 15 days. If Superintending Engineer is of the opinion that the jurisdiction given by the Assistant Engineer/Jr. Engineer is not sufficient to get Misc. PW Advance cleared, he shall order for recovery of amount from pay.

In future, no such advances should be placed unless an opportunity in writing stating reasons is given and reply taken. After considering the reply, if amount is placed as Misc. PW Advance, the concerned official shall be informed of this action within 7 days. In case, the concerned official, to not who the decision, he may represent to the Superintending Engineers within 15 days, whose such representations placed under Misc. P.W. Advance is not cleared, action to recover the amount from the salary will be taken.

At the time of transfer, such advance should be shown recoverable L.P.C. In respect of Government servants, who are to retire within one year or have retired, intimation of all such advances, to this officer and pension sanctioning authority be sent immediately to get the advance cleared before forwarding the pending pension case or to mention the amount as recoverable from the Gratuity/Pension. In respect of those officials who have already been transferred revised LPC

containing recovery of the Misc. Advances shall be issued with a copy to this office and concerned treasury Officer.

The above instructions are to be followed and complied with strictly. The Divisional Accountant of the Division shall be responsible for strict compliance of these instructions and for taking disciplinary action. In case advice of Divisional Accountant is not agreed by the Divisional Officer or there is abnormal delay at any stage, he may directly seek Instructions from the Sr. Accounts Officer confidently.

Quarterly statement or items of Misc. Advances pending for more than three months old as to be sent in the enclosed proforma, so as to reach this office by 15th April, July, October and January positively.

Name of Division:-

Abstract Statement of Quarterly Return of Items of Misc. P.W. Advances for the Quarter Ending

Category of item

Opening balances (as on 1-1-76 for the 1st return

Newly added items during the quarter in question

Total items (Col. 2+3)

Items cleared during the quarter in question

Closing Balances

No. of items

Total Amount

No. of items

Total Amount

No. of items

Total Amount

No. of items

Total Amount

1

2

3

4

5

6

1. Misc. PW Advance on Account of losses & Misc. Appropriation.

2. Misc. PW Advance on account of personal charges.

3. Misc. PW advance on account of imprest & Temp, advances.

4. Misc. PW advances against contractors & suppliers.

5. Misc. PW advances against A.Ens/J-Ens. for want of sanction.

Divisional Accountant

Executive engineer

120.

Standing Order

No. 30A/SA/7013-7068, dated 13-2-1976.

Attention is invited to para 318 and 375(a) of P.W. & Financial Accounts Rules wherein it has been prescribed that no works shall be commenced unless a properly detailed design and estimate have been sanctioned by competent authority.

It has been noticed that tenders are generally invited by the Divisional offices, without sanction of technical estimate which results delay in sanction of tenders.

It is, therefore, enjoined upon all the subordinate offices of this Department that proper detailed design and estimate should be got sanctioned technically first from the competent authority before inviting tenders and allotting the work to

contractors.

121.

Standing Order

No. F. 9(1) Insp/76/1026, dated 16-2-1976.

In accordance with para 758 of P.W. & A.R. Schedule of monthly settlement with treasuries in form No. 51 (with supporting consolidated Treasury Receipt & Certificates of issues, signed by Treasury Officers) is required to be sent to Accountant General, Rajasthan, Jaipur with the monthly account it is observed that the same is not being sent regularly by the Divisional officers. Non-preparation timely non-submission of form No. 51 may result in cases of mis-appropriations.

It is, therefore, enjoined that Divisional Officer should ensure that form 51 duly completed is sent to Accountant General Rajasthan, Jaipur alongwith the monthly account. It is also to be ensured by the Divisional Officers that in respect of amount of challans not verified by the Treasury Officer, it should be got verified from Treasury Officer that the amount has actually been remitted to treasury but in the head other than the head of concerned division. In such cases, action for transfer by sending requisition for transfer to Treasury Officer is to be taken early. If amount of challans not found remitted at all in Government Treasury, immediate action considering it as mis- appropriation of the earnest out money is to be taken.

Omission in this regard will be viewed seriously.

122.

Standing Order

No. F. 9(1)(4) Insp/76/1100, dated 23-2-1976.

It has been brought to notice that the provision of para 474 and 475 of P.W.F. & A.R. are not being complied with regards to preparation and submission of material at site accounts. In absence of which there are chances of losses and likely mis- appropriations of stores articles and actual position of such cases cannot be ascertaining without MAS accounts. The following instructions are, therefore, issued to get timely preparation and submission of MAS accounts.

1. Salaries of Jr. Engineers should be drawn by Assistant Engineer when proper MAS accounts are received for the last months from them. Action under rule 17 of C.C.A. rules should be initiated against those Jr. Engineer who repeatedly fail to submit M.A.S. Accounts. Their efficiency, should also be assessed on this account.
2. M.A.S. accounts are to be prepared in form No. 35 and 35A. If Jr. Engineer feel difficulty in preparing the same, Divisional Accountant should be sent to guide them at a time in sub-division office by calling all such Jr. Engineers.
3. Assistant Engineers should see that MAS accounts are prepared by the Jr. Engineers. There after they are submitted to Divisional Office in time after necessary checking. Efficiency of Assistant Engineer and sub-divisional clerk should be assessed on this account. Assistant Engineer should submit a monthly certificate to Divisional Office regarding preparation to M.A.S. Accounts from Jr. Engineers and their transmission to division office.
4. Executive Engineer should see that M.A.S. accounts and regularly received and checked in division Office and register in form No. 38 is maintained. Divisional Account be made responsible for timely completion of this work.
5. Divisional Officers should submit monthly certificate to this office by 25th of next month that M.A.S. account from all sections and sub-divisions have been received and they have been checked in division office alongwith maintenance of register in form 38 after appropriate checking.
6. During inspection, S.E, should see that compliance of the above instructions is made and he will mention the same in his inspection report. Similarly Executive Engineer and Assistant Engineers while inspecting the sub-divisions and sections, should see compliance of this item. In the inspection report of S.E., X. En. and A. En. a para on this point should be added.

Omissions of the above instructions will be dealt strictly.

123.

Standing Order

No. F. 9(1)(3)/Insp/76/1388-1440, dated 9-3-1976.

It has been noticed that proper accounts of stock & T & P articles are not being maintained in the Divisional, Sub-Divisional Offices and by Junior Engineers in prescribed form Nos. 12 & 15. Due to non-maintenance of proper store accounts there are chances of misappropriations, losses and shortage in store and T & P. The following instructions are, therefore, issued which are to be complied with strictly:-

(1)

Stock ledger in form No. 12 & T & P ledger in form No. 15 should be maintained in Division & Sub-divisions and also by Junior Engineers in bound Registers with effect from 1-4-1976 positively. One copy of each Forms is enclosed. Balance in them should be brought forward from old registers yearly, half yearly returns after physical verification which is also to be completed by 31-3-1976. The entries brought forward in these registers on 1-4-1976 shall be checked and signed by the Officer who should sign them in token of checking. A note of Physical verification on each ledger balance in the registers or returns is to be given by the Officers who conducts physical verification in the following form:-

"On Physical Verification (name of material) Was Found"

Signature.

(2)

Store receipt in form No. 8A (copy enclosed) should be prepared at Division, Sub-division and sectional store in duplicate at the time of receipt of the material in store even for those whose invoices are not received with them. These receipts are also to be issued in respect of materials immediately in their receipt for which A.G. Memos are received subsequently.

(3)

Issue notes should be prepared in form No. 7, (copy enclosed) at Division, sub-division and sectional stores in quadruplicate. Two such copies to be issued to the consignee (receiptent) who in turn will return one copy duly acknowledged to the consignor. The acknowledgment should be in following form on the issue note:-

"Material mentioned in the issue note has been received and register". One copy of issue note is to be sent to Divisional Office for necessary checking and adjustment action.

(4)

Monthly receipt & issue returns, half yearly returns for stock and year T & P returns should be prepared and submitted in time to Divisional Office. At Divisional Office they should be properly checked with action of adjustments etc.

(5)

Proper indents for issue of store T & P articles be prepared by the intending officer before issue of material from Division, Sub-Division and sectional stores. Indents is to be prepared even if the officer issuing the material is receiving the material from store.

(6)

The Certificate regarding reference of ledger page number should be invariably given on the bills of supply of stores and T & P articles which should be in the following form:-

"Received on vide stock/receipt No....and recorded in the register of stock/T & P articles at page No Materials examined and checked properly and there after entered at page No of M.B. No....."

Store keeper

Signature of Officer

(7)

During inspections S.E. should see that compliance of the above instructions is made and he will mention the same in his inspection report, similarly Executive Engineer and Assistant Engineers while inspecting the sub-divisions & sections, should see compliance of this item. In the inspection report of S.E., X. En. & A. En a para on this point should be added.

The above instructions are to be complied strictly. Non compliance will be considered sufficient ground for disciplinary action. The Divisional Accountant should be made responsible by the Executive Engineer to check that these instructions are being complied with at all levels. After making compliance of the above instructions a report is to be sent to the head office by 30th April 1976.

124.

Store Indents

No.

Government of

Date

Stores Indent on X. Dn.

Division

S. No.

Description of stores

Code No.

Quantity indented

Qty. issued

1

2

3

4

5

Unit

Rate

Value

Head of Actt.

Name of work (with name from whom value is recoverable

6

7

8

9

10

Name of the person to whom the store are to be delivered and his Sign

Dated signatures of indenter and his designation (Dn. Sub-Dn. officer)

Issued on signature Designation

Recd. Signatures Designation

11

12

13

14

Bin Card No. Store Keeper Signature S.O.

Ledger Folio No. & S. No. of item Ledger

Keeper Dnl. Accountant

Remarks, if any

15

16

17

Form 8A

Goods Received Sheet

Dn.

Sub-Dn.

Name of supplier

Section

S. No.

Date

Invoice/RR No.

Purchase supply order No./Dt.

Description of materials

1

2

3

4

5

Stores Code No.

Quantity

Unit

Rate

Amount

Incidental charges

Amount including incidental charges

Bin card No.

Store Ledegr Folio No.

11

12

13

14

Reference to Payment Vr. Or adjustment of debit.

Remarks including results of test check by
superior officer

No.

Date

15A

15B

16

Note.-I. A separate GRS should be prepared in respect of Goods purchased from each supplier.

2. The articles falling under each sub-head of stock should be grouped together or entered on separate sheets.

Form 12

Priced Stores Ledger

Sub-Dn.

Article

Section

Maximum

Minimum

Ordering level

Code No.

Unit

Issue rate Rs. from

S. No.

Date

From whom recd. To whom issued

GRS/Indent No.

1

2

3

4

Receipts

Qty.

Rate

Value

Incidental

Total

5A

5B

5C
 5D
 5E
 Issue
 Balance
 Reference to payment or adjustment of debt
 Quty.
 Value
 Quty.
 Value
 Vr. TEO.
 Date
 6A
 6B
 7A
 7B
 8A
 8B
 Initials of poster
 Initials of the Dn. Accountant
 Remarks including reference to serial No. of item
 to which excess/short amount paid if any relates
 9
 10
 11
 Tools And Plants Ledger-Form-15
 Articles temporarily lent or sent out for repairs:-
 Part II ? {
 |-
 | S. No.
 | Name of Persons or Dn.
 | Name of Article
Issued
Date of issue
Issued
-
1
2
3
4
4A
-
}
 Receipt
 Balance

Initials Sub-Dnl. Clerk

Remarks

Date of receipt

Recd. back

5A

5B

6

7

8

125.

Standing Order

No. F. 9(4) Cir (i) GF and AR (ii)/1442-43, dated 9-3-1976.

Sub.-Annual Certificate of Physical Verification of Stores.

It has been noticed that the annual certificate of physical verification of Stores (Stock and T & P) Articles is not being furnished to this office as well to the Chief Actt. Officer, Rajasthan, Jaipur as required under note 4 below rule 259 of GE and AR. It is, therefore, enjoined upon all the divisional and circle officers to please see that the annual physical verification certificates in respect of the years 1973-74, 1974-75 should be furnished to this office and the Chief Accounts Officer, Rajasthan, Jaipur within 10 days.

In case physical verification was not done in 1973-74/1974-75, intimation for the same be sent. It is necessary to get physical verification of stock & T & P articles of the Divisional, Sub-division and Sectional Stores once a year. This physical verification for the year 1975-76 should be completed by 31st March, 76 and the result of physical verification should be sent to this office in respect of each store in the following proforma:-

Proforma

S. No.

Date of physical verification

Balance as per Stock/T&P

Register/Ledger/Annual/Half Yearly Return

Balance actually found on physical verification

1

2

3

4

Shortage/excess

Approx. cost of Articles found short or excess

Name of store keeper or custodian of stores

Remarks

5

6

7

8

At the time of physical verification, the officer/official conducting physical verification should give following note on each page of ledger account of each store, stock and T & P articles, where ledger account are not maintained, the note is to be given on half/yearly return or any other record which is maintained to show day to day balance:-

"On physical verification done on Numerically (Name of Article) were found"

Weight

These instructions are to be complied with strictly.

126.

Standing Order

No. A.P.A./G.T.D./403 to 407, dated 25-4-1977.

Annual Performance Appraisal in respect of Gazetted/Non Gazetted staff are to be prepared as per Government instructions issued under No. F. 14(29)/Karmik/ACR/73 dated 30-3-76. Copies sent to all concerned under this office

letter No. PA/75-76/GTD/GS/30-384, dated 8-4-76. All performance appraisals are required to be prepared well in time and necessary action at appropriate levels has to be taken as per instructions with regard to communication of adverse remarks etc. It has, however, been observed that the Annual Performance Appraisals are not initiated timely as many reports for 1975-76 are being received from various quarter even now at this late stage when the period of reporting year 76-77 is also over. It is enjoined upon all concerned that the reports may please be prepared in respect of each of the employee in the Circle/Organisation by the prescribed period. In the reports so far received, the points which have been observed to be lacking are enumerated below special attention to which is invited for keeping the same in view while recording the Performance Appraisal:

(1)

To write the name of the Officer reported upon, the service to which he belongs and the year to which the assessment relates on the top of each sheet of the Annual Performance Appraisal form.

(2)

Annexure A & to the Annual Performance Appraisal is invariably attached duly filed in by the Officer/Official reported upon.

(3)

In case of A.P.A. containing adverse entries, action with regard to communication thereof to the concerned office/official be taken by the appropriate authority as per Government instruction on the subject.

(4)

Before sending the Annual Performance Appraisal to the higher authorities for review/onward transmission, it may be checked thoroughly and if found incomplete in any respect, may be got completed prior to despatch.

(5)

Annual Performance Appraisals be prepared well in time according to the schedule given in Annexure 'A' attached to the Government instructions. As any delay in their despatch to the next concerned quarter disturbs the whole time schedule. It is, therefore, necessary on the part of the next higher authority to ensure that the reports are initiated and submitted by the reporting officers subordinate to them.

(6)

In case the Annual performance appraisal is prepared for a part of the year, the same for the next or earlier part (as the case may be) be also perused with authority concerned and made available to the office of deposit through the channel prescribed.

(7)

Specific reference is invited to item (15) of the Government instructions according to which the officer superior to the Reporting

Officer should, consider it his duty to personally know and form his own judgment of the work & conduct of the officer reported upon. He should accordingly exercise positive and independent judgment on the remarks of the reporting officer under the various detailed headings in the form of the report as on the over all assessment and express clearly his agreement or disagreement with those remarks. This is particularly necessary in regard to adverse remarks if any, where the opinion of the higher officer shall be construed as the correct assessment.

(ii)

Where the reporting officer has recorded adverse entries, the reviewing officer may discuss with the reporting officer such entries and (a) may countersign the report including the adverse entries or (b) modify or expunge the adverse entries after observing all formalities as specified in the State Government in instructions on the subject.

Annual performance appraisal for non-gazetted staff may also be prepared by the scheduled time and kept in respective concerned office by placing latest Annual Performance Appraisal of each employee. Necessary action with regard to conveying adverse entries if any and deciding representations may be completed in all such cases.

127.

Standing Order

No. T-26/1486-1531, dated 1-6-78.

The procedure of sanctioning Longitudinal sections of Canals has been reviewed and it is hereby ordered that Longitudinal sections of all Canals of Medium and Minor Irrigation work shall be approved by the concerned Superintending Engineers after preparing the Shajra sheets and classification of land as per standing order No. 4. All Longitudinal sections of channels of medium & minor irrigation works should therefore, bear the signature of the

Superintending Engineer as token of his approval. A copy of such approved Longitudinal sections should be sent to this office for information of the Chief Engineer.

The Longitudinal sections of canals of Major projects shall continue to be put up to the Chief Engineer for approval.

128.

Standing Order

No dt. 1970.

In connection with collection of Annual Confidential Report/Annual Performance Appraisal in respect of Gazetted/Non-Gazetted staff for the Departmental Promotion Committee and other purposes it has been observed that the attention presented intending/recording the Annual Confidential Reports is not being paid at various levels resulting in undue delay in important matters like holding Departmental Promotion Committee/ Screening meetings etc. which linger on in absence of these documents. Since the Annual Confidential Reports/Annual Performance Appraisals play most important role in the service in each cadre it has been decided that:

(1)

Each circle/Divisional or Sub-Divisional officer may collect certificates from their subordinates/gazetted/non-gazetted as on 31st March of a year that the each of them have submitted their Annual Performance appraisal forms after filling in its 1st part, their concerned reporting officer.

Attention is invited to State Government order No. F. 13 (48) DOP/A-I/ACR/77, dated 16-4-77 (copy enclosed) whereunder the following dates have been prescribed:

1. Submission of Annual Performance Appraisal Part 1 duly filled into the reporting officer by the concerned officer/official.

10th.

April

2. Filling/writing the Annual Performance Appraisal for all members who worked in the Administrative Control of the reporting officer.

10th. May

3. Submission of Annual Performance appraisal to reviewing officer duly filled in

15th.

May

4. Submission of Annual Performance Appraisal after review to the concerned quarters by the reviewing officer.

15th. June.

(2)

The circle office will see that all the Annual Performance appraisal due for the members of the circle gazetted or nongazetted are submitted by each incumbent in time and given to their respective reporting officers. A list so compiled by the circle office (with name of the reporting/reviewing officer concerned) will be made available to the concerned Chief Engineer office invariably by the 15th June of the year. In case any circle/Superintending Engineer fails to furnish this list by the above said date to the respective Chief Engineers the Chief Engineer concerned may take a serious view and may even choose to reflect such failures in an appropriate manner.

(3)

In the Annual Performance appraisals where there is/are adverse entries necessary formalities to convey the same to the concerned officer/official be done at proper level in accordance with rules and representations received against these remarks should be decided expeditiously within a reasonable period.

(4)

Superintending Engineers may accordingly keep watch on the Annual Performance Appraisals report in respect of nongazetted staff on the above lines and bring home the above mentioned instructions and may likewise deal with the defaulting officers in appropriate manner. It should be ensured that adverse remarks, are invariably conveyed to the concerned official and representation if any, received against such remarks are decided by the appropriate authority as per instruction for preparing Annual Performance Appraisal.

(5)

The inspection team from this office inspecting the circle offices will also check the record and manner of up keep of Annual Performance appraisal Reports and bring the defaults to the notice of the controlling officers who should immediately take steps to rectify the same.

(6)

It has also been observed that the instructions issued by the State Government regarding up keep of Annual Performance Reports are not being strictly followed. A few important instructions are brought to notice of all concerned:

(i)

The Annual Performance appraisal Reports should not be pinned, but tagged.

(ii)

Every employee should submit the relevant Annual Performance appraisal Report form duly filled to the office concerned as per time schedule prescribed by the State Government reproduced above.

(iii)

Each page of the Annual Performance appraisal Report should bear the name post and year of the reportee duly initialed.

(iv)

The boxes provided in the forms should be tick marked and initialed by the reporting officer. Cuttings/corrections should be avoided.

(v)

Name of the reporting officer should be written very clearly.

(vi)

The assessment recorded should be objective and confined to the work entrusted during the year.

(vii)

The Annual Performance Appraisal Report should not be deemed to be a document Dyr. proposing transfers or merit certificates or reprimands.

(viii)

The various parts of the Annual Performance appraisal Report forms are very exhaustive and may not generally warrant any further elaborations.

(ix)

Lengthy remarks should be avoided unless necessary.

(x)

If the reviewing officer or an officer other than reviewing officer happens to differ with the reporting officer, the views of reviewing or other than reviewing authority should briefly specify the reasons for doing so.

(xi)

The annual Performance appraisal Reports should be coherent and there should be no occasion for the general remarks and specific, assessment to differ.

(xii)

The above instruction have been given for general guidance and should not be considered as exhaustive, detailed instructions issued by DOP in this connection from time to time should be carefully studied and strictly adhered to.

The above guide lines should not be taken as replacement of the instructions issued by the State Government from time to time.

(7)

A decision in the meeting held on 22-3-79 has been taken that when there is a transfer of the reporting officer, it should be clearly mentioned in the charge report that the Annual Performance appraisal reports that were to be written by the relieved officer have been written by him before handing over (DOP No. 13(58) DOP/ACR/79, dated 7-4-79.)

129.

Standing Order

No. APA/75-77/GS/Dated.... 1979.

In connection with preparation and submission of Annual Performance Appraisal, detailed instructions have already been issued. under standing order No. 125. In continuation thereof further instructions are issued in respect of gazetted officers for strict compliance:-

(1)

Each officer will intimate this office latest by 10th of April every year through a letter despatched under certificate or posting the list of officers under whom he has worked for 3 months or more than 3 months during the year. He will also intimate this office the letter number and date under which he has sent his Annual Performance Annual Performance

Appraisal form(s) with Annexure-1 to his reporting officer concerned.

(2)

The reportee officer shall be responsible if he is in any manner put to any disadvantage due to the above information not reaching this office resulting in his Annual Performance Appraisal does remaining in his complete.

(3)

Reporting officer shall also intimate to this officer with reference to the letter of the reportee officer that he has sent the Annual Performance Appraisal of a particular officer to the reviewing officer quoting the reference of the letter under which the Annual Performance Appraisal has been sent by him.

(4)

In cases where Reportee Officer has not sent his form to the Reporting Officer concerned within the scheduled time, then the Annual Performance Appraisal report may be written by the Reporting Officer without waiting for the form any further.

(5)

A list of officer whose Annual Performance Appraisals are due for a particular year along with the names of reporting/reviewing officers is to be furnished by all Chief Engineer's/Addl. Chief Engineer's in respect of their Organisations to this office before the end of June every year positively.

130.

Standing Order

No. APA/75-76/GS/3027 to 3030, dated 25-9-1979.

Copy to the following with the remarks that a meeting was held on 18-8-79 under the chairmanship of the Chief Secretary to review the position with regard to outstanding Annual Performance Appraisal Reports. So far as Irrigation Department is concerned it was reported that a large number of Annual Performance Appraisal Reports are outstanding. It has been experienced that despite issuing instructions from this office from time to time for expeditious submission of the Annual Performance Appraisal Reports, the received has been poor. The matter of initiation/submitting the Annual Performance Appraisal Reports is not attached the importance it deserves. The Government is very serious that the outstanding Annual Performance Appraisals should be collected immediately and made available.

All Superintending Engineers were required to send list of Officers whose Annual Performance Appraisals for last year were due from their circles. Such lists are still due from a many circles despite reminder letters. The list in question may be sent immediately. The Superintending Engineers have already been requested to monitor submission of Annual Performance Appraisals pertaining to their circle but, it appears, due attention is not being paid in the matter as a result of which no improvement is being noticed in receipt of Annual Performance Appraisals pertaining to their circle but. It is proposed to take action against the officers not complying with instructions issued under standing order No. 125.

Above standing order may please be brought to the notice of all the officers under your control.

For the Annual Performance Appraisals of 1978-79, the reportee Officers, who have not yet sent their forms to their concerned reporting officers, should sent the same immediately to their reporting officer so as to avoid any action against then on this account. In case the forms for 1977-78 have not been submitted by the Reportee Officer so far, the action to record the Annual Performance Appraisal be taken as per item (4) above, and despatch of the Annual Performance Appraisals expedited.

3. The Superintending Engineer, Flood Control Circle Bharatpur.

Related AI tags, queries and research notes

Translation